

German Atrocities

An Official Investigation

By

J. H. Morgan, M.A.

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Title: German Atrocities: An Official Investigation

Author: J. H. Morgan

Release date: July 30, 2016 [eBook #52679]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/52679

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ATROCITIES: AN OFFICIAL INVESTIGATION ***

GERMAN ATROCITIES

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AN OFFICIAL INVESTIGATION

BY

J. H. MORGAN, M.A.,

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Mentem mortalia tangunt



NEW YORK
E. P. DUTTON & COMPANY
681 FIFTH AVENUE

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Printed in the U.S.A.

TO
M. ARMAND MOLLARD
MINISTRE PLENIPOTENTIAIRE,
MEMBER OF "LA COMMISSION INSTITUÉE
EN VUE DE CONSTATER LES ACTES COMMIS
PAR L'ENNEMI EN VIOLATION DU DROIT DES GENS,"
THIS WORK IS DEDICATED
IN RECOGNITION OF HIS COURTESY AND COLLABORATION
IN THE PURSUIT OF A COMMON TASK.

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PREFATORY NOTE

PROFESSOR MORGAN desires to express his obligations to the Russian Embassy, the Foreign Office, the Home Office, the French Ministry of War, and the General Headquarters Staff of the British Expeditionary Force for the assistance which they have given him. For the opinions expressed in Part IV. of the Introductory Chapter Professor Morgan is alone responsible. The whole of the documents given in the "Documentary Chapter" of this book (except the Memorandum from the German White Book which has been published in German, though not, of course, in English) are now published for the first time.

GERMAN ATROCITIES

CHAPTER I

INTRODUCTORY

I

THE BRITISH ENQUIRY

THE second chapter of this book has already appeared in the pages of the June issue of the *Nineteenth Century and After*. At the time of its appearance numerous suggestions were made—notably by the *Morning Post* and the *Daily Chronicle*—that it should be republished in a cheaper and more accessible form. A similar suggestion has come to us from the Ministry of War in Paris, reinforced by the intimation that the review containing the article was not obtainable owing to its having immediately gone out of print. Since then an official reprint has been largely circulated in neutral countries by the British Government, and an abbreviated reprint of it has been published by the Parliamentary Recruiting Committee in the form of a pamphlet. The Secretary to the Committee informs me that considerably over a million and a half copies of this pamphlet have been circulated.

At the suggestion of Mr. Fisher Unwin, and by the courtesy of the editor of the *Nineteenth Century*, the article is now republished as a whole, but with it is published for the first time a documentary chapter containing a selection of illustrative documents, none of which have hitherto appeared in print. For permission to publish them I am chiefly indebted to the Home Office and the Foreign Office. Needless to say, the original article also was submitted to the Home Office authorities, by whom it was duly read and approved before publication. These documents by no means exhaust the

unpublished evidence in my possession, but my object has been not to multiply proofs but to exemplify them, and, in particular, as is explained in the following chapter, to supplement the Bryce Report on matters which, owing to the exigencies of space and the pre-occupation with the case of Belgium, occupy a comparatively subordinate place in that document. This volume may, in fact, be regarded as a postscript to the Bryce Report—it does not pretend to be anything more.¹

There is, however, an extremely important aspect of the question which has not yet been the subject of an official report in this country, and that is the German White Book.² It has never been published in England, and is very difficult to obtain. There is some reason to believe that the German Government now entertain considerable misgivings about the expediency of its original publication, and are none too anxious to circulate it. The reason will, I think, be tolerably obvious to anyone who will do me the honour to read the critical analysis which follows.

I will not attempt to prejudice that analysis at this stage. I shall have something to say later in this chapter as to the credibility of the German Government in these matters. It is a rule of law that, when a defendant puts his character in issue, or makes imputations on the prosecutor or his witnesses, as the Germans have done, his character may legitimately be the subject of animadversion. To impeach it at this stage might appear, however, to beg the question of the value of the White Book, which is best examined as a matter of internal evidence without the importation of any reflections on the character of its authors.

As regards the value of the evidence on the other side—the English, Belgian, and French Reports—I doubt if any careful reader requires persuasion as to their authenticity. In the case of the Bryce Report, the studied sobriety of its tone—to say nothing of the known integrity and judiciousness of its authors—carried instant conviction to the minds of all honest and thoughtful men, and that conviction was assuredly not disturbed by the vituperative description of it by the *Kölnische Zeitung* as a “mean collection of official lies.” No attempt has ever been made to answer it. As regards the French Reports, which are not as fully known in this country as they might be,³ I had the honour of working in collaboration with M.

Mollard, a member of the French Commission of Inquiry, and I was greatly impressed with their scrupulous regard for truth, and their inflexible insistence on corroboration. My own methods of inquiry are sufficiently indicated in the chapter which follows, but I may add two illustrations of what, I think, may fairly be described as the scrupulousness with which the inquiries at General Headquarters were conducted. The reader may remember that in May of last year a report as to the crucifixion of two Canadian soldiers obtained wide currency in this country. A Staff officer and myself immediately instituted inquiries by means of a visit to the Canadian Headquarters, at that time situated in the neighbourhood of Ypres, and by the cross-examination of wounded Canadians on the way to the base. We found that this atrocity was a matter of common belief among the Canadian soldiers, and at times we seemed to be on a hot scent, but eventually we failed to discover any one who had been an actual eye-witness of the atrocity in question. It may or may not have occurred—we have had irrefragable proof that such things have occurred—and it is conceivable that those who saw it had perished and their testimony with them. But it was felt that mere hearsay evidence, however strong, was not admissible, and, as a result, no report was ever issued.

In the other case a man in a Highland regiment, on discovering himself in hospital in the company of a wounded Prussian, attempted to assault the latter, swearing that he had seen him bayoneting a wounded British soldier as he lay helpless upon the field. He was positive as to the identification and there could be no doubt as to the sincerity of his statements. But as one Prussian Guardsman is very like another—the facial and cranial uniformity is remarkable—and there was no corroboration as to identity, no action was taken. As to the fact of the atrocity having occurred there could, however, be no doubt.

I may add that the numerous British officers whom I interrogated in the earlier stages of the war showed a marked disinclination—innate, I think, in the British character—to believe stories reflecting upon the honour of the foe to whom they were opposed in the field. But at a later stage I found that this indulgent scepticism had wholly disappeared. Facts had been too intractable, experience too harsh, disillusion too bitter. The lesson has been dearly learnt—many a brave and chivalrous officer has owed his death to

the treachery of a mean and unscrupulous foe. But it has been learnt once and for all. And, indeed, judging by the information which reaches me from various sources, the enemy affords our men no chance of forgetting it.

II

THE GERMAN CASE—A CRITICAL ANALYSIS OF THE GERMAN WHITE BOOK

ON May 10th—some five days before the publication of the Bryce Report—the German Government drew up a voluminous White Book purporting to be a Report on Offences against International Law in the conduct of the war by the Belgians. It may be described as a kind of intelligent anticipation of the case they might have to meet; the actual case, as presented in the Bryce Report, they have never attempted to meet, and to this day that report has never been answered. The German White Book—of which no translation is accessible to the public in this country—has attracted very little attention over here, and I propose to make a close and reasoned analysis of it, for no more damning and incriminating defence has ever been put forth by a nation arraigned at the bar of public opinion. In doing so I shall rely on the German Report itself and shall make no attempt to refute it by drawing upon the evidence of the English and Belgian Reports, convincing though that is, because to do so might seem to beg the question at issue, which is the relative credibility of the parties.

German Invocation of The Hague Conventions.

The case which the German Government had avowedly to meet was the wholesale slaughter of Belgian civilians, and the fact of such slaughter having taken place they make no attempt to deny. They enter a plea of justification and, in a word, they attempt to argue that the *levée en masse* or “People’s War” of the Belgian nation was not conducted in accordance with the terms of the Hague regulations relating to improvised resistance in cases

of this kind. I will not here go over the well-trodden ground of Belgian neutrality; it is enough that in a now notorious utterance the Imperial Chancellor has admitted that the German invasion was a breach of international law.⁴

The substance of the Hague Convention⁵ is that the civil population of a country at war are entitled to recognition as lawful belligerents if they conform to four conditions. They must have a responsible commander; they must wear a distinctive and recognisable badge; they must carry their arms openly; and they must conduct their operations in accordance with the laws and customs of war. In the case, however, of an invasion, where there has been no time to organise in conformity with this article, the first and second conditions are expressly dispensed with, provided there is compliance with the third and fourth. Now, not only have these rules been subscribed by the German representatives and, according to Baron Marschall von Bieberstein, their principal spokesman at the Hague Conference, such subscription was absolute and unconditional;⁶ but the principle which they embody has been accepted by all the leading German jurists. “There exists no ground for denying to the masses of a country the natural right to defend their Fatherland ...; it is only by such levies that the smaller and less powerful States can defend themselves.”⁷ The same authority argues that no State is bound to limit itself to its regular army; it could, he adds, call up civil guards or even women and children, who in such case would be entitled to the rights of lawful belligerents.⁸

What then is the German justification for the massacre of the Belgian civilians? Its main contention is that the Belgian Government “had *sufficient time* for an *organisation* of the People’s War as required by international law”;⁹ in other words that a spontaneous and unorganised resistance in Belgium could not claim the immunities of Article 2 of the Hague Regulations. The effrontery of this contention is truly amazing. The Belgian Government had, at the most, two days—two days in which to organise a whole nation for defence. The German ultimatum to Belgium was issued on August 2nd; the violation of Belgian territory took place on August 4th. How could a little nation with a small standing army organise its whole population on a military basis within two days against the most powerful and mobile army in Europe, equipped with all the modern engines

of war? The German Government do, indeed, attempt to support their contention by urging further that “the preparation of mobilisation began, as can be proved, at least a week before the invasion of the German Army.”¹⁰ Now, granting—and it is granting a great deal—that a week would be sufficient to organise untrained civilians for defence, it would still remain to be proved that the Belgian Government *did* begin to mobilise a week beforehand. The German White Book does not prove it; the Belgian Grey Book disproves it. The Belgian Government, relying on the plighted faith of Germany, had not even begun to mobilise on July 29th—six days before the invasion.¹¹ Indeed, it was only on July 24th that they were sufficiently alarmed to address interrogatories to the Great Powers, Germany among them, for assurances as to the immunity of Belgium from attack.¹² As late as July 31st the German Government effectually concealed its intentions.¹³ It is, in fact, a matter of common notoriety that the German move against Belgium was as sudden in execution as it was premeditated in design. She entered like a thief in the night.

Charges against the Belgian Government.

The main contention of the German Government therefore falls to the ground. What remains? It is here that the German answer betrays itself by its disingenuousness. There is an old rule of pleading, familiar to lawyers, which says a traverse must be neither too large nor too narrow. This is just the error into which the German contention falls. The apologies are too anxious to prove everything in turn as the occasion suits, forgetting that one of their contentions often refutes the other. In the introductory memorandum they argue that Belgium had time to organise and did not. In their excuse for the massacre at Dinant, and their zeal to prove that the military exigencies were overwhelming, they say that “the organisation”—of civilian resistance—“was remarkable for its careful preparation and wide extent”; “that the guns were only partly sporting guns and revolvers but partly also machine guns and Belgian military weapons proves that the organisation had the support of the Belgian Government.”¹⁴ In other words, in one part of the White Book they insist that the resistance was ruthlessly punished because it was not organised; in another that because it was organised it had to be ruthlessly repressed. In another place,¹⁵ having to

justify their peculiar principle of vicarious responsibility by which the innocent have to answer for the guilty, they say that the Belgian Government and the municipal hostages whom the Germans executed ought to have stopped “this guerilla warfare,” and did not do so. Now it is well known, and the German Government admits it, that the public authorities issued proclamations ordering the people to abstain from hostilities and to surrender their arms. How does the German Government meet this? The only evidence they can produce in the whole of their pompous dossier is (1) the deposition of a German Jew, resident in Brussels, to the effect that, seeing the proclamation, he sent his servant to the Belgian authorities to deliver up a revolver, and that the servant came back and said that the Commissioner of Police had told him not to trouble as “one need not believe everything that is in the papers”;¹⁶ (2) the deposition of a German lieutenant that an officer (not named) once showed him a document (not produced), which, “according to his own account” he had found in the town hall of a neighbouring village (not indicated), containing an invitation on the part of the Belgian Government, addressed to the population, to render armed resistance in return for payment.¹⁷ On such flimsy hearsay evidence, tendered by two Germans, rests the whole of the German case against the Belgian Government.

Belgian “Atrocities.”

Like a defendant who has no case, the German Government attempt to plead generally in default of being able to plead specifically. They therefore put forward a sweeping generalisation to the effect that, quite apart from the question whether the Belgians did or did not comply with the formal requirements of the Hague Convention, they violated all the usages of war by “unheard of” atrocities. “Finally it is proved beyond all doubt that German wounded were robbed and killed by the Belgian population, and indeed were subjected to horrible mutilation, and that even women and young girls took part in these shameful actions. In this way the eyes of German wounded were torn out, their ears, nose, fingers and sexual organs cut off, or their body cut open.”¹⁸ Let us consider the depositions with which this accusation is supported.

(1) Hugo Lagershausen, of the 1st Ersatz Company of the Reserve, his attention having been drawn to the significance of the oath, declares:

“I lost the other men of the patrol. About noon on August 6th, I came to a dressing station, which was set up on a farm near the village of Chenée. In the house I found about fifteen severely wounded German soldiers, of whom four or five had been horribly mutilated; both their eyes had been gouged out, and some had had several fingers cut off. Their wounds were relatively fresh although the blood was already somewhat coagulated. The men were still living and were groaning. It was not possible for me to help them, as I had already ascertained by questioning other wounded men lying in that house, there was no doctor in the place. I also found in the house six or seven Belgian civilians, four of whom were women; these gave drinks to the wounded; the men were entirely passive. I saw no weapons on them, and I cannot say whether they had blood on their hands, because they put them in their pockets.”¹⁹

It is highly probable, is it not? Musketeer Lagershausen falls among ghouls who hastily put their incriminating hands in their pockets and allow him who was “entirely alone” and powerless to walk off and inform against them. Truly they must have been some of the mildest-mannered men who ever cut a throat.

(2) Musketeer Paul Blankenberg, of Infantry Regiment No. 165, declares:

“We were on the march in closed column and passing through a Belgian village west of Herve. In the village some German wounded were lying and I recognised some Jäger of the Jäger Battalion, No. 4. Suddenly the column marching through was fired upon from the houses, and accordingly the order was given that all civilians should be removed from the houses and driven together to one point. *While this was being done* I noticed that girls of eight to ten years old, armed with sharp instruments, busied themselves with the German wounded. Later, I ascertained that the ear lobes and upper parts of the ears of the most seriously injured of the wounded had been cut off.”²⁰

That is to say, a whole column of German troops is on the march in close formation, they round up the civilians and *while they are doing this* some little girls continue, in presence of this overwhelming force, to “busy themselves” by cutting up their comrades with the contents of their mothers’ work-box.

(3) Landwehrman Alwin Chaton, of the 5th Company of the Reserve Infantry Regiment No. 78, declared:

“In the course of the street fighting in Charleroi, as we fought our way through the High Street and had reached a side street leading off the High Street, I saw, when I had reached the crossing and shot into the side street, a German dragoon lying in the street about fifty or sixty paces in front of me. Three civilians were near him, of whom one was bending over the soldier, who still kicked with his legs. I shot among them and hit the last of the civilians; the others fled. When I approached I saw that the shot civilian had a long knife, covered with blood, in his hand. The right eye of the German dragoon was gouged out.”²¹

The witness adds that “much smoke was rising from the body of the dragoon,” This is to say that a general engagement, one of the hardest fought during the war, is going on in the middle of a town and three civilians are discovered within fifty or sixty paces, leisurely carving up a German dragoon! Is it credible?

(4) My fourth example is too long to quote, but in substance it is this. Reservist G. Gustav Voigt deposes that on August 6th he and seven comrades suddenly saw five Belgian soldiers, fully armed, holding up their arms to surrender. When they went up to them they discovered that the Belgians had a German hussar strung up and freshly mutilated, and that they had two other hussars upon whom they were about to perform similar operations.²² Without firing a shot, these men, caught red-handed under circumstances which made their own death inevitable, surrender immediately.

Now I ask any unbiased reader whether these depositions, in each case uncorroborated, are such as to carry conviction to any reasonable man? Yet

the whole of the “proofs” adduced as to Belgian atrocities are of this character.

The Massacres—Andenne.

When we come to the justification alleged for the wholesale massacres of communities the evidence is even more suspicious. In order to prove the Belgians unspeakable knaves the German Government have to present them as incredible fools. At Andenne, “a small town of a population of about 8,000 people,” there were affrays in which “about 200 inhabitants lost their lives.”²³ According to the German document, “two infantry regiments and a Jäger battalion” were marching through this place when they were set upon by the inhabitants. Two regiments and a battalion would constitute the greater part of a brigade; they must have amounted to at least 7,000 men.²⁴ We are asked to believe that this small unprotected community (one of the German witnesses expressly says, “I did not see one single French or Belgian soldier in the entire town or the environs”)²⁵ made an unprovoked attack on this overwhelming force, and that the women assisted with pots of scalding water. Two hundred of the civilians were, by the German admission, shot. The German losses were, it is added, “singularly small.” So singularly small were they that the German Report omits even to enumerate them.

Jamoigne and Tintigny.

In another case—the village of Jamoigne—an ammunition column halted for water. The attitude of the population “was friendly; water, coffee, and tobacco were offered to some non-commissioned officers and men.” Suddenly, while part of the population are standing outside their doors fully exposed, “a general shooting” is opened upon the crowd in the streets from the roofs and windows of the houses.²⁶ Is it intrinsically probable that Belgian civilians would be so careless of the lives of their fellow-citizens? Or take the case of Tintigny. An artillery ammunition column is welcomed, “apparently with the best goodwill,” assisted to water its horses, and then

(but not before) “when the horses had been again harnessed” and the opportunity for a surprise attack had passed, the inhabitants opened fire on the whole column.²⁷ Statements like these carry their own refutation with them.

The Tragedy of Dinant.

I turn to the case of Dinant, one of the most appalling massacres that have ever been perpetrated,²⁸ even by the hordes of Kultur. No attempt is made to deny the wholesale slaughter; it is freely admitted, and with sanguinary iteration we are told again and again “a fairly large number of persons were shot, “all the male hostages assembled against the garden wall were shot.” Such *battues* occur on page after page.²⁹ What is the German excuse? It is that the civilian population offered a desperate resistance. To prove how desperate it was, and consequently to establish the “military necessity,” it has to be conceded that they were organised. But this is proving too much, for “organised” civilian combatants are entitled to the privileges of lawful belligerents. Therefore it is argued that they were “without military badges”: this phrase occurs with a curious lack of variation in the words of each witness. It is added that women and “children (including girls) of ten or twelve years” were armed with revolvers! “Elderly women,” “a white-haired old man,” fired with insensate fury. None the less—says one ingenuous German witness—“the people had all got a very high opinion of Germany.” At intervals during the engagement not only were groups of civilians, alleged to have arms in their hands, shot in groups, but unarmed civilians were shot—“all the male hostages.” In other words the whole of the German defence that the German troops were punishing illicit *francs-tireurs* is suddenly abandoned. Tiring apparently of these laboured inventions, the German staff, in a grim and sombre sentence, suddenly throws off the mask:

“In judging the attitude which the troops of the 12th Corps took against such a population, our starting point must be that the *tactical object* of the 12th Corps was to cross the Meuse *with speed*, and to drive the enemy from the left bank of the Meuse; speedily to overcome the opposition of the inhabitants who were working in direct

opposition to this *was to be striven for in every way....* Hostages were shot at various places and this procedure is amply justified.”³⁰

It has been estimated that about eight hundred civilians perished in this massacre. The German White Book freely concedes that the number was large; indeed by a simple process of induction from the German evidence it is clear that it was very large. It appears that a whole Army Corps (the 1st Royal Saxon) was engaged and that the armed troops of the Allies were encountered in force. The German troops received a check and it seems fairly obvious that they simply wreaked their vengeance, as they have so often done, on an unoffending population, presumably in order to intimidate the enemy in the field. Not for the first time they attempted to do by terror what they could not do by force of arms.

“We gave them coffee.”

It is characteristic of the whole *apologia* that having admitted to an indiscriminate butchery the Germans attempt to gain credit for preserving throughout its course the most tender sentiments. In fact they are surprised at their own sensibility. “I have subsequently often wondered,” says a Major Schlick, “that our men should have remained so calm in the face of such beasts.”³¹ Major Bauer says, that he and his “manifested a most notable kindness to women, old men and children”; so notable that he suggests that “it is worthy of recognition in the special circumstances.” Major Bauer evidently thinks it a case for the Iron Cross. And in proof of this humanity he points out that the widows and orphans of the murdered husbands and fathers “all received coffee”³² from the field kitchen the next morning. Perhaps Major Bauer bethinks himself of a certain cup of cold water.

The Children were “quite happy.”

More than this, the children seem rather to have enjoyed the novel experience. A German staff-surgeon whose gruesome task it was to search a heap of forty corpses, “women and young lads,” who had been put up against a garden wall for execution, says:³³

“Under the heap I discovered a girl of about five years of age, and without any injuries. I took her out and brought her down to the house where the women were. *She took chocolate, was quite happy, and was clearly unaware of the seriousness of the situation.*”

And with that amazing statement we may fitly leave this amazing narrative.

Aerschot.

The case of Dinant may be taken as typical. The evidence as to Louvain and Aerschot is not less incredible. We are asked to believe that at Aerschot³⁴ the population of a small town suddenly rose in arms against a whole brigade, although the population was quite unprotected—“we ascertained that there was no enemy in the neighbourhood.”³⁵ To explain this surprising and suicidal impulse the Germans produce—it is their only evidence—the statement of a Captain Karge, that he had “heard rumours from various German officers” that the Belgian Government, “in particular the King of the Belgians,” had decreed that every male Belgian was to do the German Army “as much harm as possible.” “It is said that such an order was found on a captured Belgian soldier.” Strangely enough, the order is not produced—not a word of it. Also, “an officer *told* me that he himself had *read* on a church door of a place near Aerschot that the Belgians were not allowed to hold captured German officers on parole, but were bound to shoot them.” He adds that he “cannot repeat the words of this officer exactly.”³⁶

Louvain.

Let us now turn to Louvain. “The *insurrection* of the town of Louvain,” say the authors of the White Book with some naïveté, “against the German garrison and the punishment which was meted out to the town have found a long-drawn-out echo in the whole world.” Some twenty-eight thousand words are therefore devoted to establishing the thesis that the German troops in occupation of the town were the victims of a carefully organised, long premeditated, and diabolically executed attack on the part of the inhabitants assisted by the *Garde Civique*. Thus:

“We are evidently dealing with a carefully planned assault which was carried on for several days with the greatest obstinacy. The long duration of the insurrection against the German military power in itself disposes of any planless action committed by individuals in excitement. The leadership of the treacherous revolt must have lain in the hands of a higher authority.”—Summarising Report.

Great emphasis is laid on the formidable nature of the attack and the heavy odds against which the Germans had to contend. The fire of the Belgians was “murderous” (D 11, D 13), “fearful” (D 9), “violent” (D 36), “furious” (D 41); it was supported by machine-guns (D 28, 29, 37, 38, 40) and hand-grenades (D 46), and was materially assisted by Belgian soldiers in disguise (Appendix D 1, 19, 38), and by the *Garde Civique* (D 45, 46), who occupied houses with the most “elaborate preparations.” In spite of this careful preparation the German troops, who had been in the town six days and had there established the Head-quarters of a whole Army Corps (the 9th Reserve Corps), were so impressed by the “extraordinarily good” behaviour of the inhabitants that on the evening of August 25th, about 7.30 or 8 p.m., they were taken completely by surprise. “It was impossible to foresee,” says Lieutenant von Sandt (D 8), “that the inhabitants were planning an assault.” Other witnesses say, however, that “a remarkable number of young men” were observed congregating in the streets some hours beforehand. None the less the German authorities exhibited an ingenuous trustfulness and, what is even more remarkable, a complete disregard of the most ordinary police precautions, which will come as a surprise to anyone who has studied the German Proclamations and the drastic measures usually taken by them immediately upon their occupation of a town.

A “murderous” attack; German casualties—five.

Such was the situation when at seven o’clock on a summer evening (August 25th) of notorious memory, the deep-laid plans of the Belgian authorities suddenly and murderously revealed themselves. A German company of Landsturm³⁷ was marching through the town; the main body of the German troops quartered there were engaged several miles away, and only a few details remained in the city. This small body of unsuspecting soldiers—a

company numbers not more than two or three hundred men—were suddenly set upon, at a signal given by rockets, by trained marksmen of the Belgian Army and the *Garde Civique*, disguised as civilians, acting with the aid of machine-guns and hand-grenades and actively assisted by the greater part of a large civilian population. The fire, as various soldiers of the Landsturm testify, was not only carefully controlled and directed, but was “murderous” in the extreme. Yet, after carefully searching through their depositions, we find that only “*five men of the company were wounded*” (D 8)! Lieutenant Sandt and Dr. Berghausen feel constrained to explain these remarkably light casualties. They can only account for them by saying that in spite of the “carefully planned” and disciplined attack the Belgians, shooting from carefully chosen positions, shot “too high” (D 8), “at night” (D 8, D 9) although the light at eight o’clock on an August evening is usually remarkably good, and one of the witnesses (D 26) says that at 8 p.m. it was “fairly light.” The company appear to have disarmed the infuriated Belgians with remarkable ease, going into the houses two or three at a time (D 9), and finding the occupants apparently as docile as sheep, so that although found with arms in their hands they allowed themselves to be led out in “a crowd” and “immediately shot” (D 44). In one case, on entering an inn, the Germans found “behind the bar, a waiter,” who had apparently taken up this strong strategical position alone with “a case for shot placed by his side with the corresponding ammunition.” He also allowed himself to be led forth like a lamb to the slaughter (D 37).

Contradictory witnesses.

It is extraordinary also that although this murderous and carefully planned attack began at 7.30 “I had just finished my soup,” says Major von Manteuffel, who sat down to dinner at 7.30—(Appendix D 3), or at 8 p.m. (D 6), yet at 9 p.m., says Corporal Hohne, who entered the town with his regiment at that hour (D 36), “the conduct of the civilians was quiet and not unfriendly,” and his regiment was allowed to march right into the town—“up till then nothing noteworthy had occurred.” A N.C.O. of the same battalion says that “between 9 and 10 p.m.” the Belgians were standing about the streets; all was “quiet,” and they were “not unfriendly” (D 36). Another witness heard nothing till “9 or 9.30” (D 25). Another says (D 45)

the signal was given at “9 o’clock.” To the same effect another soldier (D 18). What is even more remarkable is the statement of Major von Klewitz that at 4 a.m. the next morning, after the Landsturm had cleared the houses, the infatuated inhabitants opened fire on an Army Corps which appears to have arrived in the interval and was then “moving out to battle” (D 2); and the presence of a whole brigade of Landwehr (D 1) does not seem to have exercised any restraining influence on these insane civilians. Like flies to wanton boys was a whole Army Corps to the burgesses of Louvain, who killed it for their sport. The German authorities contend that, with intermittent executions, they tolerated this kind of thing for two whole days. They appear, however, to have borne a charmed life—the chief casualties among them were horses. Battalion Surgeon Georg Berghausen, in particular, who records as a remarkable fact that he once paid a hotelkeeper (“to please him and his employees”) for meals he had ordered, was “repeatedly shot at” the whole length of a street but never so much as hit. He thinks this was due to its being so dark, though whenever the witnesses are concerned to testify that the firing was undoubtedly by civilians, or by soldiers disguised as such, they can see “quite plainly.”

The Priests.

Never since the Day of Pentecost was there such a confusion of tongues. One witness labours to prove that no executions took place without a most decorous court-martial in the station square, the same soldier combining apparently the office of prosecutor and judge (D 38); another says that of “a crowd” of persons taken out of a house, the males were “immediately shot” (D 44); yet a third says that a body of hostages were placed in front of a machine-gun with an intimation that they would be shot as a matter of course if there were any more disturbance (D 37). It is admitted that a hundred civilians were shot, “including ten or fifteen priests” (D 38). One German witness says it is all the fault of the priests (D 38); another says it’s the fault of the *Garde Civique* (D 45)—both being apparently at some pains to exculpate the unhappy civilians. The quality of the evidence against the priests (and the civil population) may be gathered from the following deposition (D 42) of Captain Hermansen. He interviewed a priest who, he says, had behaved well on one occasion:

“I rejoined that if his clerical brethren had acted in that [the same] manner, the Belgians and we would have been spared many unpleasant experiences. *He did not contradict me.*”—(D 42.)

In witness whereof Captain von Vethacke comes forward and says:

“In so far as priests were shot they too had been found guilty by the court. I came to know the priest mentioned by Captain Hermansen at the end of his declaration. He made an excellent impression on me also; and *he did not contradict me either*, when I expressed to him my opinion that certain of the clergy had stirred up the people and taken part in the attack.”—(D 43.)

Truly, a remarkable example of the *argumentum ab silentio*! Perhaps the unfortunate priest remembered what happened to Faithful when he contradicted Chief Justice Hategood.

All the evidence adduced, where it is not that of the German soldiers, is of this character. It is all hearsay, the Belgian witnesses quoted are invariably anonymous, and there are only five of them at that (D 30, 34, 37, 38, 42). At Bueken “the clergymen” are accused of having incited the population to attack the German troops. The proof adduced is that the priest “left the church” when the firing began!

What is the true explanation?

One thing emerges quite clearly from these disorderly depositions and that is a great confusion of mind. The evidence from Belgian sources, very carefully sifted by a Committee³⁸ (presided over by Sir Mackenzie Chalmers) of the Belgian Commission and, independently, by the Bryce Committee,³⁹ is to the effect that two detachments of German troops fired on one another and then threw the blame on the innocent inhabitants. This explanation certainly receives some countenance from the German depositions, which, as I have said, exhibit a kind of turbulent confusion. The N.C.O.’s of two battalions which entered the town at 9 p.m. say “the noise and confusion was very great,” and “to what extent our fire was

returned I cannot say”; “we shot the street lamps to pieces”; “our opponents were not to be seen since it was already dark,” and “we only saw the flash of the discharges and *supposed* that they came from the houses” (D 36, 37); and here again, as in the case of the company of Landsturm previously referred to, only “five men” were known to be hit. During the greater part of the day (August 25th) there was only⁴⁰ one company of Landsturm and sixty men of a railway detachment in the town (D 8). It is surely rather remarkable that “a well-prepared and elaborately designed attack on the part of the civil population” (D 41) should have halted all day and then begun either at or a short time before (the German evidence is, as we have seen, very conflicting) German reinforcements were entering the town, and then tarried again until the whole or the greater part of a German Army Corps had arrived: the only thing that the German evidence proves is the sinister fact that the arrival of each detachment of German forces coincided with renewed massacres of the civilian population. Such is the ugly story that emerges from these ill-nourished and contradictory testimonies.

Such is the German White Book. I think it is not too much to say that it bears the stamp of the forger’s hand upon it, the same hand that forged the Ems telegram and garbled the Belgian documents captured in Brussels. It was conceived in iniquity and brought forth in falsehood. It confesses, but does not avoid.

III

GERMAN CREDIBILITY—A REVIEW OF THE EVIDENCE

The German Diaries.

I have allowed the German White Book to speak for itself. It is a well-known rule of law that a party is “estopped” from denying his own admissions, and the incriminating character of these admissions is, as we have seen, conclusive against the German Government. Had I desired, I could have reinforced it by other evidence, also emanating from German

sources, in the shape of Proclamations and diaries (of which I have seen some hundreds at the Ministry of War in Paris), which amply corroborate the conclusions already arrived at. The German pretence of a judicial inquiry into the guilt or innocence of the victims of their sanguinary fury is refuted by the simple fact that their own Proclamations frankly intimate that the principle of decimation and of vicarious punishment will be adopted, in the case of infractions, whether real or assumed, of what they choose to call their commands. A hostage may fail to turn up as a substitute, an inhabitant may be found with a litre of benzol unaccounted for, another may dig potatoes in the field, yet another may fail to salute or to hold his hands up with sufficient promptitude—and the penalty decreed is invariably the same: he, or a substitute, will be shot—“the innocent will suffer with the guilty.”⁴¹ Not only so, but as a rule no attempt was made to discover whether any offence had been committed or not. In the diary of a German officer which came into my possession an entry recording the indiscriminating butchery of some two hundred civilians concluded with the otiose remark: “In future there ought to be an inquiry into their guilt instead of shooting them.” An unpublished Proclamation in my possession, which was handed to me by the *maire* of a town now in our occupation, declared that the civils, “ou peut-être les militaires en civil,” had fired on the troops; the parenthesis damns its authors beyond redemption. And when all other tests fail, when every international convention has been repudiated, there still remains the elementary rule, which not only jurists but soldiers have always emphasized, that in reprisals and retribution there should always be some *proportion* between the offence and its punishment. What then is to be thought of the admission of a German soldier that sixty villagers, including women in travail, were shot “because,” he adds laconically, “they had telephoned to the enemy”? The critic who carefully collates the diaries, published and unpublished, will find overwhelming evidence of indiscriminate and lawless butchery—“Befehl ergangen sämtliche männliche Personen zu erschiessen.... Ein schrecklicher Sonntag” (Order passed to shoot all the male inhabitants.... A frightful Sunday); “Ein schreckliches Blutbad” (A frightful blood-bath); “Sämtliche Rechtsnormen sind aufgelöst” (All the rules of law are cast to the winds). And nothing is more instructive than to observe how each lays the blame for the worst outrages upon the other, while incidentally admitting those of his own unit. One says, “It’s the infantry who are to blame”; another says, “The pioneers

are the worst and those brigands of artillerymen”; a third writes, “It’s all the fault of the transport.” The cumulative effect of these recriminations is to inculcate the whole.⁴²

German Credibility.

Quite apart from this inductive evidence there is the fact that the German Government is so tainted with the infamy of indisputable mendacity that no sober and impartial man can credit a single word of what it says. It has deliberately forged Belgian documents which have come into its possession in order to make out a case against the Belgian Government;⁴³ it has repeatedly broken faith with the British Government and the Vatican;⁴⁴ it has abused the Geneva Convention in order to make use of a hospital ship as an instrument of war.⁴⁵ Berlin itself is one great factory of lies, and its official Press service, to quote the words of our Ambassador, “a vast system of international blackmail.”⁴⁶ As is the Government, so are the people. Its merchants forge manifests and falsify bills of lading in order to secure the immunity of their property from capture at sea.⁴⁷ A journal under German control⁴⁸ has admitted that the stories of mutilation so industriously circulated by the German Government and its agents are entirely the product of hysterical “suggestion.” Often its pretexts are a shameless afterthought. In co-operation with the French authorities I was instrumental in tracking down a now notorious order issued by a German Brigadier-General to butcher all the wounded who fell into German hands. At first its authenticity was denied by the German Government, but, when it was established beyond doubt, they published a statement that a similar order had been issued by one of our own Generals some twelve months ago. The excuse was as belated as it was mendacious, and to this day not the slightest proof has been adduced in support of it.

The German authorities seem to suffer from a malady which can only be described as moral perversion. It is a kind of moral insanity. In defending the sinking of the *Lusitania* with its freight of innocent women and children the German Government wrote:

“The case of the *Lusitania* shows with horrible clearness to what jeopardising of human lives the manner of war conducted by our adversaries leads.”⁴⁹

This affectation of horror at the consequences of its own crimes and the imputation of the guilt of them to others is surely one of the most remarkable revelations of the moral obliquity of the German mind. Yet it by no means stands alone. The Proclamations, issued in Belgium, threaten the inhabitants with fire and sword, the scaffold and the firing-party, for the least infraction of the most trivial regulations, and then conclude with the aspersion that by such infraction they will commit “the horrible crime” of compromising the existence of a whole community and placing it “outside the pale of international law.”⁵⁰ The man who omits to put his hands up with acrobatic promptitude will “make himself guilty” of the penalty of death. All through the German utterances there runs an infatuated obsession that the Germans enjoy a kind of moral prerogative in virtue of which they are entitled to violate all the laws which they rigidly prescribe for others.⁵¹ We have lately had an example of this which is of supreme horror. The Power which has broken all laws, human and divine, sought to dignify its condemnation of Edith Cavell with all the pomp and circumstance of a tribunal of justice. While thousands of ravishers and spoilers go free, one woman, who had spent her life in ministries to such as were sick and afflicted, was handed over to the executioner. Truly, there has been no such trial in history since Barabbas was released and Christ led forth to the hill of Calvary.

The Guilt of the German People.

It is the fondest of delusions to imagine that all this blood-guiltiness is confined to the German Government and the General Staff. The whole people is stained with it. The innumerable diaries of common soldiers in the ranks which I have read betray a common sentiment of hate, rapine, and ferocious credulity.⁵² Again and again English soldiers have told me how their German captors delighted to offer them food in their famished state and then to snatch it away again. The progress of French, British, and Russian prisoners, civil as well as military, through Germany has been a

veritable Calvary.⁵³ The helplessness which in others would excite forbearance if not pity has in the German populace provoked only derision and insult.⁵⁴ The “old gentleman with a grey beard and gold spectacles” who broke his umbrella over the back of a Russian lady (the wife of a diplomatist), the loafers who boarded a train and under the eyes of the indulgent sentries poked their fingers in the blind eye of a wounded Irishman who had had half his face shot away, the men and women who spat upon helpless prisoners and threatened them with death, the guards who prodded them with bayonets, worried them with dogs, and dispatched those who could not keep up—these were not a Prussian caste, but the German people. What is to be thought of a people, one of whose leading journals publishes⁵⁵ with approval the letter of a German officer describing “the brilliant idea” (ein guter Gedanke) which inspired him to place civilians on chairs in the middle of the street of a town attacked by the French and use them as a screen for his men, in spite of their “prayers of anguish.”

New Russian Evidence.

This question of the culpability of the German people, civilians and soldiers in the ranks, as distinct from the German Government, is one of supreme importance, and I would like to draw the reader’s attention to the mass of unpublished evidence (from which some selections are given in Part VI. of the Documentary Chapter of this book) placed at my disposal by the Russian Embassy. In addition to the documents I have printed in that chapter—I refer the reader to No. 7 in particular—I will here quote the following unpublished deposition as to the conduct of the German guards in a prison camp. These barbarities, it should be remembered, were not done in the heat of action, but represent the leisurely amusement of guards whose only provocation was the helplessness of the famished men in their charge.

“In their leisure moments the German soldiers amused themselves with practical joking at the expense of the prisoners. They announced that an extra portion of food would be given out, and when the Russians hurried to the kitchen, a whole pack of dogs were let loose on them. The animals flew at the prisoners and dispersed them in all directions,

while the Germans looked on and roared with laughter. Sometimes the prisoners were offered an extra ladle of soup, or piece of bread if they would expose their backs to a certain number of blows with a whip. Our hungry and tormented soldiers often bought an extra piece of bread at this price, and it was thrown to them as if they had been dogs.”

The Germans appear in the case of the Russian, as in that of the British, Belgian, and French prisoners, to have taken a malignant and bestial delight in outraging their feelings of self-respect, and men were herded together day and night in cattle-trucks deep in manure, and forced to perform their natural functions where they stood, packed together so close that they could not sit and dared not lie down. At each station they were exhibited like a travelling menagerie to the curiosity and insult of the populace. The quality of mercy was not shown even where one might most expect to find it, namely, at the hands of the German surgeons and nurses who wore the Red Cross. Here is the deposition of Vasili Tretiakov:

“Having received no food for two days, the Russian prisoners, who fully expected to get some bread at this station, were gazing with hungry and longing looks into the distance, when they saw women dressed as Sisters of Mercy distributing bread and sausages to the German soldiers. One of these Sisters went up to the truck in which I was standing, and a Russian soldier at the door stretched out his hand for something to eat, but the woman simply struck it and smeared the soldier’s face with a piece of sausage. She then called all the prisoners ‘Russian swine’ and went away from the side of the train.”

Well may the Russian Government say in their covering communication that “the forms of punishment”—if we can speak of punishment when no offence had been committed—“remind one of the tortures of the Middle Ages.” Other documents in my possession recite how the prisoners were harnessed to ploughs and carts, like cattle, and lashed with long leather whips; how a man who fainted from exhaustion was immediately bayoneted, while another who fell out of the ranks to pick up a rotten turnip shared a like fate; how wounded men were forced to stand naked for hours in the frost until gangrene set in, tied up for hours to posts with their toes

just touching the ground until, the blood rising to the head, copious hæmorrhage took place from the nose, mouth, and ears; how yet others who, exhausted with hunger and fatigue, could not keep up on the march were bayoneted or clubbed where they lay. As for the conduct of the German populace let the following speak for itself:

“The peaceful inhabitants along the routes traversed in Germany showed the greatest hostility towards the prisoners, whom they reviled as ‘Russian swine and dogs.’ Women and even children threw stones and sand at them, and spat right in their faces.... Even the wounded men were not spared by these demented Germans who struck them, pulled their moustaches, and spat in their faces.”

The German Ideal—Europe in Chains.

The conception of the educated classes of Germany as to the future of Europe we have on record: it is to be a tributary Europe, vast satrapies of subject populations more rightless than the mediæval villein, their language proscribed, their liberties disfranchised, their commerce prohibited, their lands expropriated, hewers of wood and drawers of water for the conqueror. The ill-disguised slavery under which Belgium⁵⁶ and the occupied French Departments⁵⁷ groan to-day is to be perpetuated. The small nations of Europe are to exchange the protection of Europe for the suzerainty of Germany and to live under the German “shield.” Their territories are to be to Germany what the provinces were to Rome at her worst—great prædial estates, the peasantry of which are either to be “cleared” or to remain as the menials of the conqueror. The German dream is the dream of the Latin historian who sighed for more provinces to conquer in order that liberty might be “banished from the sight”⁵⁸ of those already under his heel. What Germany cannot annex she will ruin, so that borne down by heavy indemnities France shall never be able to lift her head again. Such are the “terms of peace” proclaimed by the German Professors, a body of men who, it should be remembered, in Germany hold their chairs at the pleasure of the State and are, in fact, a branch of the Civil Service. They therefore speak as men having authority.⁵⁹

A Moral Distemper.

I have been told that there are still some individuals in England who cherish the idea that this vast orgy of blood, lust, rapine, hate, and pride is in some peculiar way merely the *Bacchanalia* of troops unused to the heady bouquet of the wines of Champagne or, stranger still, that it is the mental aberration of a people seduced by idle tales into these courses by its rulers. It is no part of my task to find explanations. But if the reader is astonished, as well he may be, at the disgusting repetition of stories of rape and sodomy let him study the statistics of crime in Germany during the first decade of this century, issued by the Imperial Government; he will find in them much to confirm the impression that the whole people is infected with some kind of moral distemper.⁶⁰ The seduction of a people by its rulers is impossible; such hypnotic susceptibility to the influences of “suggestion” would, of itself, be a symptom of mental degeneration in the people itself. It is impossible to believe that the most highly educated nation in Europe is either so ignorant or so credulous as such an explanation would suggest. It is not in their ignorance but in their turpitude that the clue to these barbarities is to be found. This is a sombre fact which has to be faced or these appalling records will have been sifted and published in vain. The problem of explanation is ultimately one for the anthropologist rather than the lawyer, and there may be force in the contention of those who believe that the Prussian is not a member of the Teutonic family at all, but a “throw-back” to some Tartar stock. Certain it is that he exhibits an insensibility to the feelings of others which is only equalled by his extreme sensitiveness as to his own.⁶¹ This morbid insensibility is, of course, the secret of German “Terrorism,” and of the immense influence which it has exerted on the theory and practice of war among the German nation. It explains their singular ingenuity in finding means to an end, and between the German trooper who dips a baby’s head into scalding water in order to get more coffee from its mother⁶² to the commandant who at the point of the bayonet thrusts a living screen of priests, old men, and women with babes at the breast⁶³ between his own troops and those of the enemy there is a difference of degree rather than of kind. Similarly the dark passage in the German War Book which hints that there may be occasions on which it will be profitable to massacre prisoners of war reveals the same quality of mind as the order

to shoot helpless sailors who are struggling for their lives in the sea.⁶⁴ All things are lawful which are expedient, and if your enemy has ties of affection, the better he lends himself to your belligerent exploitation. *Mentem mortalia tangunt*—human things touch the heart—acquires for the German Staff a new and sinister significance. Every tender feeling that their enemy has becomes a hostage for his tractability, because it can be violated if he is contumacious. His churches can be profaned, his priests murdered, his boys driven into exile, his women-folk handed over to the lust of a licentious soldiery, and his home destroyed. If his troops defeat one in the field, the civilian population can be made to pay for it with their lives,⁶⁵ so that eventually he may be disarmed not by defeat but by horror. His own humanity will be his undoing. Not fear but anguish will bring him to his knees.

This is the German doctrine, secreted in the pages of many a German manual,⁶⁶ and now published to the world in the German Proclamations and the evil deeds which they both excuse and provoke. This it is which has made the German nation, in the words of Lord Rosebery, “the enemy of the human race,” and has caused the very name of this bestial and servile people to stink in the nostrils of mankind.

IV

THE FUTURE OF INTERNATIONAL LAW AND THE QUESTION OF RETRIBUTION

The Dissolution of Europe.

Many years ago the most distinguished of the modern school of French historians wrote a remarkable essay on the subject of “Diplomacy and Progress.”⁶⁷ He knew Europe as few had known it; he had spent his life in its chancelleries and its archives, and his wisdom was only equalled by his knowledge, for he had studied not only books but men. In that essay he

speculated as to the effect of the progress of mechanical invention in the arts of war upon the prospects of European peace, and he confessed to a mournful depression. But the source of his apprehension was not Europe but Asia. He foresaw the possibility of some potent Oriental nation awaking from its secular meditations and applying itself in a single generation to an apprenticeship in those mechanical arts which are no longer the peculiar mystery and the prerogative of the Western world. A nation thus acquiring the destructive resources of the West, while retaining the peculiar morality of the East—its ruthlessness, its contempt for human life, its sombre fatalism, its indifference to personal liberty, its chicanery, its love of espionage—might, he apprehended, fall upon Europe in a catastrophic assault as unforeseen as it would be unprovoked, and threaten her with destruction.

The catastrophe has fallen, but the foes of Europe have been those of her own household, and we have discovered with a shock of dismay that the comity of European nations has harboured a Power which is European in nothing but in name, and is more completely alien to Western ideals than the tribes of Afghanistan. A hybrid nation of this type which is intellectual without being refined, which can discipline its mind but cannot control its appetites, which can acquire the idiom of Europe and yet retain the instincts of Asia or rather of some pre-Asiatic horde, presents the greatest problem that has ever perplexed the civilisation of man. It is like an intellectual savage who has learnt the language and studied the dress and deportment of polite society, but all the while nurtures dark atavisms and murderous impulses in the centres of his brain. The subtle danger of the presence of such a nation in the European comity is that it uses the language of that international society, and yet all the while means something different, and that with every appearance of solemn subscription to its forms and treaties it is making mental reservations and “economies” which strike at the very root of them.

The Casuistry of the Intellectual Savage.

In the hands of such a nation an international convention is not merely idle and impotent; the convention itself becomes positively dangerous, simply

because it can be perverted. It can be used to invest the most barbarous acts with a specious plausibility, and can be turned against the very people whom it was designed to protect. Any one who takes the trouble to study the official proclamations of the German military authorities, or the introductory memorandum to the German White Book, cannot fail to be struck by this. A civilian who fires on the enemy forfeits under international law the privileges of a non-combatant. The rule means as much as it says, and no more; it does not impose on a civil community the obligation to prove that it is a non-combatant. But in nine out of ten German proclamations the rule is invoked as an excuse for involving a whole community in responsibility with their lives for the acts or omissions, real or alleged, of single individuals—"the innocent will suffer with the guilty"⁶⁸—and the "law of nations" is invoked to put a whole population "outside the pale" of it.⁶⁹ At one stroke we are carried back to the days of the blood-feud and of vicarious punishment, and the law of nations is perverted from an instrument of progress to an organon of bloody sophistries. So, too, the Hague Convention which requires that requisitions of supplies should not be made without giving receipts is observed in the letter and violated in the spirit; receipts are given, but they are forged. The obligation of a treaty guaranteeing the neutrality of Belgium is admitted, but a false charge and a falsified document is advanced to justify its breach. A brigade order to kill all prisoners is first denied, and then when denial becomes futile, a fictitious order of a prior date is alleged against us in order to dignify the real order with the sanction of "reprisals." Defenceless merchantmen are attacked and sunk at first sight, and then when they carry guns for their protection their precautions for defence are used as a retrospective pretext for attack. The same curious casuistry is invoked to excuse the attacks on Scarborough and London, and the Hague Convention is interpreted, in defiance of its authors, to support the plea that whatever barbarity is not expressly prohibited is thereby condoned.

Germany as a Moral Pervert.

It is this terrible perversion, this prostitution of words until, to quote a classical expression of Thucydides, they have lost their meaning in relation to things, that seems to me the most intractable problem that we have to

face. To my mind it is this pathological aspect of the German temperament which presents a far more serious obstacle to a restoration of the European comity based on the readmission of Germany to membership than the German dogma of war. You may, perhaps, extirpate a dogma but you cannot alter a temperament. To regard Germany as the misguided pupil of a military caste which alone stands in the way of her reformation seems to me to ignore the volume of evidence as to the complicity of officers and men in those orgies of outrage. I cannot avoid the conclusion that the whole people is infected with a kind of moral distemper.

“Look, Madame,” said a German soldier to a French woman who witnessed the execution of three poor travellers who with their hands tied behind their backs with napkins were led into a field close to her house and shot by six soldiers under the command of a German officer, “Look! isn’t it fine! See them shoot some French civilians. A fine feat that! All the others ought to be killed in the same way.”⁷⁰

The sentiment is typical; German diaries are full of such things. Nor is it reasonable to suppose that the kind of teaching which has made Clausewitz and Treitschke and Bernhardi the gospel of the German people, and has found authoritative expression in the German War Book, could have commanded the prestige which it does command in Germany if it had not found a people apt and eager by temperament to receive it. Germany stands alone among modern nations in extending its official conception, and even its academic analysis⁷¹ of war, to include the deliberate “terrorization” of non-combatants. She alone has taught, both by precept and example, that there are no limitations to what is justifiable by the exigencies of war. “*C’est la guerre*” is the common answer of German officers when implored by the victims to stop the lust and rapine of their men.⁷² It follows from all this that war as taught and practised by the Germans exceeds in savagery even the practices of the ancient world, in which it was thought the mark of barbarism to poison wells, desecrate temples and murder priests—practices which the Germans have not hesitated to pursue. Incitement to assassination, which was thought a mean and dishonourable thing by the Roman mind,⁷³ is specifically recommended in the German War Book.

In the ancient world the vanquished were regarded as rightless, and whole populations were sold into slavery after they had been decimated by the slaughter of their leading citizens. The German practice is not intrinsically different; municipal magistrates, parish priests, and one in three of the civil population have been butchered, many civilians carried off to Germany to work in the fields, and those who are left behind forced to dig trenches for their captors while their wives and daughters are handed over to the lust of the soldiery, and their movable property transported. It is difficult to see how this differs in anything but name from the tragic fate of those unhappy communities who in the laconic phrase of the ancient world passed *sub corona* and were sold by auction. All this differs from the practices of the ancient world in nothing except a certain affectation, the one concession to modern sentiment being a studious defamation by the Germans of the people whom they ravish and despoil. It seems to me that bad as the German crimes are the German justification for them is even worse. For it betrays a real corruption of mind. The ancients were often brutal but they were never hypocritical.

The Bankruptcy of The Hague Conventions.

What hope then can there be of a restoration of the comity of European nations, and the re-establishment of the Hague Conventions? I confess I can see none. The German Empire was conceived in duplicity and brought forth in war, and three times within living memory, as Sir Edward Grey has reminded us, she has wantonly provoked war in Europe in pursuance of her predatory designs. I can see no way out of the present travail except an armed peace, with the elimination as its basis for a long time to come of Germany from the councils of Europe. What hope of understanding can there be with a nation which does not observe the ordinary rules of diplomatic intercourse, that *jus fetiale* which even the ancient world regarded as sacred? The world has seen with stupefaction—there has, I think, been no such case for hundreds of years—the Ambassador of the Austrian Government taking advantage of his immunities and sovereign character to suborn seditious conspiracy in the State to which he was accredited?⁷⁴ It is difficult to believe that this case now stands alone. Conventions with such a Power are both a delusion and a snare. They

delude us with an appearance of agreement where none exists. In unscrupulous hands, the more precise and technical they are, the more do they lend themselves to casuistry, adding, as some one has said, the terrors of law to the horrors of war. I am afraid that such conventions are now hopelessly discredited. I doubt if we shall hear very much in future of the distinction between combatants and non-combatants, or of the sanctity of the *levée en masse* as a medium of lawful transition from the one to the other; he who studies the German White Book on hostilities in Belgium will see how easily a belligerent, if he be so minded, can dispose with a quibble of the obligations to respect an improvised force which has “no time” to organise. A belligerent contemplating a sudden attack and a belligerent having to meet it will entertain very different conceptions as to what is meant by “no time.” War has, indeed, come to be, as von der Goltz prophesied it would be, a war not between armies but between peoples, and we are further than ever from the oft-quoted maxim of Rousseau that “War is not a relation of Man to Man but of States to States,” in which particular individuals are enemies only by the accident of a uniform. That was the voice of Individualism; but States grow more and more collectivist, and never so collectivist as in war. If, as an eminent writer has remarked, “out of the inner life of a nation comes its foreign policy,” so, we may add, out of its municipal law, its military usages, and its economic necessities will come its construction of international law.

The Effect on International Law.

It surely cannot be too clearly recognised that Germany’s successive violations of the laws of war have brought the whole fabric down like a house of cards. When the Germans began to sink neutral merchantmen by way of vindicating what they were pleased to call the freedom of the seas, England was forced to jettison much of that famous Declaration of London, which seemed at one time to be as complete an expression of a consensus of international opinion as the world of jurists had yet attained. We have gone further, as we were bound to do, and have so extended the theory of blockade as to qualify very considerably the Declaration of Paris. The Foreign Office has supported these departures by the logic of reprisals—in my humble opinion very properly—but “reprisals” are, juridically speaking,

a kind of counsel of despair. In books on international law they receive a kind of shame-faced recognition; their place is always at the end and the chapter devoted to them is often brief and generally apologetic. For the jurist knows that they partake of the character of law about as much as trial by battle. The voice of America is a voice crying in the wilderness; both groups of belligerents deny the American contention that peace, and with it the commerce of neutrals, should govern the construction of the rules of war. How can it be otherwise in a struggle for existence? I very much doubt whether, for a long time to come, international lawyers can afford to assume, as they have been in the habit of doing, that peace, not war, is the normal conditions of nations. A nation which like Germany will not admit your major premises will certainly reject your conclusions when it suits her convenience. The dilemma therefore is inexorable: we can readmit Germany to international society and lower our standard of International Law to her level, or we can exclude her and raise it. There is no third course.

These are the hard facts to which any one who attempts to take stock of the present situation and immediate prospects of International Law must address himself. International Law rests on a reciprocity of obligation; if one belligerent fails to observe it the other is, as a mere matter of self-preservation, released from its observance towards him, and is bound not by law but by morality, by his own conception of what he owes to his own self-respect. It is well that our own conception has been rather in advance of International Law than behind it, and long may it so remain. But in proportion as our conception is high and the German conception is low, it seems to me incumbent on us to place our hopes for the future in the strength of our right arm and in that alone. And if, in Burke's noble phrase, we are to consider ourselves for the future "embodied with Europe" so that, sympathetic with the adversity or the happiness of mankind, we feel that nothing human is alien to us, then we must be prepared to support our treaty guarantees of the independence of the small nations with an adequate armed force; otherwise they will regard our friendship as an equivocal and compromising thing. If we are to offer them the protection of Europe in place of the suzerainty of Germany, we must be in a position to honour our promissory notes or they will indeed be but a scrap of paper—a cruel and otiose encouragement to the weak to defy the strong.

The German as Outlaw.

As for Germany, I can see little hope except in a sentence of outlawry. Mere black-listing of the names of responsible German commanders, although worth doing (and I have reason to believe that at the French War Office it is being done) with a view to retribution, is not going to change the German character. We shall have to revise our notions of both municipal and international law as regards her. The tendency of English law has long been, as an acute jurist has pointed out,⁷⁵ to lay more emphasis on domicile than on nationality, the disabilities of the alien have been diminished almost to vanishing-point, and British citizenship itself could be had almost for the asking. Not of it need the alien knocking at our hospitable doors say, in the words of the chief captain, "With a great sum obtained I this freedom." It has been made disastrously cheap. All that is likely to be changed. It is not a little significant that already the courts have begun to take judicial notice of the peculiar morality of the German and have expressly made it the basis of a decision extending the conception of what constitutes a prisoner of war.⁷⁶ And alone among the emergency legislation the drastic Aliens Act is not limited in its preamble, as are the other Acts, to the duration of the war. These things are portents. It is impossible to believe that a revolution more catastrophic than anything through which Europe has passed, a revolution beside which the French Revolution assumes the proportions of a storm in a tea-cup, can leave our conceptions of law, whether municipal or international, unchanged.

Conclusion.

I make no apology, and I trust that none is needed, for these speculations. Reports of atrocities can serve no useful purpose unless they move men to reflect no less resolutely than deeply upon what is to be done to deliver Europe from the scourge of their repetition. It may well be that my own reflections will seem cynical to one, depressing to another, arbitrary to a third. They are not the idols of the theatre, and in academic circles they may

not be fashionable. But the catastrophe that has disturbed the dreams of the ideologues must teach jurists and statesmen to beware of the opiate of words and sacramental phrases. That, however, is a task which belongs to the future. The immediate enterprise is not for lawyers but for our gallant men in the field. They, and they alone, can lay the foundations of an enduring peace by an unremitting and inexorable war. They are the true ministers of justice.

CHAPTER II

THE BRITISH ENQUIRY IN FRANCE

IN November of last year I was commissioned by the Secretary of State for Home Affairs to undertake the investigation in France into the alleged breaches of the laws of war by the German troops, the inquiries in England being separately conducted by others. The results of my investigation were communicated to the Home Office, in the form of confidential reports and of depositions, diaries, proclamations, and other *pièces justificatives*, and were in turn submitted to the Committee appointed by the Prime Minister and presided over by Lord Bryce. The Committee made liberal use of this material, but, owing to the exigencies of space and the necessity of selection, some of it remains unpublished, and I now propose to place it and the conclusions I draw from it before the public. Some part of it, and that part the most important—namely, that which establishes proofs of a deliberate policy of atrocity by responsible German officers—came into my hands too late for use by the Committee. Moreover, the Committee felt that their first duty was to Belgium, and consequently the portion of the inquiry which related to France, and in particular to outrages upon British soldiers in France, occupies a comparatively small place in their publications. In this article I therefore confine myself to the latter branch of the inquiry, and the reader will understand that, except where otherwise stated, the documents here set out are now published for the first time.⁷⁷

My investigations extended over a period of four or five months. The first six weeks were spent in visiting the base hospitals and convalescent camps at Boulogne and Rouen, and the hospitals at Paris; during the remaining three months I was attached to the General Headquarters Staff of the British Expeditionary Force. In the course of my inquiries in the hospitals and camps I orally interrogated some two or three thousand officers and

soldiers,⁷⁸ representing almost every regiment in the British armies and all of whom had recently been engaged on active service in the field. The whole of these inquiries were conducted by me personally, but my inquiries at headquarters were of a much more systematic character. There, owing to the courtesy of Lieutenant-General Sir Archibald Murray, the late Chief of the General Staff, I had the assistance of the various services—in particular the Adjutant-General, the Provost-Marshal, the Director of Military Intelligence, the Director of Medical Services and their respective staffs—and also of the civil authorities, within the area at present occupied by the British armies, such as the sous-prefets, the procureurs de la République, the commissaires de police, and the maires of the communes. In this way I was enabled not only to obtain corroboration of the statements taken down in the base hospitals in the earlier stages of my inquiry, but also to make a close local study of the behaviour of the German troops towards the civil population during their occupation of the districts recently evacuated by them.⁷⁹ In pursuance of this latter inquiry I visited every town and commune of any importance now in our occupation and lately occupied by the Germans, including places within a few hundred yards of the German lines. As regards the conduct of the German troops in the earlier stages of the campaign and in other parts of France, I confined my inquiries to incidents which actually came under the observation of our own troops during or after the battles of Mons, the Marne, and the Aisne, and did not extend them to include the testimony of the French civil authorities, as I did not consider it part of my duty to attempt to do what was already being done by the Commission of Inquiry instituted by the President of the Council. But I freely availed myself of opportunities of corroboration of English evidence from French sources where such sources were readily accessible, and, by the courtesy of the French Ministry of War, who placed a Staff officer and a military car at my disposal, I was enabled to go over the ground to the north-east of Paris covered by our troops in their advance to the Aisne and to obtain confirmation of many incidents already related to me by British officers and soldiers. It was also my privilege frequently to meet M. Mollard, of the French Commission, and to examine for myself the depositions on oath and *pièces justificatives* on which the first Reports of the Commission are based, and which are as yet unpublished. In these different ways I have been enabled to obtain an extensive view of the whole

field of inquiry and to arrive at certain general conclusions which may be of some value.

Methods of Enquiry.

My method of inquiry was twofold—I availed myself of both oral evidence and written evidence. As regards the former, the evidence taken at the base hospitals was wholly of this character. The method which I adopted in taking it was as follows:

I made it a rule to explain to the soldier or officer at the outset that the inquiry was an official one, and that he must be prepared to put his name to any testimony he might elect to give.

I allowed the soldier to tell his story in his own way and in his own words, but after, or in the course of, the recital, I always cross-examined him as to details, inquiring in particular (1) whether he directly witnessed the event himself; (2) what was the date and place of the occurrence—to establish these I have frequently gone over the operations with the witness with the aid of a military map and a diary of the campaign; (3) whether, in the case of hearsay evidence, he heard the story direct from the subject of it, and, in particular, whether he was versed in the language employed; (4) whether he could give me the name of any person or persons with him, particularly officers, who also witnessed the event or heard the story.

After such cross-examination I then took down the narrative, if satisfied that it possessed any value, read it over to the soldier, and then obtained his signature. This, however, was often only the first stage, as I have not infrequently been able to obtain confirmation of the evidence so obtained by subsequent inquiries at General or Divisional Headquarters, either among members of the staff or from company officers or from the civil authorities. For example, hearsay evidence of rape (and I always regarded such evidence as inconclusive of itself) tendered to me by soldiers at the base hospitals received very striking confirmation in the depositions of the victims on oath which had been taken by the civil authorities at Bailleul, Metteren, and elsewhere, and which were subsequently placed at my

disposal. Personal inquiries made by me among the maires and curés of the communes where particular incidents were alleged to have occurred resulted in similar confirmation. So, too, the Indian witnesses whom I examined at the base hospital were at my request subsequently re-examined, when they had rejoined their units, by the Intelligence Officers attached to the Indian Corps, and with much the same results. Corroborative evidence as to a policy of discrimination practised by the German officers in favour of Indians was also obtained from the record of statements volunteered by a German prisoner of the 112th Regiment and placed at my disposal by our Intelligence Officers.

The general impression left in my mind by these subsequent inquiries at head-quarters as to the value of the statements made to me earlier by soldiers in hospital is that those statements were true. There is a tendency in some quarters to depreciate the value of the testimony of the British soldier, but the degree of its value depends a good deal on the capacity in which, and the person to whom, the soldier is addressing himself. In writing letters home or in talking to solicitous visitors the soldier is one person; in giving evidence in an official inquiry he is quite another. I have had opportunities when attending field courts-martial of seeing something of the way in which soldiers give evidence, and I see no reason to suppose that the soldier is any less reliable than the average civilian witness in a court of common law. Indeed, the moment I made it clear to the soldiers that my inquiry was an official one they became very cautious and deliberate in their statements, often correcting themselves or referring to their diaries (of which they usually take great care), or qualifying the narration with the statement "I did not see it myself." It need hardly be said that these observations as to the credibility of the soldiers apply no less to that of the officers. And it is worthy of remark that, apart from individual cases of corroboration of a soldier's evidence by that of an officer, the burden of the evidence in the case of each class is the same. Where officers do not testify to the same thing as the soldiers, they testify to similar things. The cumulative effect produced on my mind is that of uniform experience.

I have often found the statements so made subsequently corroborated; I have rarely, if ever, found them contradicted. I ascribe this result to my having applied rigid rules as to the reception of evidence in the first

instance. I have always taken into account the peculiar receptivity of minds fatigued and overwrought by the strain of battle to the influences of “suggestion,” whether in the form of newspapers or of oral gossip. It sometimes, but not often, happened that one could recognise the same story in a different investiture, although appearing at first sight to be a different occurrence. Or, again, it may happen that a story undergoes elaboration in the process of transmission until it looks worse than it originally was. So, too, a case of apparent outrage may admit of several explanations; it may happen, for example, in the case of a suspicious use of the white flag that the act of one party of Germans in raising it and of another party in taking advantage of it were conceivably independent of one another. Cases of the shelling of “undefended” places, of churches, and of hospitals, I have always disregarded if our men or guns were or lately had been in the vicinity; and it may easily happen that a case of firing on stretcher-bearers or ambulance waggons is due to the impossibility of discrimination in the midst of a general engagement. Wherever any of these features appeared to be present I rejected the evidence—not always nor necessarily because I doubted its veracity, but because I had misgivings as to its value.

Outrages upon Combatants in the Field.

Lord Bryce’s Committee, with that scrupulous fairness which so honourably distinguishes their Report, have stated that:

“We have no evidence to show whether and in what cases orders proceeded from the officer in command to give no quarter, but there are some instances in which persons obviously desiring to surrender were nevertheless killed.”

This is putting the case with extreme moderation, as the evidence at the disposal of the Committee, showing, as it did, that such barbarities were frequently committed when the German troops were present in force, raised a considerable presumption that they were authorised by company and platoon commanders at least, if not in pursuance of brigade orders. But after the Committee had concluded its labours, and, unfortunately, too late for its

consideration, I succeeded, as the result of a long and patient investigation, in obtaining evidence which establishes beyond reasonable doubt that the outrages upon combatants in the field were committed by the express orders of responsible officers such as brigade and company commanders. The nature of that evidence (which is here published for the first time) I will disclose in a moment. But before doing so I will present the conclusions I had previously arrived at by a process of induction from individual cases. It will then be seen how the deductive method of proof from the evidence of general orders confirms the presumption raised by the evidence of particular instances.

A German military writer of great authority⁸⁰ predicted some years ago that the next war would be one of inconceivable violence. The prophecy appears only too true as regards the conduct of German troops in the field; it has rarely been distinguished by that chivalry which is supposed to characterise the freemasonry of arms. One of our most distinguished Staff officers remarked to me that the Germans have no sense of honour in the field, and the almost uniform testimony of our officers and men induces me to believe that the remark is only too true. Abuse of the white flag has been very frequent, especially in the earlier stages of the campaign on the Aisne, when our officers, not having been disillusioned by bitter experience, acted on the assumption that they had to deal with an honourable opponent. Again and again the white flag was put up, and when a company of ours advanced unsuspectingly and without supports to take prisoners, the Germans who had exhibited the token of surrender parted their ranks to make room for a murderous fire from machine-guns concealed behind them. Or, again, the flag was exhibited in order to give time for supports to come up. It not infrequently happened that our company officers, advancing unarmed to confer with the German company commander in such cases, were shot down as they approached. The Camerons, the West Yorks, the Coldstreams, the East Lancs, the Wiltshires, the South Wales Borderers, in particular, suffered heavily in these ways. In all these cases they were the victims of organised German units, *i.e.* companies or battalions, acting under the orders of responsible officers.

There can, moreover, be no doubt that the respect of the German troops for the Geneva Convention is but intermittent.⁸¹ Cases of deliberate firing on

stretcher-bearers are, according to the universal testimony of our officers and men, of frequent occurrence. It is almost certain death to attempt to convey wounded men from the trenches over open ground except under cover of night. A much more serious offence, however, is the deliberate killing of the wounded as they lie helpless and defenceless on the field of battle. This is so grave a charge that were it not substantiated by the considered statements of officers, non-commissioned officers, and men, one would hesitate to believe it. But even after rejecting, as one is bound to do, cases which may be explained by accident, mistake, or the excitement of action, there remains a large residuum of cases which can only be explained by deliberate malice. No other explanation is possible when, as has not infrequently happened, men who have been wounded by rifle fire in an advance, and have had to be left during a retirement for reinforcements, are discovered, in our subsequent advance, with nine or ten bayonet wounds or with their heads beaten in by the butt-ends of rifles. Such cases could not have occurred, the enemy being present in force, without the knowledge of superior officers. Indeed, I have before me evidence which goes to show that German officers have themselves acted in similar fashion. Some of the cases reveal a leisurely barbarity which proves great deliberation; cases such as the discovery of bodies of despatch-riders burnt with petrol or "pegged out" with lances, or of soldiers with their faces stamped upon by the heel of a boot, or of a guardsman found with numerous bayonet wounds evidently inflicted as he was in the act of applying a field dressing to a bullet wound. There also seems no reason to doubt the independent statements of men of the Loyal North Lancs, whom I interrogated on different occasions, that the men of one of their companies were killed on December 20th after they had surrendered and laid down their arms.⁸² To what extent prisoners have been treated in this manner it is impossible to say; dead men tell no tales, but an exceptionally able Intelligence Officer at the head-quarters of the Cavalry Corps informed me that it is believed that when British prisoners are taken in small parties they are put to death in cold blood. Certain it is that our men when captured are kicked, robbed of all they possess, threatened with death if they will not give information, and in some cases forced to dig trenches. The evidence I have taken from soldiers at the base hospitals on these points is borne out by evidence taken at the Front immediately after such occurrences by the Deputy Judge-Advocate General, an Assistant Provost-Marshal, and a captain in the

Sherwood Foresters, and in the opinion of these officers the evidence which they took, and which they subsequently placed at my disposal, is reliable.⁸³

The Proofs of Policy.

The question as to how far these outrages are attributable to policy and superior orders becomes imperative. It was at first difficult to answer. For a long time I did not find, nor did I expect to find, any documentary orders to that effect. Such orders, if given at all, were much more likely to be verbal, for it is extremely improbable that the German authorities would be so unwise as to commit them to writing. But the outrages upon combatants were so numerous and so collective in character that I began to suspect policy at a very early stage in my investigations. My suspicions were heightened by the significant fact that exhaustive inquiries which I made among Indian native officers and men in the hospital ships in port at Boulogne, and at the base hospitals, seemed to indicate that experiences of outrage were as rare among the Indian troops as they were common among the British. The explanation was fairly obvious, inasmuch as many of these Indian witnesses who had fallen into German hands testified to me that the German officers⁸⁴ seized the occasion to assure them that Germany was animated by the most friendly feelings towards them, and more than once dismissed them with an injunction not to fight against German troops and to bring over their comrades to the German side. For example, a sepoy in the 9th Bhopals testified to me as follows:

“I and three others were found wounded by the Germans. They bound up our wounds and invited us to join them, offering us money and land. I answered, ‘I, who have eaten the King’s salt, cannot do this thing and thus bring sorrow and shame upon my people.’ The Germans took our chupattis, and offered us of their bread in return. I said, ‘I am a Brahmin and cannot touch it.’ They then left us, saying that if we were captured again they would kill us.”

There was other evidence to the same effect. Eventually I obtained proofs confirming my suspicions, and I will now proceed to set them out.

On May 3rd I visited the Ministry of War in Paris at the invitation of the French military authorities, and was received by M. le Capitaine René Petit, Chef de Service du Contentieux, who conducted me to the department where the diaries of German prisoners were kept. I made a brief preliminary examination of them, and discovered the following passage (which I had photographed) in the diary of a German N.C.O., Göttsche, of the 85th Infantry Regiment (the IXth Corps), fourth company detached for service, under date “Okt. 6, 1914, bei Antwerpen”:

“Der Herr Hauptmann rief uns um sich und sagte: ‘In dem Fort, das zu nehmen ist, sind aller Wahrscheinlichkeit nach Engländer. Ich wünsche aber keinen gefangenen Engländer bei der Komp. zu sehen.’ Ein allgemeiner Bravo der Zustimmung war die Antwort.”

(“The Captain called us to him and said: ‘In the fortress [*i.e.*, Antwerp] which we have to take there are in all probability Englishmen. But I do not want to see any Englishmen prisoners in the hands of this company.’ A general ‘Bravo’ of assent was the answer.”)

This malignant frenzy against British troops, so carefully instilled, is borne out by a passage in another diary, now in the possession of the French Ministry of War, which was found on April 22nd on the body of Richard Gerhold, of the 71st Regiment of Infantry of the Reserve, Fourth Army Corps, who was killed in September at Novvron:

“Auch hier kommen ja Sachen vor, was auch nicht sein darf, kommt aber doch vor. Grosse Greultaten kommen natürlich an Engländern und Belgiern vor. Nun da wird eben jeder ohne Gnaden niedergeknallt, aber wehe dem armen Deutschen der in ihre Hände kommt....”

(“Here also things occur which should not be. Great atrocities are of course committed upon Englishmen and Belgians; every one of them is now knocked on the head without mercy. But woe to the poor German who falls into their hands.”)

As regards the last sentence in this diary, which is one long chapter of horrors and betrays a ferocious credulity, it is worthy of remark that I have seen at the French Ministry of War the diary⁸⁵ of a German N.C.O., named

Schulze, who, judging by internal evidence, was a man of exceptional intelligence, in which the writer refers to tales of French and Belgian atrocities circulated among the men by his superior officers. He shrewdly adds that he believes the officers invented these stories in order to prevent him and his comrades from surrendering.

A less conclusive passage, but a none the less suspicious one, is to be found in a diary now in my possession. It is the diary of an Unter-offizier, named Ragge, of the 158th Regiment, and contains (under date October 21st) the following:

“Wir verfolgten den Gegner soweit wir ihn sahen. Da haben wir machen Engländer abgeknallt. Die Engländer lagen wie gesäht am Boden. Die noch lebenden Engländer im Schützengraben wurden erstochen oder erschossen. Unsere Komp. machte 61 Gefangene.”

Which may be translated:

“We pursued the enemy as far as we saw him. We ‘knocked out’ many English. The English lay on the ground as if sown there. Those of the Englishmen who were still alive in the trenches were stuck or shot. Our company made 61 prisoners.”⁸⁶

So far I have only dealt with the acts of small German units—*i.e.* companies of infantry. I now come to the most damning proofs of a policy of coldblooded murder of wounded and prisoners, initiated and carried out by a whole brigade under the orders of a Brigadier-General. This particular investigation took me a long time, but the results are, I think conclusive. It may be remembered that some months ago the French military authorities published in the French newspapers what purported to be the text of an order issued by a German Brigadier-General, named Stenger, commanding the 58th Brigade, in which he ordered his troops to take no prisoners and to put to death without mercy every one who fell into their hands, whether wounded and defenceless or not. The German Government immediately denounced the alleged order as a forgery. I determined to see whether I could establish its authenticity, and in February last I obtained a copy of the original from M. Mollard, of the Ministry of Foreign Affairs, who is a

member of the Commission appointed by the French Government to inquire into the alleged German atrocities. The text of that order was as follows:

“Befehl (Armee-befehl) vom 26. Aug. 1914, gegen 4 Uhr nachm. wie er von Führer der 7 Komp. Reg. 112 (Infant.) bei Thionville, am Eingang des Waldes von Saint-Barbe, seinen Truppen als Brigade-oder Armee-befehl gegeben wurde:

“Von heute ab werden keine Gefangene mehr gemacht Sämtliche Gefangene werden niedergemacht. Verwundete ob mit Waffen oder wehrlos niedergemacht. Gefangene auch in grösseren geschlossenen Formationen werden niedergemacht. Es bleibt kein Mann lebend hinter uns.”

(“Army Order of 26 Aug., 1914, about 4 p.m., such as was given to his troops as a Brigade or Army Order by the leader of the 7th Company of the 112th Regiment of Infantry at Thionville, at the entrance of the wood of Saint Barbe.

“To date from this day no prisoners will be made any longer. All the prisoners will be executed. The wounded, whether armed or defenceless, will be executed. Prisoners, even in large and compact formations, will be executed. Not a man will be left alive behind us.”)

Taking this alleged order as my starting-point, I began to make inquiries at British Head-quarters as to the existence of any information about the doings of the 112th Regiment. I soon found that there was good reason to suspect it. Our Intelligence Department placed in my hands the records of the examination of two men of this regiment who had been captured by us. One of them volunteered a statement to one of our Intelligence Officers on November 23rd to the effect that his regiment had orders to treat Indians well, but were allowed to treat British prisoners as they pleased. This man's testimony appeared to be reliable, as statements he made on other points, *i.e.*, as to the German formations, were subsequently found to be true, and his information as to discrimination in the treatment of Indians entirely bore out the conclusions I had already arrived at on that particular point. The German witness in question further stated that 65 out of 150 British prisoners were killed in cold blood by their escort on or about October 23rd

on the road to Lille, and that the escort were praised for their conduct. Other German prisoners have, I may add, also made statements that they had orders to kill all the English who fell into their hands.

The evidence of this man of the 112th Regiment was as explicit and assured as it could be. But the matter did not stop there. At a later date an officer of the same regiment fell into our hands, in whose field note-book we found the memorandum “Keine Gefangene” (“No prisoners”). He was immediately cross-examined as to the meaning of this passage, but he had a plausible explanation ready. It was to the effect that his men were not to make the capture of prisoners a pretext for retiring with them to the rear; but, having disarmed them, were to leave them to be taken back by the supports.

But at the end of April—too late, unfortunately, for use by Lord Bryce’s Committee—one of our Intelligence Officers placed before me the following entry in the field note-book of a German prisoner, Reinhart Brenneisen,⁸⁷ reservist, belonging to the 4th Company, 112th Regiment, and dated in August (the same month as appears on the face of the order in question):

“Auch kam Brigadebefehl sämtliche Franzosen ob verwundet oder nicht, die uns in die Hände fielen, sollten erschossen werden. Es dürfte keine Gefangenen gemacht werden.”

(“Then came a brigade order that all French, whether wounded or not, who fell into our hands, were to be shot. No prisoners were to be made.”)

This, I think, may be said to put the reality of the brigade order in question beyond doubt.

The cumulative effect of this evidence, coupled with the statements of so many of our men who claim to have been eye-witnesses of wholesale bayoneting of the wounded, certainly confirms suspicions of the gravest kind as to such acts having been done by authority. Neither the temperament of the German soldier nor the character of German discipline (*furchtbar streng*—“frightfully strict”—as a German prisoner put it to me)

makes it probable that the German soldiers acted on their own initiative. It would, in any case, be incredible that so many cases of outrage could be sufficiently explained by any law of averages, or by the idiosyncrasies of the “bad characters” present in every large congregation of men.

Treatment of Civil Population.

The subject-matter of the inquiry may be classified according as it relates to: (1) ill-treatment of the civil population, and (2) breaches of the laws of war in the field. As regards the first it is not too much to say that the Germans pay little respect to life and none to property. I say nothing of the monstrous policy of vicarious responsibility laid down by them in the Proclamations as to the treatment of hostages which I forwarded to the Committee and which I left to the Committee to examine; I confine myself to the practices which have come under my observation.⁸⁸ Here it is clear that the treatment of civilians is regulated by no more rational or humane policy than that of intimidation or, even worse, of sullen vindictiveness. As the German troops passed through the communes and towns of the arrondissements of Ypres, Hazebrouck, Bethune, and Lille, they shot indiscriminately at the innocent spectators of their march; the peasant tilling his fields, the refugee tramping the roads, and the workman returning to his home. To be seen was often dangerous, to attempt to escape being seen was invariably fatal. Old men and boys and even women and young girls were shot like rabbits. The slightest failure to comply with the peremptory demands of the invader has been punished with instant death. The curé of Pradelle, having failed to find the key of the church tower, was put against the wall and shot; a shepherd at a lonely farmhouse near Rebais who failed to produce bread for the German troops had his head blown off by a rifle; a baker at Moorslede who attempted to escape was suffocated by German soldiers with his own scarf; a young mother at Bailleul who was unable to produce sufficient coffee to satisfy the demands of twenty-three German soldiers had her baby seized by one of the latter and its head dipped in scalding water; an old man of seventy-seven years of age at La Ferté Gaucher who attempted to protect two women in his house from outrage was killed with a rifle shot.

I select these instances from my notes at random—they could be multiplied many times—as indications of the temper of the German troops. They might, perhaps, be dismissed as the unauthorised acts of small patrols were it not that there is only too much evidence to show that the soldiers are taught by their superiors to set no value upon human life, and things have been done which could not have been done without superior orders. For example, at Bailleul,⁸⁹ La Gorgue, and Doulieu, where no resistance of any kind was offered to the German troops, and where the latter were present in force under the command of commissioned officers, civilians were taken in groups, and after being forced to dig their own graves were shot by firing parties in the presence of an officer. At Doulieu,⁹⁰ which is a small village, eleven civilians were shot in this way; they were strangers to the place, and it was only by subsequent examination of the papers found on their bodies that some of them were identified as inhabitants of neighbouring villages. If these men had been guilty of any act of hostility it is not clear why they were not shot at once in their own villages, and inquiries at some of the villages from which they were taken have revealed no knowledge of any act of the kind. It is, however, a common practice for the German troops to seize the male inhabitants (especially those of military age) of the places they occupy and take them away on their retreat. Twenty-five were so taken from Bailleul and nothing has been heard of them since. There is only too much reason to suppose that the same fate has overtaken them as that which befell the unhappy men executed at Doulieu. I believe the explanation of these sinister proceedings to be that the men were compelled to dig trenches for the enemy, to give information as to the movement of their own troops, and to act as guides (all clearly practices which are a breach of the laws of war and of the Hague Regulations), and then, their presence being inconvenient and their knowledge of the enemy's positions and movements compromising, they were put to death. This is not a mere surmise. The male inhabitants of Warneton were forced to dig trenches for the enemy, and an inhabitant of Merris was compelled to go with the German troops and act as a guide; it is notorious that the official manual of the German General Staff, *Kriegsbrauch in Landskriege*, condones, and indeed indoctrinates, such breaches of the laws of war. British soldiers who were taken prisoners by the Germans and subsequently escaped were compelled by their captors to dig trenches, and in a field note-book found on a soldier of the 100th Saxon Body Grenadiers (XIIth Corps) occurs the following significant passage:

“My two prisoners worked hard at digging trenches. At midday I got the order to rejoin at village with my prisoners. I was very glad, as I had been ordered to shoot them both as the French attacked. Thank God it was not necessary.”

In this connexion it is important to observe that the German policy of holding a whole town or village responsible for the acts of isolated individuals, whether by the killing of hostages or by decimation or by a wholesale *battue* of the inhabitants, has undoubtedly resulted in the grossest and most irrelevant cruelties. A single shot fired in or near a place occupied by the Germans—it may be a shot from a French patrol or a German rifle let off by accident or mistake or in a drunken affray—at once places the whole community in peril, and it seems to be at once assumed that the civil inhabitants are guilty unless they can prove themselves innocent. This was clearly the case at Armentières. Frequently, as the field note-book of a Saxon officer testifies, they are not allowed the opportunity. Indeed there seems some reason to suppose that the German troops hold the civil inhabitants responsible even for the acts of lawful belligerents, and, as my inquiries at Merris and Messines go to show, a French patrol cannot operate in the vicinity of a French or Belgian village without exposing the inhabitants to sanguinary punishment or predatory fines. There is not the slightest evidence to show that French civilians have fired upon German troops, and in spite of the difficulty of proving a negative there is a good deal of reason to reject such a supposition. Throughout the communes of the region of Northern France which I have investigated notices were posted up at the mairie requiring all the inhabitants to deposit any arms in their possession with the civil authorities, and the orders appear to have been complied with, as they were very strictly enforced.

In this matter of holding the civil population responsible with their lives for anything that may prove “inconvenient” (*gênant*), to quote a German Proclamation, to the German troops, the German commanders seem to have no sense of cause and effect. At Coulommiers, so the Mayor informed me, they threatened to shoot him because the gas supply gave out. In a town which I visited close to the German lines (and the name of which I suppress by request of the civil authorities for fear of a vindictive bombardment), the Mayor, who was under arrest in the guardroom, was threatened with death

because a signal-bell rang at the railway station, and was in imminent peril until it was proved that the act was due to the clumsiness of a German soldier; and an exchange of shots between two drunken soldiers, resulting in the death of one of them, was made the ground of an accusation that the inhabitants had fired on the troops, the Mayor's life being again in peril. Where the life of the civilian is held so cheap, it is not surprising that the German soldier, himself the subject of a fearful discipline, is under a strong temptation to escape punishment for the consequences of his own careless or riotous or drunken behaviour by attributing those consequences to the civil population, for the latter is invariably suspected.

Outrages upon Women—The German Occupation of Bailleul.

When life is held so cheap, it is not surprising that honour and property are not held more dear. Outrages upon the honour of women by German soldiers have been so frequent that it is impossible to escape the conviction that they have been condoned and indeed encouraged by German officers. As regards this matter I have made a most minute study of the German occupation of Bailleul. This place was occupied by a regiment of German Hussars in October for a period of eight days. During the whole of that period the town was delivered over to the excesses of a licentious soldiery and was left in a state of indescribable filth. There were at least thirty cases of outrages on girls and young married women, authenticated by sworn statements of witnesses and generally by medical certificates of injury. It is extremely probable that, owing to the natural reluctance of women to give evidence in cases of this kind, the actual number of outrages largely exceeds this. Indeed, the leading physician of the town, Dr. Bels, puts the number as high as sixty. At least five officers were guilty of such offences, and where the officers set the example the men followed. The circumstances were often of a peculiarly revolting character; daughters were outraged in the presence of their mothers, and mothers in the presence or the hearing of their little children. In one case, the facts of which are proved by evidence which would satisfy any court of law, a young girl of nineteen was violated by one officer while the other held her mother by the throat and pointed a revolver, after which the two officers exchanged their

respective rôles.⁹¹ The officers and soldiers usually hunted in couples, either entering the houses under pretence of seeking billets, or forcing the doors by open violence. Frequently the victims were beaten and kicked, and invariably threatened with a loaded revolver if they resisted. The husband or father of the women and girls was usually absent on military service; if one was present he was first ordered away under some pretext; and disobedience of civilians to German orders, however improper, is always punished with instant death. In several cases little children heard the cries and struggles of their mother in the adjoining room to which she had been carried by a brutal exercise of force. No attempt was made to keep discipline, and the officers, when appealed to for protection, simply shrugged their shoulders. Horses were stabled in saloons; shops and private houses were looted (there are nine hundred authenticated cases of pillage). Some civilians were shot and many others carried off into captivity. Of the fate of the latter nothing is known, but the worst may be suspected.

The German troops were often drunk and always insolent. But significantly enough, the bonds of discipline thus relaxed were tightened at will and hardly a single straggler was left behind.

Inquiries in other places, in the villages of Meteren, Oultersteen, and Nieppe, for example, establish the occurrence of similar outrages upon defenceless women, accompanied by every circumstance of disgusting barbarity. No civilian dare attempt to protect his wife or daughter from outrage. To be in possession of weapons of defence is to be condemned to instant execution, and even a village constable found in possession of a revolver (which he was required to carry in virtue of his office) was instantly shot at Westoutre. Roving patrols burnt farm-houses and turned the women and children out into the wintry and sodden fields with capricious cruelty and in pursuance of no intelligible military purpose.

Private Property.

As regards private property, respect for it among the German troops simply does not exist. By the universal testimony of every British officer and

soldier whom I have interrogated the progress of German troops is like a plague of locusts over the land. What they cannot carry off they destroy. Furniture is thrown into the street, pictures are riddled with bullets or pierced by sword cuts, municipal registers burnt, the contents of shops scattered over the floor, drawers rifled, live stock slaughtered and the carcasses left to rot in the fields. This was the spectacle which frequently confronted our troops on the advance to the Aisne and on their clearance of the German troops out of Northern France. Cases of petty larceny by German soldiers appear to be innumerable; they take whatever seizes their fancy, and leave the towns they evacuate laden like pedlars. Empty ammunition waggons were drawn up in front of private houses and filled with their contents for despatch to Germany.

I have had the reports of the local commissaires of police placed before me, and they show that in smaller villages like those of Caestre and Merris, with a population of about 1,500 souls or less, pillaging to the extent of £4,000 and £6,000 was committed by the German troops. I speak here of robbery which does not affect to be anything else. But it is no uncommon thing to find extortion officially practised by the commanding officers under various more or less flimsy pretexts. One of these consists of holding a town or village up to ransom under pretence that shots have been fired at the German troops. Thus at the village of Merris a sum of £2,000 was exacted as a fine from the Mayor at the point of a revolver under this pretence, this village of 1,159 inhabitants having already been pillaged to the extent of some £6,000 worth of goods. At La Gorgue, another small village, £2,000 was extorted under a threat that if it were not forthcoming the village would be burnt. At Warneton, a small village, a fine of £400 was levied. These fines were, it must be remembered, quite independent of the requisitions of supplies. As regards the latter, one of our Intelligence officers, whose duty it has been to examine the forms of receipt given by German officers and men for such requisitions, informs me that, while the receipts for small sums of 100 francs or less bore a genuine signature, those for large sums were invariably signed "Herr Hauptmann von Koepenick," the simple peasants upon whom this fraud was practised being quite unaware that the signature has a classical fictitiousness in Germany.

Observations on a Tour of the Marne and the Aisne.

My investigations, in the company of a French Staff Officer, in the towns and villages of our line of march in that part of France which lies north-east of Paris revealed a similar spirit of pillage and wantonness. Coulommiers, a small town, was so thoroughly pillaged that the damage, so I was informed by the Maire, has been assessed at 400,000 francs, a statement which bore out the evidence previously given me by our own men as to the spectacle of wholesale looting which they encountered when they entered that town. At Barcy, an insignificant village of no military importance, I was informed by the Maire that a German officer, accompanied by a soldier, entered the communal archives and deliberately burnt the municipal registers of births and deaths—obviously an exercise of pure spite. At Choisy-au-Bac, a little village pleasantly situated on the banks of the Aisne, which I visited in company with a French Staff Officer, I found that almost every house had been burnt out. This was one of the worst examples of deliberate incendiarism that I have come across. There had been no engagement, and there was not a trace of shell-fire or of bullet-marks upon the walls. Inquiries among the local gendarmerie, and such few of the homeless inhabitants as were left, pointed to the place having been set on fire by German soldiers in a spirit of pure wantonness. The German troops arrived one day in the late afternoon, and an officer, after inquiring of an inhabitant, who told me the story, the name of the village, noted it down, with the remark “Bien, nous le rôtirons ce soir.” At nine o’clock of the same evening they proceeded to “roast” it by breaking the windows of the houses and throwing into the interiors burning “pastilles,” apparently carried for the purpose, which immediately set everything alight. The local gendarme informed us that they also sprayed (*arrosé*) some of the houses with petrol to make them burn better. The humbler houses shared the fate of the more opulent, and cottage and mansion were involved in a common ruin. It seems quite clear that there was not the slightest pretext for this wanton behaviour, nor did the Germans allege one. They did not accuse the inhabitants of any hostile behaviour; the best proof of this is that they did not shoot any of them, except one who appears to have been shot by accident.

A visit to Senlis in the course of the same tour fully confirmed all that the French Commission has already reported as to the cruel devastation wrought by the Germans in that unhappy town. The main street was one silent quarry of ruined houses burnt by the hands of the German soldiers, and hardly a soul was to be seen. Even cottages and concierges' lodges had been set on fire. I have seen few sights more pitiful and none more desolate. Towns further east, such as Sermaizes, Nomeny, Gerbevillers, were razed to the ground with fire and sword and are as the Cities of the Plain.

Bestiality of German Officers and Men.

Before I leave the subject of the treatment of private property by the German troops, I should like to draw the attention of the reader to some unpleasant facts which throw a baneful light on the temper of German officers and men. If one thing is more clearly established than another by my inquiries among the officers of our Staff and divisional commands, it is that châteaux or private houses used as the head-quarters of German officers were frequently found to have been left in a state of bestial pollution, which can only be explained by gross drunkenness or filthy malice. Whichever be the explanation, the fact remains that, while to use the beds and the upholstery of private houses as a latrine is not an atrocity, it indicates a state of mind sufficiently depraved to commit one. Many of these incidents, related to me by our own officers from their own observations, are so disgusting that they are unfit for publication. They point to deliberate defilement.

The public has been shocked by the evidence, accepted by the Committee as genuine, which tells of such mutilations of women and children as only the Kurds of Asia Minor had been thought capable of perpetrating. But the Committee were fully justified in accepting it—they could not do otherwise—and they have by no means published the whole. Pathologists can best supply the explanation of these crimes. I have been told by such that it is not at all uncommon in cases of rape or sexual excess to find that the criminal, when satiated by lust, attempts to murder or mutilate his victim. This is presumably the explanation—if one can talk of explanation—of

outrages which would otherwise be incredible. The Committee hint darkly at perverted sexual instinct. Cases of sodomy and of the rape of little children did undoubtedly occur on a very large scale. Some of the worst things have never been published. This is not the time for mincing one's words, but for plain speech. Disgusting though it is, I therefore do not hesitate to place on record an incident at Rebais related to me by the Mayor of Coulommiers in the presence of several of his fellow-townsmen with corroborative detail. A respectable woman in that town was seized by some Uhlans who intended to ravish her, but her condition made rape impossible. What followed is better described in French:

“Mme. H——, cafetière à Rebais, mise nue par une patrouille allemande, obligée de parcourir ainsi toute sa maison, chassée dans la rue et obligée de regarder les cadavres de soldats anglais. Les allemands lui barbouillent la figure avec le sang de ses regles.”

It is almost needless to say that the woman went mad. There is very strong reason to suspect that young girls were carried off to the trenches by licentious German soldiery, and there abused by hordes of savages and licentious men. People in hiding in the cellars of houses have heard the voices of women in the hands of German soldiers crying all night long until death or stupor ended their agonies. One of our officers, a subaltern in the sappers, heard a woman's shrieks in the night coming from behind the German trenches near Richebourg l'Avoué; when we advanced in the morning and drove the Germans out, a girl was found lying naked on the ground “pegged out” in the form of a crucifix. I need not go on with this chapter of horrors. To the end of time it will be remembered, and from one generation to another, in the plains of Flanders, in the valleys of the Vosges, and on the rolling fields of the Marne, the oral tradition of men will perpetuate this story of infamy and wrong.

Conclusion.

I should say that in the above summary I have confined myself to the result of the inquiries I made at General Head-quarters and in the area of our

occupation, and have not attempted to summarise the evidence I had previously taken from the British officers and soldiers at the base, as the latter may be left to speak for itself in the depositions already published by the Committee. The object of the summary is to show how far independent inquiries on the spot go to confirm it. The testimony of our soldiers as to the reign of terror which they found prevailing on their arrival in all the places from which they drove the enemy out was amply confirmed by these subsequent and local investigations.

It will, of course, be understood that these inquiries of mine were limited in scope and can by no means claim to be exhaustive. For one thing, I was the only representative of the Home Office sent to France for this purpose; for another, I did not become attached to General Head-quarters until the beginning of February, and before that time little or nothing had been done in the way of systematic inquiry by the Staff, whose officers had other and more pressing duties to perform. By that time the testimony to many grave incidents, especially in the field, had perished with those who witnessed them and they remained but a sombre memory. The hearsay evidence of these things which was sometimes all that was left made an impression on my mind as deep as it was painful, but it would have been contrary to the rules of evidence, to which I have striven to conform, for me to take notice of it.

Two things clearly emerge from this observation. One is that had there been from the beginning of the campaign a regular system of inquiry at General Head-quarters into these things, *pari passu* with their occurrence, the volume of evidence, great though it is, would have been infinitely greater; the other, that, as there is only too much reason to suppose that with the growing vindictiveness of the enemy things will be worse before they are better, the case for the establishment of such a system throughout the continuance of the War is one that calls for serious consideration.

Although I have some claims to write as a jurist I have here made no attempt to pray in aid the Hague Regulations in order to frame the counts of an indictment. The Germans have broken all laws, human and divine, and not even the ancient freemasonry of arms, whose honourable traditions are almost as old as war itself, has restrained them in their brutal and licentious

fury. It is useless to attempt to discriminate between the people and their rulers; an abundance of diaries of soldiers in the ranks shows that all are infected with a common spirit. That spirit is pride, not the pride of high and pure endeavour, but that pride for which the Greeks found a name in the word ὕβρις, the insolence which knows no pity and feels no love. Long ago Renan warned Strauss of this canker which was eating into the German character. Pedants indoctrinated it, Generals instilled it, the Emperor preached it. The whole people were taught that war was a normal state of civilisation, that the lust of conquest and the arrogance of race were the most precious of the virtues. On this Dead Sea fruit the German people have been fed for a generation until they are rotten to the core.

CHAPTER III

DOCUMENTARY

I

DEPOSITIONS AND STATEMENTS (FIFTY-SIX IN NUMBER) ILLUSTRATING BREACHES OF THE LAWS OF WAR BY THE GERMAN TROOPS, MAINLY OUTRAGES ON BRITISH SOLDIERS

Note.—These documents are here made public for the first time. They have not been published either in the Bryce Report or in the *Nineteenth Century and After*. I have selected the cases of Bailleul and Doulieu as typical of all the rest. Many other communes, *e.g.*, Meteren, Steenwerck, La Gorgue, Vieux-Berquin, suffered a similar fate. As regards Bailleul itself I have given only one out of some twenty documents in my possession relating to the rapes committed there; the others are in no way inferior in authenticity, nor are they any less horrible. My object is not to multiply proofs, but to exemplify them. It will be observed that the evidence of British soldiers here given is that of eye-witnesses, except, of course, in cases of rape. As regards the latter, the hearsay evidence is fully corroborated by the French depositions of the victims.—J. H. M.

(1)

PRIVATE R. R——, 1st Royal Scots:—At Ypres, on November 11th (the day I was wounded), the Germans had made an attack on the trenches in front of us—we were back in the dug-outs. We went up to support and drove them

back. In the trench were about a dozen Germans, our men having retired towards us. The Germans were kneeling with one hand up to let us see that they had surrendered; so we thought it was all right, and we turned our attention to firing at those who were retiring. One of the officers of our regiment, but not of my company, was at the side of the trench and had picked up a rifle to fire at the retreating Germans. I saw one of the Germans who had surrendered—I think he was an officer—raise his revolver (we had had no time to disarm them) and shoot at our officer, who dropped. Another man and I then shot the German.

(2)

Private W. M——, 1st Wilts, — Company:—(1) On the Aisne, between September 14th and 22nd, I was in B Company and going to A Company for a wounded man. I am a bandsman and have acted as stretcher-bearer. The Germans came out of a wood with a white flag. The captain (Captain R——) of — Company gave the order to cease fire—the Company was in the trenches. Captain R—— went forward alone towards the Germans, and the German officer then shot Captain R—— with his revolver and the rest of the Germans opened a heavy fire. Number — Company replied and drove the Germans back.

(2) At La Bassée, between October 12th and 27th, the Germans had shelled our trenches and driven us out, their infantry advancing in close formation. By that time only eleven out of B Company, including myself, were left. The Germans were within fifty yards of us and so we retired through a brewery down to a farm-house. We went upstairs—a mixed lot from various regiments (West Kents, Royal Irish Rifles, etc.), and began firing from the windows. From the upstairs we saw the Germans bayoneting those of our wounded who had been left in the trenches or placed under cover by us eleven, behind them, or had crawled along.

(3) At La Coutérie,⁹² about 3 kilometres from La Bassée, it must have been before October 12th, because that was the day we got to La Bassée, we took possession of a farm-house for a dressing station. The farmer's wife frequently took food and clothes down to the cellar, she said it was for her

daughter; the daughter would not come up. The mother, who was crying as she told us, made out to us that the “Allemands” had outraged her daughter—she held up five fingers.

(3)

Private J. S——, Rifle Brigade, 1st Battalion:—On a Sunday at end of October or beginning of November, just outside Bailleul, near Nieppe, we rested for three hours, having just come out of billets. The Germans had only just left—the chalk-marks of the different regiments were still on the doors. There were a lot of refugees outside an *estaminet*, among them a mother and two daughters. One daughter looked scared to death, her eyes staring out of her head. She was a girl of about twenty-three, who looked rather delicate. The girl said nothing, stood there and stared like a lunatic. The mother told a group of us in broken English and partly in French—I know some French. She said, “Les Allemands couchent avec ma fille”—that the Germans—she made it appear about eight—had outraged her daughter. We did not go into the *estaminet*—it was forbidden.

(4)

Captain C—— W——, Bedfords, 2nd Battalion:—At Bailleul, I saw a great deal of evidence of wanton destruction—mirrors broken and furniture smashed. A German cavalry regiment had done it. I was in three different billets there, and in all three the same thing had happened.

(5)

Private S——, K. O. Scottish Borderers:—At Ypres, about a month ago, I was in the trenches and one of our men went out of the trenches to get a drink of water (from a spring about seven yards away). He was wounded in the leg, and an officer (Lieutenant S——, of B Company) sent over for the stretcher-bearers, who were at head-quarters about 300 yards from the

support trenches. They were carrying this fellow away when one of the stretcher-bearers was “sniped” from about 300 yards. There was no firing at the time. Another man came of B Company, named G——, volunteered and took the wounded stretcher-bearer’s place, and then he was wounded too. G —— was put on a stretcher and was again wounded by a sniper. Cases of this kind were very common.

(6)

Private J. C——, Scottish Fusiliers, 1st Battalion:—At Locre, near Bailleul, I was billeted in the church there at the beginning of December. The church had not been shelled, but had been looted and the crucifixes had been smashed, and all the images and things of value appeared to have been torn away.

(7)

Corporal J. D. B—— (at that time Bombardier in the 49th Battery R.F.A.) now of the 40th Brigade Ammunition Column R.F.A.:—On August 23rd at Mons, we got the order to advance up a hill with our battery. We got a section of guns in action in a ploughed field, and then we had a sergeant hit with a gunshot wound in the back (it was Sergeant T——, of the 49th Battery R.F.A.). Sergeant R——, of the 49th, asked me to take Sergeant T —— to an ambulance. I took him through a wood, and on the outside of the wood I saw a girl quite naked, running for all she was worth. She appeared to me to be about nineteen years of age. Her body was covered with blood and there was blood all over her breasts. She ran into some trenches on my right. I do not know what regiment occupied them, but I heard afterwards that an officer of the Gordons got hold of her. I went straight on with the sergeant down into Mons, and took him to the field hospital.

(8)

Private S——, C Company, 1st King's R.R.:—It was on September 11th, I can never forget that date, it was after we left the Marne, and a day or two before the Aisne, we were engaged with the enemy at a distance of about 1,200 yards. They put up a white flag in their centre and waved it from side to side. We stopped firing, whereupon they fired heavily from their right flank. A second time they put up the white flag, this time on the right flank; but we took no notice of this and kept on firing.

(9)

R. McK——, 2nd Royal Irish, — Co.:—About the end of November, near Neuve Chapelle, there was a heavy attack, and we retired to get reinforcements, and left Sergeant G—— wounded in the leg in the trenches; when I last saw him he was binding up his wound. About 300 yards back we got reinforcements, and as we were advancing we saw three Germans bayoneting Sergeant G——.

(10)

R. McK——, 2nd Royal Irish, at Mt. Kemmel:—On Monday I was sent to get water from a pump in the yard of a house about 50 yards behind the line, a farm-house, and in the kitchen I saw seven men and three women, a poor class of people, lying on the ground bayoneted. The house had been looted and everything smashed.

(11)

W. F——, Sapper, 17th R.E.:—About September 7th, near Lagny, we arrived at the village; stopped there for four hours while our artillery were in action. We had a house pointed out to us by the villagers; there was a broken motor bicycle outside, and in the room against the wall we found one of our despatch riders with an officer's sword sticking through him. Our sergeant and our section officer told us that the villagers said that he

came one night, having lost his way, and knocked at the door of the house, which was occupied by German officers; they let him in and then killed him. The house was in a terrible state, everything pulled to pieces. Sapper W—— of our company was the first to find the house.

(12)

Private M——, 1st Gordons, — Co.:—On October 24th, at La Bassée, the Germans broke through our lines, and as we retreated I was hit in the hip with a shell. The Germans crossed over our trenches and charged till they met our reserves and were driven back. I saw Private E—— (of Portsmouth) of my Company lying wounded in the hip. As they passed, some stepped on top of me, some jumped over me, while others as they passed E—— kicked him and stamped on his face. When he was brought into the dressing-station his face was absolutely black. I never heard anything more of him.

(13)

J. G——, Lance-Corporal, King's Own, 1st Batt.:—At the end of November, the second day after we arrived at Nieppe, two of us entered an estaminet and found the landlady crying; she told us that about thirteen Germans violated her daughter and shot her husband against a wall in front of her eyes. She said there were a lot of other cases in Nieppe.

(14)

J. A——, Private, 1st Camerons:—It was about October 23rd, at St. Jean (Ypres). We retired, owing to shortage of ammunition, and left two wounded in the trench. When we came back one of them was lying about 20 yards behind the trenches stripped stark naked. We had left him behind covered with a waterproof cloak.

When darkness set in, on retiring, I waited behind to carry in one of the wounded. I lost the road and walked into the German lines with my comrade on my back. I was seized and my hands tied in front; I was then kicked by several German soldiers and thrown into a cellar. They kept pointing a bayonet at my heart. They took away all my food, tobacco, private letters, everything, and ate my food in front of me. After about twenty hours the East Surreys came up and released us.

(15)

J. W. D——, Private, 1st Batt. Cheshires:—On November 14th, at Ypres, the Germans broke in our trenches and as we tried to get out most of us were shot. As they retreated, after being driven back from the communication trenches, at about 4.45 on the Saturday (November 14th), I was lying wounded in the leg at the bottom of the trench unable to rise and a German officer stooped down and shot me in the thigh. I saw the same thing done by other Germans to other men of my company.

(16)

C. R. A——, Private, 10th King's Liverpool Scottish:—At Kemmel (I think), a place between Ypres and Armentières, not far from Locre—Kemmel is just close to the trenches, and about the size of Appleby—I, with two or three others, was out looking for vegetables for the officers (I was sent for because I speak French), and we were looking to see if any one remained in the house. While doing this I came across the R.F.A., who took us to their head-quarters and supplied us with vegetables, etc. Further up the valley we came upon a man in civilian clothes who was standing in a doorway. The house had not been damaged by shell fire, as practically all the rest were. We began to talk. He told me in French that he was too old for the army, but had a son-in-law in the Belgian Army. When the Germans came they ransacked all the houses. Of those who came to his house some held him off with arms pointed at him, whilst others outraged his daughter-

in-law who was about to give birth to a child. When I was there this poor woman had been sent away.

(17)

Private C——, York L. I., 2nd Batt.:—

(1) About November 17th or 20th, near Ypres, I was with the machine gun which was put out of action; I then went into my own company's trenches. As it was getting dark, the advance was made and we were up to the wire entanglements; we were driven back by superior numbers. Having gained our own trench, the roll was called and about seventeen were missing out of our Co., Corpl. R—— being amongst them. Under cover of darkness our reinforcements came up and we advanced again. We could only find seven wounded of the men missing and no German wounded at all. At the back of their trenches was a wood where we lost the Germans. So we dropped back to their trench. About three days afterwards they attacked in large numbers, but were repulsed and were driven back further than they had advanced. In our advance we came to a farm and a barn half full of potatoes where we found three of our wounded and two dead. Some of our men carried them out, and while we carried them one of the others died. Corporal R—— (who was among the five) was the worst wounded—he had been shot through the shoulder, and was insensible with both his eyes gouged out and his right arm hacked off. Our O.C. told us on a parade that it was done with a bayonet. He was sent home I heard to a hospital.

(2) At a village about 3 miles S.E. of Ypres, about three weeks next Monday, forty-five of us advanced to rush a house; only seven of us returned. As we were advancing they opened fire on us with a machine gun. We were only about fifteen strong when we got there. We had to break an entrance through the window. We heard shouts and a disturbance inside; it was the Germans making for the cellars. Captain A—— went upstairs after leaving some men on the cellar steps; I followed him. In the back room upstairs was a maxim gun. In one of the other rooms was a girl about fifteen—she had nothing on except a man's overcoat. When we broke into the room we thought she was absolutely mad. She cried out something, but we

could not understand what it was. She rushed out of the room into the front bedroom which was locked. We smashed it in with our rifle butts and there found a woman, her mother, with her right breast all bleeding, and her clothes torn—her breast had been cut as if with a sword, not a bayonet. We used our field bandages and made her as comfortable as we could and sent a volunteer back for stretcher-bearers.

[This soldier was at times in great pain when he spoke, but his mind was clear. I am convinced he spoke the truth.—J. H. M.]

(18)

Corporal D——, Loyal North Lancs., 1st Batt.:—At Ypres, end of November, I was in the trenches, and I saw two of our men, who had been sent out as snipers, hit, and the Germans motioned to them to come into their trenches (which were about 80 yards from ours); they began to crawl in, and as they got on the parapet of the trench the Germans shot them.

(19)

J. A——, Private, Argyll and Sutherland Highlanders, 2nd Batt.:—About the beginning of December we were billeted in the outskirts of Armentières, and were allowed out between twelve and three. We passed a man standing at his door, and he asked us if we had any bully beef—we said no, but we offered him a packet of cigarettes. We stood at the door talking and his wife and children came to the door. The woman looked bad—very delicate looking. He then told us that nine Germans had stopped in the house, and some of them had outraged his wife while he was in the house. He spoke very fair English. Private McM—— and S—— were with me.

(20)

Private K——, 1st Loyal North Lancs.:—On Monday night we attacked them and took two trenches. Everything was quiet till the next morning except for sniping. At about 8.30 they advanced upon us, and the officer of —— Company, seeing the men were overpowered, put up the white flag, and the men put their hands up to surrender. The Germans advanced, and when they got up to the trenches, they shot them each in their trenches as they stood. *I saw this. I was on the left flank.*

(21)

Sergeant C——, 1st Glosters:—Last Wednesday morning, near La Bassée, I was in the trench, and I saw a wounded man of No. A Co. (who had had to retire from their trenches on our right, having been enfiladed during the night) crawling on all fours to get back. When the Germans saw him they turned a machine gun on him and killed him.

About end of November, near Ypres, a Belgian farmer (a kind of peasant), who spoke a little English (I can speak some French; I have a French conversation book with me), told me that a German officer threatened him with a revolver because he tried to protect his daughter, and the officer forced the girl to sleep with him for four nights.

(22)

Sergeant G——, 2nd Devons:—

(1) At Estaires, about five weeks ago (latter part of November), we were billeted there, and I and another sergeant went into a café. The proprietor, who spoke quite good English, said that his daughter had been outraged by a party of Germans while they were occupying. They forced the daughter out into a linhey (an outhouse) at the back and there outraged her.

(2) At Laventie, about a week later, we halted; and I was speaking to a Frenchwoman who spoke English. She told me that the Germans had looted everything, and showed me a jeweller's shop which had been stripped of

nearly everything. She pointed out two girls (I think about seventeen or eighteen) who, she said, had been outraged.

(23)

Private C——, A.S.C., 7th Div., Supply Column:—At Westoutre, near Poperinghe, we were billeted about two months ago at a priest's house. He spoke English, and told me that his father was shot by the Germans against the church-yard railings because he refused to give up the stores of which he had charge for the Belgian refugees. He told us that the Germans had practised a lot of outrages on the women.

(24)

Lance-Corporal L——, R.E., 55th Co.:—Near Ypres, about October 22nd or 23rd, our section was ordered to assist the Highland Light Infantry, Queen's and Worcesters in a drive through a wood. We passed a cottage on our right where fighting was going on. As we returned I saw two of our soldiers in a doorway carrying a wounded man. When they got out of the doorway one of the two soldiers was shot in the back by a German at a distance of about 80 yards. All firing had ceased—it was a deliberate aim. On the same day I saw two stretcher-bearers, who were tending a man on the ground, fired at at a distance of about 40 yards—a regular fusillade. There was no fighting going on—our other troops were about 300 or 400 yards ahead, and these snipers had been left behind by the Germans for the express purpose of picking off our wounded.

(25)

Private S——, 1st Northampton:—On the day after General F—— was killed (he was an artillery general), on the Monday, we advanced 14 miles, about, and bivouacked in a field. From our bivouac, about one mile distant, there was a little farm. We went to the farm to fill our water bottles, and a

woman told us that her two daughters (whom we also saw) had been outraged the previous night by twelve or fourteen Germans. The woman spoke English quite well—at least, well enough for me to understand—very distinctly. The woman was not excited, but greatly distressed, and the two girls (one child sixteen, the other about nineteen—in fact, I think the woman said that the one was not sixteen) were still more distressed; they were in a pitiful plight. Listening to the story with me were Company Sergeant-Major M—— of D. Co., also Sergeant S——, also D. Co., and Corporal C——, likewise of D. Co.

(26)

Captain F——, 2nd Batt. Coldstreams:—

(1) On the Rentel ridge, near Ypres, and south of Sonnen, I have seen repeated cases of deliberate firing on stretcher-bearers which admitted of no doubt.

(2) On the Aisne, on a Monday (either September 13th or 14th) at Soupir, there was a bad case of trickery with the white flag. The Germans advanced from a farm-house with white flags at the end of their rifles, and on our men rushing forward, despite the warning of their officers, to take prisoners, they were shot down. We lost a whole company of the 3rd Batt. Coldstreams in this way.

(27)

Private L——, in the 1st Cornwall L.I.:—On September 9th (Wednesday) at Montreuil, I was wounded and being carried by two of ours, when about a quarter-mile from the firing-line I and other wounded were being brought down an exposed slope; the moment we appeared a machine-gun about 400 yards distant opened fire on us—several wounded hit.

(28)

Private W——, in the 1st Camerons:—On the Aisne, September 14th, I was told by Sergeant Major C—— of Camerons that Captain H—— (commanding our Company) was lying in a field having his wounds dressed by one of our own bandsmen acting as stretcher-bearer. Captain H—— and stretcher-bearer were shot by a German officer. The Sergeant-Major (who had been taken prisoner by the Germans) saw this happen.

[NOTE.—This story was fully corroborated, without variation, by several other Camerons whom I met in other wards, and also by the Colonel of the Camerons, with whom I discussed the matter at General Hospital No. 4 (Paris) at Versailles.—J. H. M.]

(29)

Private W—— (the same):—We were advancing, Black Watch on our right, Scots Guards on our left. Germans put up white flag and we advanced to take prisoners. At thirty yards they opened their ranks, and machine-guns concealed behind fired upon us, the Germans in front also firing their rifles.

(30)

Private S——, 1st Batt. Glosters:—On August 26th, first day of retreat from Fevrel, we were leaving the trenches, B. Co. covering us on the left. It was just where Captain S—— was shot. Private L——, who had been shot twice, was bayoneted when lying on the ground by two Germans. I and the whole Company saw it.

(31)

Private B——, West Yorks:—On September 20th, 300 Germans ran up with a German officer and white flag, surrendering. About a thousand Germans

followed and captured our Company of about 220. They bayoneted Sergeant-Major A—— after surrender of the Company, and shot majority of the Company. I was only three yards from Sergeant-Major when it happened. I fell over a hedge into a stone quarry and escaped. Here it was that Major I—— was killed. Later the Durhams came up and we got off.

(32)

Private (Lance-Corporal) C——, 1st East Lancs:—About September 6th, Château de Perense, near Jouasse, Seine et Marne, about 700 Germans, coming out of a wood, dropped their rifles and held up their hands; whistle sounded “cease fire.” Two Companies sent up to accept surrender, and when within about ten yards the Germans ran back to the wood and their troops in wood opened fire on the two companies (*i.e.* on about 450 men).

(33)

Private C—— (the same):—Passed through a village recently occupied by drunken Germans. Women raving. Saw two women with bruised faces and black eyes. Lieut. M—— said they had attempted to resist outrage by Germans.

(34)

Private M——, Notts and Derby:—On September 20th (Sunday) in trenches on Aisne, seventy Germans came up with white flag; we let them come up and then went out to take them. They then opened fire just as their reinforcements came up, and killed many men of the West Yorks, Notts and Derby, and Durhams.

(35)

The same:—On the Monday morning we went out to find our wounded and discovered an English soldier with ten or fourteen bayonet wounds—there had been no bayonet fighting with the Germans.

(36)

Private H——, 2nd Batt. Duke of Wellington's:—On September 8th and 9th, at Nogent-sur-le-Marne, advancing through the Forest of Crecy, heard on all sides stories of women outraged. I was told by Mme. S—— (Veuve) an elderly lady, who was the widow of an Englishman and spoke English, that an officer had outraged her servant in the house. The servant stood by crying as Mme. S—— told the story. Mme. S—— gave me her address—here it is in my pocket-book:—4 rue de Lafalette, Nogent-sur-le-Marne.

(37)

J. B——, Despatch Rider, Signal Co. 1st Div. R.E.:—About September 16th, near Paissy. At a distance of about 300 yards we saw through our glasses one of our despatch-riders (A—— of Signal Co., R.E.), shot while riding his motor-cycle; he fell off, and while lying on ground was speared by three Uhlans, one after the other. Uhlans attempted to burn him with his own petrol, but made off when they saw us coming. We found his body half-burned when we reached it.

(38)

Sergeant D——, 1st Cornwalls:—About September 9th, near 6 p.m., Battle of the Aisne, I was with a platoon with orders to remain behind and delay German advance. We couldn't see any Germans, and we therefore had done no firing for quite an hour. Our ambulance was out picking up wounded. My platoon was marching back to rejoin our Company; we were carrying our rifles. R.A.M.C. were picking up Lieut. E—— when they were fired on from the woods at a distance of about 300 yards, a regular fusillade. Lieut.

E—— badly hit. Ambulance had to gallop off out of range, and we made off. Ambulance was broadside on to the enemy, and must therefore have been unmistakable.

(39, 40 and 41)

Statements taken down, after cross-examination by a Staff Officer at General Headquarters, as to incidents in the neighbourhood at Ypres:

(1) Private B. S——, 1st Black Watch, says that he saw Germans bayonet our wounded as they lay on the ground. He was wounded in the leg himself, but, seeing this, he managed to get away.

Afterwards he was with German wounded, who told him that they had been ordered to kill all English prisoners.

(2) Private W. W——, 1st Black Watch, says that he was in a reserve trench and saw the Germans bayoneting our wounded 40 or 50 yards in front of him. He was wounded in the arm and taken prisoner, but was sent for water for wounded Germans and escaped.

Says the wounded Germans in our charge told him that they had been told to kill all English and take no prisoners.

(3) Statement of Private M——, Cameron Highlanders attached.

I saw this man, and consider him thoroughly reliable as to the facts of the case.

He says that he saw one German place the butt of his rifle on the wounded man's chest and hold him while the other one shot him. Our reinforcements were heard coming up immediately afterwards, and the Germans ran away. The men were Prussian Guard.

"I was shot while retiring, and took shelter behind a hedge which I had fallen through. A wounded man of the Black Watch was lying close beside me groaning. The Germans came up behind the hedge and fired through it.

Two came through and I saw one deliberately place his rifle to the wounded Highlander's head and shoot him. The features of the wounded German who came into hospital with me in the same convoy are identically those of the man I saw commit the action."

(42 and 43)

Summary of Statements taken by a Captain in the Sherwood Foresters:

(1) The undermentioned privates state that on October 20th, 1914, they saw German soldiers killing our wounded, and can swear to the same. [There follow three names of privates in the 2nd Sherwood Foresters.]

(2) The men mentioned below make the following statement: that on November 1st, 1914, two German soldiers were seen both delivering blows on our wounded with rifle-butts, and shooting them. [There follow names of four privates in the Lincolnshire Regiment, and one in the Argyll and Sutherland Highlanders.]

(44)

Statement made by a private in the Loyal North Lancs.:

On or about December 21st, I think near Neuve Chapelle, we were ordered up to the trenches occupied by the Gurkhas. We got over them and lined a ditch—some of ours wounded there. We charged, and they started with hand bombs. On our right was Captain Smart, shot in the head. We had to retire; an hour and a half later we advanced again, and here I found one of our wounded with his throat cut (he had been shot previously). I heard of others with their throats cut. I lay down close to him. Dawn was just breaking. We had to retire again, and the bodies were left there.

(45)

A Brigadier-General of the British Cavalry Corps:

On September 6th, the day before we got to Rebais, we passed a lonely farm where we found a shepherd with the top of his head blown off by a rifle-shot. He had been asked by the Germans for bread, and, on failing to produce any, had been shot.

(46)

Statement by Major —, O.C. of a Cavalry Field Ambulance:—On October 17th, at Moorslede, north-east of Ypres, the Germans were reported as having strangled a young baker in this place. The inhabitants stated that he had been taken by the Germans to bake for them, and that he attempted to escape. The enemy caught him and stuffed a woollen scarf he was wearing down his throat, causing suffocation. One of my officers, Lieut. P —, viewed the body in the convent next day, and found the scarf stuffed in the man's throat.

(47)

Private R. McK——, 2nd Royal Irish:—On the advance from the Marne to the Aisne in September, we passed through a village and saw a baby propped up at the window like a doll. About six of us went into the house, with a sergeant, and found the child dead—bayoneted. We found a tottering kind of old man, a middle-aged woman, and a youth, all bayoneted. In another village our interpreter pointed out to us two girls who were crying; he told us they had been ravished.

(48)

Driver B——, R.F.A.:—Somewhere between Chantilly and Villers-Cotterets, about the end of August, just after we started advancing, we were marching through a village, and the villagers called us into a house and

showed us the body of a middle-aged man, with both arms cut off by a sword, pointed to him and said “Allemands.” They told our R.A.M.C. men in French that he had been killed when trying to protect his daughter.

In the next village, before we got to the Aisne, the villagers showed us the dead body of a woman, naked, on the ground, badly mutilated, her breasts cut off, and her body ripped up. They said “Allemands.”

(49)

Private F. W. M——, Leicesters:—I think it was in October, after we had left the Aisne and were on the march. About a week before we got to Armentières, we went through a small village, halted, and I and a man named C——, of my company, were searching a hedge for wood, and came across a baby with a single vest on it, as if it had been taken straight from bed, and nearly cut in half, as if by a sabre.

(50)

Private G. R——, Bedfords:—Somewhere between October 14th and 17th, at a village about fifteen miles from Ypres, a boy was brought in from a farm-house, the people having sent in for surgical assistance for a boy who was wounded. I saw him brought in by some of our men to an estaminet—he had five sabre-cuts. His sister told us that the Uhlans had chased him round the farm because he had cried out something to them. He looked as if he would not live. One of our R.A.M.C. bound up his wounds.

(51)

Private W. D——, Hampshires:—About seven weeks ago, when the Germans tried hard to break through, we were about two hours from a place which we call the Château, where the Germans pitched shells every day, especially at a big tower place which is there. Our platoons were in the

trenches in the order left to right of 5, 6, 7, 8, and then came C Company in their trenches. The wounded left with the dead in the C trench were half buried by its having been blown in. The Germans enfiladed the wounded, shot them, bayoneted them, jumped on them.

(52)

Private B——, Royal West Kents:—Early in September, in the advance from Coulommiers, I saw two British cavalymen lying dead on the ground, their arms stretched out like a cross and their hands pinned by Uhlan lances.

(53)

Private J. C——, Scots Guards:—Last Monday night, the other side the canal bank at a place I think they call “Karuchi,” the Manchesters were surrounded. We were in support and advanced to their help.... We re-took the trenches. In the second trench, when we got there, we found many Manchesters who had been shot first and then bayoneted, as they lay wounded, by the Germans when capturing the trench.

(54)

Private P——, Cornwalls:—In the early part of September in our advance, in all the villages the Germans had smashed everything for mere sport—the place stank with the dead bodies of pigs and chickens which they had killed and left in the road. We found scent-bottles thrown all over the road—mirrors smashed and furniture—lovely furniture—thrown into the street, and pictures cut.

(55)

Private W. T——, Welsh Regiment:—On the retreat from Mons in August we came upon a woman tied to a tree. She was quite dead. Her throat was cut. I believe she had been outraged.... The time was about 5 p.m. It was quite light. I should say the woman's age was between eighteen and twenty-two. The men cut her down. I saw them do it. I do not know what became of the body as we had to go on. I expect it was Uhlans who had done this.

(56)

Corps Expéditionnaire anglais, 5^e Division d'Infanterie, 7^e Groupe de Gendarmerie. Objet: Actes répréhensibles commis par des soldats allemands.

RAPPORT DU CAPITAINE PIGEANNE, COMMANDANT LE DÉTACHEMENT DE
GENDARMERIE ATTACHÉ À LA 5^e DIVISION D'INFANTERIE ANGLAISE, SUR DES
ACTES REPRÉHENSIBLES COMMIS PAR DES SOLDATS DE L'ARMÉE ALLEMANDE.

Serches, le 14 septembre, 1914.

Le 10 septembre courant, en parcourant avec quelques gendarmes de mon détachement, en exécution de l'Art. 109 du Service de la Gendarmerie en campagne (31 juillet, 1911), un terrain sur lequel avait eu lieu la veille, un engagement, j'ai fait, au lieu dit "Laroche," commune de Montreuil-aux-Lions (Seine-et-Marne) les constatations suivantes:

Un soldat d'infanterie anglaise avait été tué sur la lisière d'un petit-bois bordant la route de Mery à Montreuil-aux-Lions.

Il avait été atteint par des balles de fusil, au cou et à la poitrine.

Il était tombé et était resté étendu sur le dos.

Son cadavre fut mutilé la face avait été complètement aplatie et écrasée, très probablement par des coups donnés avec la crosse d'un fusil ou même avec le talon de la chaussure.

Cet acte fut certainement commis par des soldats allemands du 48 regiment d'Infanterie, car six cadavres d'Allemands de ce même régiment furent trouvés à 100 mètres au plus de cet endroit.

Une femme se trouvait sur la route tout près de là. Dès qu'elle me vit elle s'approcha de moi et encore sous le coup d'une vive indignation elle me fit le récit suivant:

“Hier, 9 septembre, dans l'après-midi, pendant le combat un soldat fut blessé. Il avait été atteint à une jambe. Malgré sa blessure, il parvint à se traîner jusque chez moi, à la maison que vous voyez sur la colline, au lieu dit Pisseloup.

“Il me parla, je ne le compris pas.

“Je lui fis un premier pansement dès qu'il en eût montré sa blessure et le fis étendre sur mon lit.

“Quelques instants après plusieurs soldats allemands traversèrent la route et vinrent également jusqu'à ma demeure.

“Dès qu'ils virent le soldat anglais qui était blessé, ils le frappèrent, le jetèrent dehors de la maison, où ils le battirent encore avec leurs fusils.

“Je ne sais ce qu'est devenu ce malheureux anglais, mais je pense qu'il a dû être recueilli ou enterré, s'il est mort, par ses compatriotes qui sont passés ici ce matin, ont soigné des blessés et enterré quelques-uns des leurs tirés dans le combat de hier.”

Enfin, j'ajoute le fait suivant:

A Vanfleurs, le 8 septembre près de Poccunente, j'ai encore vu sur la colline au N.O. de Poccunente, et à 1 Kilo, environ, le cadavre d'un Anglais dont le crâne avait été mutilé à un tel point que la matière cervicale apparaissait en plusieurs points.

Ce soldat anglais était un simple éclaireur, tué d'un coup de fusil à la lisière d'un bois.

Les Allemands s'étaient acharnés après lui, peut-être même après sa mort.

Ces actes constituent peut-être une exception et sont l'œuvre de brutes, mais ils sont tellement odieux que j'estime de mon devoir d'en rendre compte à l'autorité militaire supérieure.

(Signed) C. N. PIGEANNE.

II

DOCUMENTS RELATIVE TO THE GERMAN OCCUPATION OF BAILLEUL⁹³

RÉPUBLIQUE FRANÇAISE

VILLE DE BAILLEUL, COMMISSARIAT DE POLICE

(1)

*Procès-Verbal No. 2. Meurtre de trois civils non combattants par des
soldats allemands*

L'an 1914, le 16 octobre à 16 heures Nous Thévenin.... Informé par les agents de notre service que les soldats allemands auraient tué trois individus non combattants au lieu dit Nouveau Monde, commune de Bailleul, nous avons ouvert une enquête et entendons:

Marie H——, 37 ans, épouse C——, demeurant à V—— Rue, Commune de Bailleul, entendue, déclare:—Le jeudi matin, 8 courant, vers 7 heures je me trouvais au passage à niveau du Nouveau Monde, quand j'ai vu passer trois civils accompagnés par six soldats allemands, baïonnette au canon et qui leur avaient attaché les mains avec des serviettes. Je les ai suivi du regard et quelques minutes après j'ai vu les mêmes soldats accompagnant

les mêmes hommes parler à un officier allemand qui leur a fait signe d'aller plus loin dans une pâture. Les soldats s'y sont dirigés conduisant toujours les civils prisonniers; ils leur ont fait sauter un fossé, puis ils les ont mis debout sur une même ligne dans la prairie. À ce moment un soldat allemand me fit rentrer dans une maison. Environ une demi heure après, j'ai su que les Allemands avaient tué les civils que j'avais vu passer avec eux et qu'ils les avaient enterrés dans le jardin de Monsieur Pierre Béhaghel.

Lecture faite.

V——, Gabrielle, épouse D——, âgée de 26 ans, ménagère, demeurant au N—— M——, commune de Bailleul, interpellée, déclare:—J'ai vu le jeudi, 8 courant, vers 7 heures et demie du matin six soldats allemands amenant avec eux, les mains liées, trois civils portant de petits paquets et paraissant avoir de 18 à 25 ans. Ils les ont mis dans la prairie en face de chez moi sur l'ordre que venait de leur donner un de leurs officiers auxquels ils venaient de s'adresser. J'avais chez moi un soldat allemand qui faisait la cuisine et cet homme voyant venir les prisonniers m'a dit, en français: *“Regardez, Madame, comme c'est beau: voir fusilier des civils français, regardez c'est du beau travail, on devrait tous les tuer comme cela!”* J'ai répondu que je ne pouvais pas le voir car c'était un crime. Malgré ma réponse j'ai regardé lorsque j'ai entendu tirer le coup de feu et j'ai vu que ces pauvres civils tombaient. J'ai également vu les soldats allemands creuser trois trous dans lesquels ils les ont ensevelis. Je ne sais rien d'autre sur cette affaire.

Lecture faite.

3°. H——, Hélène, femme B——, 44 ans, ménagère, demeurant à Bailleul au lieu dit “N—— M——,” nous fait la déclaration suivante: J'ai vu le 8 courant six soldats allemands présenter à leur officier qui logeait chez moi trois jeunes gens civils qui portaient des paquets. L'officier a dit en français aux soldats “Allez vite dans la prairie les fusiller”; les soldats sont partis aussitôt. Je n'ai plus rien vu ni entendu concernant cette affaire, mais j'ai su que l'ordre avait été mis à exécution.

Lecture faite.

4°. S——, Désiré, 74 ans, tisserant, demeurant à Bailleul, N—— M——, déclare:—J'ai vu, comme les femmes H——, V—— et B——, passer les trois civils encadrés par les soldats allemands. Je sais que ceux-ci, sur l'ordre d'un de leurs officiers, les ont fusillés. Je les ai vus enterrer à cinquante mètres de chez moi dans le jardin de Monsieur Béhaghel Pierre. Les soldats allemands sont venus chez moi prendre des pioches et des pelles pour creuser leurs tombes. Je ne sais rien de plus.

Lecture faite.

La femme H—— nous remet sur notre demande un laissez-passer délivré par la Commune de Zonnebèke à un sieur Herreman qui est un de ceux qui ont été fusillés par les Allemands. Nous le joignons au présent ainsi que la photographie y annexée.

Nous y joignons également une adresse trouvée écrite au crayon près de l'endroit où ont été enterrés les trois corps des civils fusillés. Nous donnons l'ordre au garde champêtre du quartier Deicke de se transporter au N—— M—— et de constater la présence des trois cadavres enterrés, cela accompagné de deux témoins.

De retour de sa mission l'agent nous fait le rapport suivant:

Je me nomme Deicke Juste, garde champêtre à Bailleul. Conformément à vos instructions je me suis mis en rapport avec les nommés Coulier Achille, 30 ans, maréchal ferrant; Sonneville Désire, 74 ans, tisserand; Lassus Henri, 51 ans, journalier; Behaghel Julien, 19 ans, cordonnier, que j'ai priés de m'accompagner pour constater que trois corps de civils avaient bien été enterrés dans le jardin du sieur Behaghel. Là nous avons vu, les trois corps de jeunes gens vêtus d'habits civils et recouverts d'une couche de terre d'environ 30 centimètres.

Dans les effets nous avons trouvé un extrait du registre d'immatriculation de la commune de Beuvry (Pas-de-Calais) au nom de Békaert (Cyrille Jérôme), né à Zonnebèke, le 29 août, 1891. Je vous ai apporté cet extrait.

(2)

Procès-Verbal No. 1. Meurtre du jeune B——, Albert, par soldats allemands

L'an mille neuf cent quatorze, le 15 octobre à 2 heures du soir. Nous Thévenin, Pierre, Commissaire de la Ville de Bailleul, auxiliaire de Monsieur le Procureur de la République. Informé par les agents de notre service qu'un meurtre aurait été commis, il y a plusieurs jours, par un soldat de l'armée allemande au hameau de Stient de notre commune, ouvrons une enquête et entendons:

1°. B——, Victor, 48 ans, cultivateur, demeurant à Bailleul, Rue ——— ———, lequel nous dit:

Le jeudi, 8 octobre courant, vers midi, mon fils Albert, 19 ans, venait d'apprendre que des patrouilles allemandes circulaient dans le voisinage de notre ferme. Il m'en fit part et me dit qu'il allait aussitôt se cacher dans un fosse. Il est parti de suite suivi de son frère Maurice, âgé de 17 ans. Le même jour, vers 8 heures du soir, celui-ci revint à la maison, il me dit que son frère l'avait quitté pour aller à la ferme occupée par les époux Charlet, nos voisins. Je suis allé aussitôt voir mon voisin, C—— D——, que je savais avoir passé la journée chez Charlet et celui-ci me dit que mon fils avait été tué dans la ferme Charlet à coup de lance par un soldat allemand. Je ne sais pas autre chose sinon que j'ai vu le cadavre de mon fils dans la cour de cette ferme à moitié carbonisé par l'incendie que venait de détruire les immeubles et qui avait été allumé par les soldats allemands.

Lecture faite.

B——, VICTOR. THÉVENIN, Cre. de Police.

2°. C—— D——, 57 ans, cultivateur, demeurant à Bailleul, Rue de Lille, entendu, déclare:

Le 8 octobre, vers 3 heures du soir, je me trouvais à la ferme Charlet avec différentes personnes dont le nommé B——, Albert. Les Allemands au nombre d'une dizaine, sont entrés dans la maison absolument furieux et se sont rués sur nous hommes et femmes sans distinction, nous ont

appréhendés au corps pour nous jeter dans la cour de la ferme, où ils allaient nous fusilier, disaient-ils. Le jeune B—— fut jeté le premier. Un soldat qui était à l'entrée le perça d'un coup de lance qui le tua. B—— tomba raide mort à terre. Dans la cour, j'ai vu que les bâtiments de la ferme flambaient. Les Allemands nous ont dit qu'ils venaient d'allumer cet incendie, car ils croyaient qu'un coup de feu avait été tiré de là sur eux. Tous, nous avons supplié les Allemands de ne pas nous faire du mal. Un d'entr'eux qui causait français a fait part aux autres de ce que nous voulions. Alors, on nous a jeté la tête après les murs, on nous a bousculés tant qu'ils ont pu et on nous a mis dehors de la ferme. Je ne sais pas autre chose sur cette affaire.

Lecture faite.

D——, CLOVIS. THÉVENIN.

3°. Joseph D——, 14 ans, ouvrier agricole, demeurant à Bailleul, rue ———, entendu, nous fait une déclaration corroborant de tous points à celle de son frère qui procède et signe avec nous, ajoutant qu'aucun coup de feu n'avait été tiré de cette ferme sur les Allemands ou sur aucune autre personne et qu'à sa connaissance il n'y avait dans cette ferme aucune arme à feu.

D——, JOSEPH. THÉVENIN.

4°. C——, Eugénie, née B——, 55 ans, fermière, demeurant à Bailleul, Rue ———, nous dit:—J'ai reçu à ma ferme le jeudi, 8 courant, vers midi et demi plusieurs voisins, parmi lesquels le nommé B——, Albert. Je l'ai vu tué vers trois heures par un soldat allemand d'un coup de lance dans la poitrine alors qu'il venait d'être jeté dehors de ma maison par d'autres soldats allemands. Les soldats allemands nous ont tous maltraités en nous flanquant la tête contre les murs. Ils nous ont en outre menacés de mort. Ils ont dit que l'incendie qui a détruit ma ferme avait été allumé par eux, car ils avaient cru entendre un coup de feu parti de là. J'affirme que chez moi il n'y a aucune arme à feu et qu'aucun coup n'a été tiré. Je ne sais pas autre chose sur cette affaire.

Lecture.

C—— B——. THÉVENIN.

5°. B——, Juliette, 36 ans, servante à Estaires, P—— P——, interpellée, déclare:—J'ai vu comme ma tante, époux C—— et les autres témoins, tuer le jeune B——, Albert. J'ai été comme eux tous, maltraitée et menacée de mort par les mêmes militaires. Je ne puis pas en dire davantage, mais je confirme en tous points les déclarations qui précèdent.

Lecture.

JULIETTE B——. THÉVENIN.

Procès-Verbal, No. 3.—Meurtre des nommés Itsweire Donat, et Torrez

Edouard, par une patrouille allemande

L'an 1914, le 16 octobre, à 5 heures et demi du soir nous Thévenin.... Informé par les agents de notre service que deux hommes habitant le village d'Oultersteen, commune de Bailleul, avaient été tués volontairement par des soldats allemands quoiqu'étant en civils et non combattants, ouvrons une enquête et entendons:—

F——, Charles, 55 ans, journalier, demeurant à Merris, lequel nous dit:— Le mercredi, 7 courant, vers 4 heures et demie du soir, j'ai vu arriver près du passage à niveau d'Oultersteen une patrouille de dragons allemands appartenant au 5° régiment et commandée par un sous-officier. La patrouille a tiré des coups de carabine sur les civils qui se trouvaient dans la rue. Quelques soldats sont allés tuer un homme, le nommé Isteweire Donat, 75 ans environ, qui s'était réfugié sous un pont. Je l'ai vu tirer sur cet homme et celui-ci ayant cessé de vivre. J'ai appris depuis qu'ils avaient tué un sieur Torrez Edouard, 40 ans, cabaretier, demeurant à Oultersteen et cela de la même manière. J'ai su aussi qu'un autre homme avait été par eux blessé à la joue.

Lecture faite.

2°. B——, Alfred, 37 ans, employé au chemin de fer, A—— ———, à Lille, entendu, déclare:—Le mercredi, 7 courant, vers 4 heures et demie du soir, je revenais de voyage en passant par Oultersteen. A la barrière du passage à niveau de la route allant à Vieux-Berquin j'ai vu devant moi des dragons allemands, 5° régiment, qui nous ont ajustés de leur carabines et ont tiré trentaine de coups de feu. Pour ma part j'ai reçu une balle à la joue gauche. Une autre a percé ma casquette, qui a été lancée à plusieurs mètres. A ce moment les nommés Torrez Edouard, et Isteweire Donat, étaient à côté de moi. Nous avons fui chacun de notre côté, seul j'ai pu échapper. Itsweire a été tué sous un pont, Torrez à côté d'une haie de chemin de halage. J'ai vu que cette patrouille de dragons a tiré une vingtaine de coups de revolver dans la maison de la garde barrière du passage à niveau de Vieux-Berquin, où se trouvaient trois femmes et trois enfants. L'arrivée d'une patrouille du 13° régiment de Chasseurs à cheval, qui a chargé la patrouille allemande, a sauvé la vie à ces six personnes qui n'auraient manqué d'être tués par ces bandits. Je ne sais pas autre chose.

Lecture faite.

3°. L——, Jules, 13 ans, sans profession, demeurant à Oultersteen, interpellé, dit:—Je n'ai vu Itsweire et Torrez que lorsqu'ils étaient droits, tués par la patrouille allemande à coups de fusils. J'ai vu cette même patrouille tirer des coups de revolver chez moi. Les trois femmes et les deux autres enfants qui se trouvaient dans la maison auraient certainement été tués par eux ainsi que moi-même, si une patrouille française ne lui avait donné la chasse. Je ne sais pas autre chose concernant ces deux meurtres.

Procès-Verbal No. 4. Viol de la demoiselle D——, Marie Thérèse, par deux officiers allemands

(4)

L'an 1914, le 17 octobre, à 9 heures, 1/4, nous Thévenin, informé par notre service qu'un viol aurait été commis par des soldats ou des officiers allemands, Rue des Coulons, au domicile des époux D——, nous ouvrons une enquête et en entendons.

1°. R—— C——, épouse D——, âgée de 48 ans, boulangère, demeurant à Bailleul, Rue ——, laquelle dit:—Dans la nuit du 9 au 10 courant vers 2 heures du matin je me trouvais chez moi avec ma fille Marie Thérèse et la femme M——, quand j'ai entendu frapper à la porte de la rue. Je suis allée ouvrir, une lampe à la main, et aussitôt deux hommes sont entrés, m'ont poussé du bras violemment, ont éteint ma lampe et sont allés directement vers l'endroit où se trouvait ma fille. Dans ces deux hommes j'ai reconnu deux officiers de l'armée allemande. Ils m'ont saisie à la gorge pour m'empêcher de crier et se sont opposés violemment à ce que j'allume ma lampe. Ils avaient à la main une lampe électrique dont ils se sont servis pour voir ma fille. J'ai vu que l'un d'eux, le blond, a pris ma fille en premier lieu et l'a jetée par terre dans la cuisine, puis il s'est couché dessus, lui a relevé les jupons et l'a violée. Ma fille se débattait autant qu'elle pouvait, criait de toutes ses forces, mais ce bandit lui appuyant son visage sur le sein, il cherchait à étouffer ses cris. Il est bien resté sur ma fille pendant un quart d'heure environ tandis que l'autre me tenait à la gorge et avait son revolver à côté de sa lampe. Quand celui-ci eut fini l'autre reprit ma fille à son tour et la renversa par terre dans le corridor, où il lui fit subir les mêmes outrages pendant un quart d'heure environ, en même temps, le blond était venu près de moi, son revolver en main, et me maintenant brutalement dans l'impossibilité de protéger mon enfant. Quand ils eurent fini ils ont pris ma fille par un bras chacun, l'ont traînée dehors et je ne sais plus ce qu'ils lui ont fait là. J'ai mené ma fille chez Monsieur Bells, docteur en médecine, qui l'a examinée et qui a constaté que le viol avait été consommé et que la défloration était complète.

Lecture faite.

2°. D—— (Marie Thérèse) 19 ans, sans profession, demeurant chez parents, boulangers, à Bailleul, Rue ----, nous fait la déclaration suivante:—Ainsi que vient de le dire maman, deux officiers allemands sont entrés chez nous dans la nuit du 9 au 10 courant vers 2 heures du matin. J'étais seule avec ma mère Madame M——. De suite l'un d'eux, un grand blond, a couru sur moi, m'a renversée par terre.... Il m'a fait bien mal; j'ai souffert beaucoup et j'ai dû l'endurer sur moi pendant un quart d'heure environ. Quand il a eu assouvi sa passion, il me fait relever et me traîna vers son camarade, un grand brun, qui, à son tour, me renversa dans le corridor et me fit subir les

mêmes outrages pendant un quart d'heure environ. Je dois dire qu'après que chacun d'eux, j'étais toute ... et que chacun m'a fait énormément souffrir.

Je ressens à l'heure actuelle de très violents maux de rein et mon bas ventre me fait excessivement mal. Quand le deuxième eut fini, tous deux me saisirent par un bras et me traînèrent sur la rue en me demandant mon âge. J'ai répondu que j'avais dix-neuf ans. Alors tous deux ont dit, en français le plus pur, "*Vous devez connaître d'autres jeunes filles dans le voisinage; il faut nous dire où elles sont pour que nous puissions en faire autant qu'à vous-même.*" J'ai répondu que je n'en connaissais pas, que je n'avais pas de camarades dans le voisinage. Ils m'ont alors embrassée tous les deux et serrée très fortement, puis ils m'ont laissé partir. Je suis rentrée chez moi. J'oubliais de vous dire qu'avant de me lâcher, tous les deux m'ont dit, "Si vous dites ce que l'on vous a fait et que nous revenions chez vous, on vous tuera."

En rentrant chez moi je n'ai plus revu maman? Je l'ai appelée de tous côtés et finalement je l'ai retrouvée dans le jardin. Avec elle et la femme M—— nous rentrions chez nous, quand nous avons entendu les mêmes officiers qui frappaient à la porte pour rentrer de nouveau. Nous avons eu peur et nous sommes parties dans le jardin.

Lecture faite.

3°. D——, Gabrielle, femme Maerten, 72 ans, ménagère, demeurant à Bailleul, Rue——, entendue, nous fait une déclaration corroborant de tous points celles qui précèdent et signe avec nous.

Personne n'a été témoin de cette scène mais j'ai souffert beaucoup tant au physique qu'au moral de l'exploit de ces deux bandits.

Lecture faite.

III

EVIDENCE RELATING TO THE MURDER OF ELEVEN

CIVILIANS AT DOULIEU

Gendarmerie Nationale

Cejourd'hui, 29 Novembre 1914.

Déclarations de Monsieur Rohart Jules, âgé de 65 ans, Maire de la commune de Doulieu qui a déclaré:—Lors de l'invasion de la commune de Doulieu par l'ennemi, je suis toujours resté sur les lieux. J'ai connaissance et j'ai constaté tout ce qui a été commis sur mon territoire par les Allemands. J'ai d'abord appris que 11 individus civils français avaient été fusillés dans un champ à proximité de la rue du Calvaire au lieu dit "l'Espérance." Ces hommes, qui n'avaient pas été enterrés assez profondément, ont été déterrés le samedi, 17 octobre, pour les transporter au cimetière, où j'avais fait préparer une fosse commune et à la profondeur réglementaire. Je ne connais aucun de ces hommes, mais d'après les diverses pièces que j'ai pu retrouver sur eux, j'ai pu établir l'identité de sept. Les quatre derniers n'avaient aucun papier ni quoi que ce soit pouvant établir leur identité.

J'ai fait prévenir les maires des différentes localités où résidaient ces hommes dont les noms suivent:

1°. Léger Alfred Désiré Louis, né le 1^{er} décembre 1885 à Amiens, fils de Alfred et de Clarisse Lourdel.

2°. Dequeker Henri Léon Joseph, né le 25 avril 1875 à Sailly sur la Lys, fils de Charles Auguste Joseph et de Hortense Adéline Hay.

3°. Vienne Louis Amand, né le 10 avril 1875 à Tourcoing, fils de Louis Eugène et de Elisa Marie Vienne.

4°. Hallewaere Cyrille, né le 4 décembre 1889, à Vlamertinghe (Belgique), fils de Alphonse et de Gouwy Clémence.

5°. Dequesnes Jules, né 1^{er} septembre 1884 à Roubaix, fils de Henri Joseph et de Charlotte Desmettre.

6°. Ermnault, —, né à —, demeurant à Steenwerck, hameau de la Croix du Bac, reconnu par son beau-frère nommé, demeurant à la Croix du Bac.

7°. Les quatre autres n'ont pu être identifiés. Ils paraissaient âgés approximativement de 30 à 40 ans.

J'ai appris également la mort de Bail Désiré retrouvé à proximité de la ferme de Monsieur Leroy au lieu dit "La Bleu tour." Je ne connais pas la cause de cette mort....

Madame Masquelier Mathilde, femme Decherf Henri, âgé de 62 ans, ménagère demeurant à Doulieu, Rue du Calvaire, qui a déclaré:—Le Dimanche, 11 octobre, 1914, vers 16 heures, deux soldats allemands sont venus me demander deux bûches que je leur ai remises. Peu après, j'ai remarqué dans un champ situé à 40 mètres environ de mon habitation, onze individus civils occupés à creuser une tranchée. Un peu plus loin se trouvait un groupe de soldats ennemis. J'ai regardé ces hommes travailler, puis au bout d'un quart d'heure ils se sont décoiffés, puis se sont mis à genoux. Comme ils se relevaient, j'ai entendu une fusillade et au même moment, ils tombaient tous dans le trou qu'ils venaient de creuser. Deux soldats français prisonniers, appartenant l'un à l'infanterie, l'autre aux chasseurs à pied, sont alors venus et ont recouvert les corps de ces hommes.

Fievet Charles, âge de 60 ans, boulanger épicier, demeurant au Doulieu, hameau de la Bleu Tour, déclare:—Le mardi, 13 octobre, 1914, vers 5 heures 30 du matin, les Allemands qui occupaient notre pays déjà depuis plusieurs jours sont venus chez moi. Ils ont cassé les persiennes, puis les carreaux de vitres des deux fenêtres qui se trouvent sur la rue. M'étant alors levé, ils m'ont dit que je devais partir et qu'ils allaient brûler ma maison. Les rideaux de ces deux fenêtres ont en effet été brûlés. En sortant de mon habitation, j'ai reçu un coup de poing sur la figure, puis aussitôt un coup de

crosse sur le côté de l'œil, puis un droit sur la tête. Devant ces brutalités, je me suis sauvé à la ferme de mon voisin Ridez, située à environ 30 mètres en face de ma demeure. Au moment où j'entrais dans la cour de cette ferme, j'ai entendu une détonation et immédiatement j'ai remarqué que mon bras droit tombait naturellement. Je ne ressentais aucun mal. Ce n'est qu'à mon entrée dans cette ferme que j'ai constaté que j'avais le bras droit cassé. J'ignore quel était le but de ces violences, puisque je n'avais rien fait ni rien dit. C'est Monsieur le Docteur Potié de Vieux-Berquin qui me donne des soins. En ce qui concerne le vol et le pillage tant chez moi que chez mes voisins, je certifie que ce sont les Allemands qui ont tout pris. Une liste détaillée a été adressée à M. le Maire du Doulieu.

IV

DEPOSITION OF A SURVIVOR OF THE MASSACRE OF TAMINES

*Traduction de la déclaration faite en flamand par V—— A—— F
——, mineur à Tamines*

Parquet du Tribunal de 1re Instance d'Ypres

PRO JUSTICIA

L'an 1914, le 1 octobre, devant nous, Alphonse Verschaeve, procureur du Roi à Ypres, a comparu, dans notre cabinet, sur invitation de notre part, le nommé V—— A—— F——, 28 ans, mineur domicilié à Tamines, actuellement réfugié à Reninghe, lequel nous a fait sous la foi du serment en langue flamande la déclaration suivante:

Le samedi, 22 août, dans le courant de l'après-midi, les Allemands, au nombre de 200, me semble-t-il, sont entrés dans la commune de Tamines. Immédiatement ils obligèrent tous les habitants (les femmes et les enfants aussi bien que les hommes) à sortir de leurs maisons et à se rendre à

l'église. Pendant que nous sortions par la porte de devant, les Allemands pénétraient dans nos demeures par la porte de derrière et y mettaient le feu. Aussi en très peu de temps toute la commune ne formait plus qu'un vaste brasier. Lorsque toute la population se trouvait réunie dans l'église, les femmes et les enfants furent expédiés vers le couvent des religieuses, tandis que les hommes (au nombre de 400), furent obligés de se diriger par rangs de quatre vers la plaine, et entre une double haie de soldats allemands. Pendant cette marche les soldats allemands ne cessèrent de tirer sur nous et de cette façon massacrèrent impitoyablement un nombre considérable de mes concitoyens.

Voyant que nombre de mes camarades tombaient, abattus par les coups de feu, je me suis laissé tomber à terre, quoique je n'étais pas blessé, et je suis resté là, immobile, couché sous les cadavres jusque vers le milieu de la nuit suivante; c'est ainsi que j'ai sauvé ma vie. Le lendemain matin, lorsque je me suis relevé, j'ai constaté que nous étions à peine trente habitants qui avions échappé au massacre, mais la plupart des autres échappés étaient blessés; cinq seulement d'entre nous en étaient sortis complètement indemnes. Plus tard dans la journée nous avons été forcés d'inhumer les cadavres de nos 350 concitoyens, puis amenés à une distance de 5 kilomètres; là on nous remit en liberté mais avec défense formelle de remettre encore le pied dans notre commune.

Après lecture il persiste dans sa déclaration et signe avec nous.

(Signed) ALPHONSE VERCHAEVE.

(Signed) V—— A—— F——.

Pour traduction conforme,

le Procureur du Roi,

(Signed) A. VERCHAEVE.

V

FIVE GERMAN DIARIES

(a) Extract from the Diary of a German Soldier forwarded by the Extraordinary Commission of Enquiry instituted by the Russian Government.

“When the offensive becomes difficult we gather together the Russian prisoners and hunt them before us towards their compatriots, while we attack the latter at the same time. In this way our losses are sensibly diminished.

“We cannot but make prisoners. Each Russian soldier when made prisoner will now be sent in front of our lines in order to be shot by his fellows.”

(b) Extract from a Diary of a German Soldier of the 13th Regiment, 13th Division, VIIth Corps captured by the Fifth (French) Army and reproduced in the First (British) Army Summary No. 95.

December 19th, 1914.—“The sight of the trenches and the fury, not to say bestiality, of our men in beating to death the wounded English affected me so much that, for the rest of the day, I was fit for nothing.”

(c) Contents of a Letter found on a Prisoner of the 86th Regiment, but written by Johann Wenger (10th Company Body Regiment, 1st Brigade, 1st Division I.A.C. Bav.) dated 16th March, 1915, Peronne, and addressed to a German Girl.

(After promising to send a ring made out of a shell.) “It will be a nice souvenir for you from a German warrior who has been through everything from the start and has shot and bayoneted so many Frenchmen, and I have bayoneted many women. During the fight at Batenville [?Badonviller] I bayoneted seven (7) women and four (4) young girls in five (5) minutes. We fought from house to house and these women fired on us with revolvers; they also fired on the captain too, then he told me to shoot them all—but I bayoneted them and did not shoot them, this herd of sows, they are worse than the men.”

(d) Extracts from the Diary of Musketeer Rehbein, II., 55th Reserve Infantry Regiment (2nd Company), 26th Reserve Infantry Brigade, 2nd Guard Reserve Division, X. Reserve Corps.

(This diary was captured during the recent operations at Loos, and forwarded to Professor Morgan by the Head-quarters Staff.⁹⁴)

August 16th (1914). On the march towards Louvain.—“Several citizens and the curé have been shot under martial law, some not yet buried—still lying where they were executed, for every one to see. Pervading stench of dead bodies. The curé is said to have incited the inhabitants to ambush and kill the Germans.”

1914. 16/8. Marsch nach Louveigne.—Mehrere Bürger u. der Pfarrer standrechtlich erschossen, zum Teil noch nicht beerdigt. Am Vollziehungsplatz noch für jedermann sichtbar. Leichengeruch Überall. “Pfarrer soll die Bewohner Angefeuert haben die Deutschen aus dem Hinterhalt zu töten.”

(e) Extracts from the Diary of a German Soldier, Richard Gerhold (Official Translation by French Head-quarters Staff).

EXTRAIT DU BULLETIN DE RENSEIGNEMENTS DE LA VI^e ARMÉE DU 30 AVRIL, 1915

Extraits du carnet de route trouvé le 22 avril sur le cadavre du réserviste Richard Gerhold, du 71^e R.R. (IV^e C.R.) tué en Septembre à Novron

... Le 19 août, nous avançons et peu à peu on apprend à connaître les horreurs de la guerre: du bétail crevé, des automobiles détruites, villages et hameaux consumés; c'est tout d'abord un spectacle à faire frissonner, mais ici on cesse être un homme, on devient flegmatique et on n'a plus que l'idée de sa sécurité personnelle. Plus nous avançons, plus le spectacle est désolé:

partout des décombres, fumants et des hommes fusillés et carbonisés. Et cela continue ainsi....

... Nous franchissons la frontière le 17 août; je me souviens, et je vois sans cesse ce moment là: tout le village en flammes, portes et fenêtres brisées, tout gît épars dans la rue; seule une maisonnette subsiste et à la porte de cette maison une pauvre femme, les mains hautes, avec six enfants implore pour qu'on l'épargne elle et ses petits; il en va ainsi tous les jours.

Dans le village voisin la compagnie se fait remettre les armes naturellement avec la plus grande prudence. A peine nous sommes-nous mis en marche que des maisons on tire sur nos troupes; on fait demi-tour et en quelques instants tout est en flammes; il n'y a pas de place pour la pitié, il arrive fréquemment que cette sale engeance de curés prenne part à la fusillade; *c'est pour moi une folle joie quand on peut se venger de cette canaille de curés;*⁹⁵ ici naturellement tout est foncièrement catholique. Quelle vie agréable la population pourrait avoir ici si elle ne se laissait pas conduire sur une mauvaise voie par cette hypocrite canaille de pretres; ... la population ne serait pas inquiétée le moins du monde de la part des Allemands; mais puisqu'il en est ainsi par ici, il n'y a pas de notre côté à garder le moindre ménagement....

... Le 18, nous atteignons Tongres: ici aussi c'est un tableau de destruction complète, c'est quelque chose d'unique en son genre pour notre profession (c'est un verrier qui parle)....

... Le 25 août, nous prenons un cantonnement d'alerte à Grinde (Sucrierie); ici aussi tout est brûlé et détruit. De Grinde nous continuons notre route sur Louvain; ici c'est partout un tableau d'horreur; des cadavres de nos gens de nos chevaux; des autos tout en flammes, l'eau empoisonnée; à peine avons-nous atteint l'extrémité de la ville que la fusillade reprend de plus belle; naturellement on fait demi-tour et on nettoie; puis la ville est mitraillée par nous complètement.

Chemin faisant passent devant nous des cortèges de prisonniers, hommes femmes et enfants poussant des cris....

... Le 1^o septembre, nous sommes embarqués dans Bruxelles-Paris; sur cette ligne le même tableau se renouvelle: villages consumés, fossées énormes, etc....

... Aujourd'hui, 7 septembre, c'est le jour le plus pénible que jusqu'à présent nous ayons vécu; l'endroit s'appelle Attichy; nous atteignons cet endroit en faisant de longs détours, car on a fait sauter beaucoup de ponts. A 5 h. du matin, on repart, et cela au pas accéléré parce que beaucoup de cochonneries y ont été commises....

... Le 9 septembre, après un bon cantonnement, mais qui dure trop peu, nous partons la nuit à 1 h. 1/2 après avoir mis des chemises fraîches et nous avançons vers l'ennemi vers 6 h. du matin et livrons un combat après lequel nous sommes complètement désorganisés. Notre régiment actuellement se compose d'un bataillon du 71^o, d'une compagnie du 2^o bataillon, de compagnies cyclistes des 14^o, 46^o et 27^o et de nombreux autres éléments encore. Vers 11 h. du matin nous tombons sous une grêle de shrapnells, nous n'avons pas d'artillerie, ni d'autre couverture; l'après-midi nous sommes engagés dans une chaude lutte.... Ici c'est Ormoy. Nous nous joignons au 9^o Corps et nous portons vers la position occupée hier par l'ennemi.... Nous faisons au feu d'artillerie très vif, mais nous ne pouvons rien faire jusqu'à ce que notre artillerie ait nettoyé la place. Nous bivouaquons en forêt après que l'ennemi s'est retiré et nous nous avançons pour chercher de l'eau; la nuit vers 3 h. nous rentrons à la compagnie. A 4 h. nous repartons: ainsi en 3 jours 8 heures de sommeil et avec cela, nourris comme cela arrive parfois à la guerre et la marche continue de plus belle avec des efforts physiques les plus grands pour envelopper l'ennemi vers Compiègne. Nous nous heurtons au 94^o qui a été repoussé avec de fortes pertes; plusieurs compagnies de ce régiment sont fondues et réduites à 40 hommes; nous cantonnons ici; mais quelque chose de bien! Dieu! quelles délices!... Nous faisons un brin de toilette, mangeons et buvons à cœur joie et songeons en rêve à vous là-bas!

Le 11 septembre, mouvement tournant vers Chaulny.... Nous arrivons en cantonnement d'alerte à Chaulny vieux repaire de brigands. Après quelques heures de sommeil, nouveau départ à 3 h. du matin. Le 12 septembre nous nous fortifions à 10 Klm de Chaulny dans des tranchées: il ne s'y passe pas

longtemps que nous y sommes vivement bombardés par l'artillerie; à ce moment s'engage un violent combat d'artillerie. Vers 5 h. du soir, nous entrons dans l'action, mais nous ne pouvons avancer que jusqu'à une pente abrupte où nous restons couchés sous des torrents d'eau jusque dans la nuit....

... Malheureusement nous sommes encore trop faibles dans cette position; le rapport vient à l'instant que notre 2^e Corps arrivera ou doit arriver dans l'après-midi: de ces sortes de promesses, on nous en fait toujours, mais? Celui qui va croire ou se laisser conter que les Français fuient devant quelques fusils ou canons allemands se trompe joliment et ne sait rien. Jusqu'à présent nous sommes obligés de dire que les Français sont un adversaire honorable que nous ne devons pas juger au-dessous de sa valeur. *Ici, aussi, il se passe des choses qui ne devraient pas être; oui, des atrocités sont commises ici aussi, mais naturellement sur les Anglais et les Belges, tous sont abattus sans pardon à coups de fusil....*

VI

DOCUMENTS SELECTED FROM THE REPORTS OF THE EXTRAORDINARY COMMISSION OF INQUIRY APPOINTED BY HIS MAJESTY THE EMPEROR OF RUSSIA

I. Violation of a Sister of Mercy.

A Sister of Mercy, wearing the sign of the Red Cross, was seized by German and Austrian troops on April 20th, 1915, at the station of Radzivilishki and shut up in a cart-shed.

“On the fourth day several officers visited her in the cart-shed and demanded information from her as to the positions of the Russian troops. They then beat her with swords and pricked her body with needles. On the same day she was taken to the third line of German entrenchments and lodged in a ‘dug-out’ occupied by German officers. Here she was violated,

and during a week and a half several German officers frequently committed violent acts of copulation with her, and kept her in the ‘dug-out’ without clothes under a special guard. At last she succeeded in escaping from the trenches. With the help of a Lithuanian peasant she made her way to the Russian positions, where she arrived in an almost unconscious state. First medical aid was at once administered, as it was found she was suffering from inflammation of the peritoneum and cellular membrane surrounding the matrix. On examining her for marks of violence, bruises were visible in the region of the shoulder and on the thighs and legs.”

II. Violation of a Girl.

At the beginning of the war, when the Germans entered the town of Kalish, a girl named X—— was arrested and led out to the public place, or square, for execution. Here the Germans tied her to a tree and told her that she would be shot. Others of the inhabitants, also condemned to be shot, were drawn up on the same open space. Among these victims was an acquaintance of the girl X——, a student named N. Davuidov. The German soldiers proceeded to stab this Davuidov with their bayonets before the very eyes of the girl X——, and then they tore out hair from his head and finally shot him dead. This scene of murder gave the girl such a shock that she fainted. On coming to her senses she found herself in an apartment occupied by German officers. No sooner did she revive, than one of these officers committed a rape upon her and destroyed her virginity. During the following days she remained a captive in the same apartment, where she was forced to yield to the brutal lust of the officer who first violated her, and to the solicitations of two of his comrades, who threatened to cut her to pieces with their swords if she offered any resistance. These officers then told her “that the Germans had invented a new method of making war on the Russians, which would exterminate them by means of poisonous gas without the waste of any more bullets.”

The girl was subsequently rescued by the Russian troops.

A combined judicial and medical examination of the girl X—— on June 4th, established the fact that she had been deprived of her maidenhood and

an inflammatory condition of the sexual organs was still plainly visible.

III. Murder of Wounded Soldiers.

On April 25th, 1915, when an infantry regiment retreated from the station of Krosno in Galicia, the unarmed wounded soldiers, who were unable to follow, and many of whom were crawling away on their hands and knees, were overtaken and stabbed to death, or despatched by blows with the butt end of rifles by the Austro-Hungarian troops.

The foregoing facts have been confirmed by the evidence of junior subaltern B—— of the regiment, Serge Yakovlev Sudarikov, aged thirty, who was interrogated as a witness by the Examining Magistrate of the 1st ward of Kharkov.

IV. Murder of Wounded Soldiers.

On May 12th, 1915, near the village of Bobrovka, forty versts from Yaroslav in Galicia, after the withdrawal of the “platoon sotnias” of dismounted cossacks from their trenches, the latter were occupied by German guardsmen, who drove out the Russian wounded at the point of the bayonet.

Private Nikita Davidenko, who was one hundred paces from the trenches taken by the Germans, saw how they used their bayonets to thrust out four or five of his wounded comrades, whose groans were distinctly audible.

When the Russian troops advanced on May 15th, Davidenko saw the bodies of many cossacks, who had been bayoneted or sabred to death in the trenches abandoned on May 12th.

The above facts have been confirmed by the evidence of Davidenko, who was interrogated as a witness by the Examining Magistrate of the second ward of Kharkov.

V. Murder of Wounded Soldiers.

On the retirement of the Russians, after the battle near Gumbinnen, in Eastern Prussia, August 7th, 1914, a junior subaltern, named Alexander Lappo, aged twenty-six, who had been wounded in the back by a piece of an exploded shrapnel, was left behind, lying on the field.

He soon perceived a group of about fifteen Germans, headed by an officer and a colour sergeant, following up their detachments, and shooting all the wounded Russians within reach as they marched along. There was no consideration for the fact that these Russians had been struck down at a considerable distance from the actual fighting, without having fired a shot. One of the Germans in this squad caught sight of Lappo and fired at him with his rifle. Lappo received the bullet in his left elbow. A second shot, fired by the same German soldier, hit a wounded Russian private Tartar, lying next to Lappo. The Tartar made one or two convulsive movements and expired. The pain from the wound in his elbow made Lappo moan rather loudly, and this attracted the attention of the German officer, who at once levelled his revolver and shot him in the neck. This second wound rendered Lappo unconscious and he only recovered his senses towards evening, when he was picked up by Russian Red Cross men. Lappo then noticed that his leather wrist band with a black watch, worth ten roubles, had been stolen, evidently by the Germans.

It is not certain to what troops of the enemy's forces this German officer and the men under his command belonged, but the German soldiers killed in the battle near Stalupenen, on August 4th, 1914, in which Lappo took part, had the figures "41" on their shoulder straps.

The above described facts have been verified and established by a combined judicial and medical examination, and by the evidence of Lappo, given under oath before the Examining Magistrate of the Circuit Court of Vitebsk, district of Gorodok.

VI. Burning the Russian Wounded.

In the latter half of June the regiment in which this witness was one of the rank and file took part in a battle near Ivangorod. When the fighting was over, the regiment settled down to rest. Some of the men, however, went to help the sanitary attendants to bring in the wounded and place them in a wooden cart-house or shed, roofed with straw, at one end of the village. According to statements made by the Red Cross bearers, from sixty-six to sixty-eight men were lodged in this building. At eleven o'clock at night there was a sudden and violent rattle of rifle fire. The village had been surrounded by the Germans. The witness seized his rifle and started to leave with three comrades, but in the darkness they stumbled into a German trench, and were taken prisoners. Their weapons were taken from them, and all four Russians were led to the same cart-shed, to which the witness Dorozhka had assisted to carry the Russian wounded. A German officer on the spot gave an order to his German soldiers and then he gathered up an armful of the straw, littered over the floor of the shed, placed it against one of the corners of the building, and set fire to it with a match. The witness declares, that he almost fainted when he saw this officer setting fire to the shed. The straw blazed up at once, the flames began to envelop the wooden walls, and when it reached the roof, piercing shrieks came from the wounded inmates, calling for help. At this moment the officer who fired the shed approached the prisoners, who were standing near, and without uttering a word, he discharged his revolver point blank at one of the comrades of the witness, who instantly fell to the ground dead. Then this officer struck witness's other comrade with something in the lower part of the body, and by the light of the conflagration witness noticed that the man's intestines were protruding. Dorozhka rushed to one side and managed to break away from a group of German soldiers and escaped unhurt, although three shots were fired after him. The witness, after tramping all night, fell in with one of the Russian pickets.

The foregoing was deposed to by the witness Dorozhka on examination by the Examining Magistrate of the 1st Dnieprovsky District.

VII. Ill-Treatment of Prisoners of War.

In June, 1915, three Russian officers, Captain Kosmachevsky, Lieutenant Griaznov, and Sub-lieutenant Yarotsky, escaped from German captivity and reached Russia in safety.

They were made prisoners in East Prussia in August, 1914. Together with other captured officers, they were driven on foot to the town of Neidenburg, and at one place on the way were made to serve as cover for a German battery, which was in danger of attack from Russian artillery fire.

For this purpose the prisoners were put into two-wheeled carts and ordered to wave white flags and flags with the Red Cross, and these carts were placed in front of the battery. At the same time the prisoners were warned, that if only a single projectile fell into this German battery, they would all be shot for it.

Four days these prisoners were on the march. At night they were compelled to sleep in the open in roadside ditches, although there were villages near by, and all that time they received no food, but only coffee, without sugar, milk or bread, served up in pails. Along the road the inhabitants and troops whom they met cursed and insulted them, tore off their shoulder straps, threatened them with their fists, spat at them and shouted "To Berlin!"

Before the prisoners were put into the train they were searched, and in this way many of them lost their gold watches and money. The Cossack officers especially were subjected to very strict search, in the course of which they were stripped naked. These Cossack officers were separated from the others and sent off with the private soldier prisoners.

In the first instance the officer prisoners were interned in the fortress of Neisse in Silesia, and were subsequently removed to Kreisfeld, beyond the Rhine.

The prisoners, according to their own account, were kept in horrible conditions. They were lodged in dirty barracks where the windows were shut fast and the glass of the panes covered with oil paint. It was forbidden to approach these windows under pain of being fired at by the sentries. This threat was once carried out, when an officer wished to make a drawing at one of the windows. Fortunately nobody was hurt. The imprisoned officers

had to sleep in dirty beds full of bugs, lice, and other vermin. Their meagre fare was served up on dirty tables, littered with straw, whilst alongside were other tables, covered with clean tablecloths and decently furnished even to the extent of glasses for beer, and on these tables dinner was served for the sentries, German subalterns, who looked on at the prisoners and their wretched accommodation in the most insolent manner.

All the imprisoned officers were formed into companies, commanded by rough and rude sergeant-majors, who treated them like common soldiers.

In November, 1914, two of the officer prisoners attempted to escape by bribing the shopman at the stores of the officers' canteen. This shopman, however, turned out to be a German officer in disguise, and the attempt failed, but it cost the officers concerned very dear. They were put in irons and kept in prison six months in a far worse state than in the barracks.

The above is attested by the evidence of Captain Kosmachevsky, Lieutenant Griaznov, and Sub-lieutenant Yarotsky, given to Major-General Semashko, a member of the Extraordinary Commission of Inquiry, and the deponents were admonished that they would be required to swear to the truth of their statements.

VIII.

Peter Shimchak, a peasant from the province of Warsaw, who fled from German captivity, being examined on oath, deposed to the following:—In August I was made prisoner while serving as a sailor on board a vessel under the British flag, going from Denmark to England.

As a Russian subject I was not set free, but was placed in solitary confinement for seven days in a prison at Hamburg, and then sent to a camp for prisoners of war near Berlin, at Zel, where there were already many English, French, and Belgian prisoners. In that camp there was a small yard where offending prisoners were generally punished. On one occasion four Cossacks were brought into the camp. I recognised them by the yellow stripes down the sides of their trousers. They were taken out into the yard

and placed about ten feet from the wall of the barrack, and through the crevices I was able to watch the proceedings. They took the first Cossack and placed his left hand on a small wooden post or block, and with a sword bayonet one of the German soldiers chopped off successively half of the Cossack's thumb, half of his middle finger and half of his little finger. I could plainly see how these finger pieces flew off at each stroke of the sword-bayonet and fell to the ground. The Germans picked them up and put them into the pocket of the Cossack's overcoat and then took him into a barrack, where there was a reservoir of running water. The second Cossack was brought up and had holes drilled through his ears, the point of the sword-bayonet being turned in the cut several times in order, evidently, to make the hole as large as possible. This Cossack was then led away to the barrack where the first one had been taken. When the third Cossack was brought to the place of torture his nose was chopped off by a downward stroke of a sword bayonet, but as the severed piece of nose was still hanging by a bit of skin, the Cossack made signs that they should cut it off completely. The Germans then gave him a pocket knife, and with this the Cossack cut off the hanging piece of his nose. Finally, the fourth Cossack was brought forward. What they intended to do with him it was impossible to say, but this Cossack with a rapid movement drew out the bayonet of the nearest soldier and dealt a blow with it at one of the Germans. There were about fifteen German soldiers present, and they all set upon this Cossack and bayoneted him to death, after which they dragged the body outside the camp. What was the fate of the remaining three Cossacks I do not know, but I think, says the witness Shimchak, in concluding his account of the case, they must have been also killed, for I never saw them again.

IX.

Evidence of the senior surgeon of the 73rd Artillery Brigade, Gregory Dimitrovich Onisimov, who was captured by the enemy on August 30th, 1914, near "Malvishek" in East Prussia, but has since been released. The most striking and characteristic part of this ex-prisoner's testimony is a description of the insulting treatment received by Russian prisoners from the soldiers of their German escort on the road to Insterburg. "The peaceful temper of our German convoy did not last long. We soon began to meet

detachments of German troops, who swore and shook their fists and levelled their rifles and revolvers at us, shouting, 'Why lead these men about when they can be settled here on the spot?' This kind of remark was shouted at us in German, Polish, and broken Russian. The peaceful inhabitants also reviled us, and called upon the soldiers to despatch us there and then. They shouted 'nach Berlin—to Berlin with them! ... to Welhau! ... Russischer schweinhund—Russian swine,' and so forth. The soldiers of the escort were taken into houses on the road and made drunk, so that they also began to amuse themselves at our expense. The German soldier walking on my right took his rifle from his shoulder, as if tired, and held it in such a way that the muzzle touched my right temple, and then he played carelessly with the lock of it, as though unaware of what he was doing. When I moved out of the way, he said: 'Ah! you're afraid of losing your head, there's no danger.' As soon as the guard on one side had had his little joke, his comrade on the other side began. Another soldier on a cart came along purposely handling his rifle so as to stick the muzzle into my chest, and when I warded it off he roared with laughter and seemed highly delighted. When going down a steep part of the road the driver of a cart behind intentionally drove into us and struck me on the legs with the shafts. I shouted to him to stop and not break my legs. He simply replied: 'Bad to have no legs.' This kind of thing went on throughout the march. Sometimes we were driven forward like horses, and the wounded men in the carts were so shaken about that they groaned with pain. The guards did not allow us to turn round to speak with them, and no attention was paid to our entreaties to drive them slowly."

ALEXIS KRIVTSOV, Senator,
President of the Extraordinary
Commission of Inquiry.

VII

THE GERMAN WHITE BOOK

The Introductory Memorandum.

Immediately after the outbreak of the present war there arose in Belgium a violent struggle by the people against the German troops which forms a flagrant violation of international law and has had the most serious consequences to the Belgian country and people.

This struggle of a population which was under the dominion of the wildest passions continued to rage throughout the whole of the advance of the German army through Belgium. As the Belgian army fell back before the German troops after obstinately contested engagements, the Belgian civil population attempted by every means to impede the German advance in those parts of the country which were not yet occupied; but they did not scruple to injure and weaken the German forces by cowardly and treacherous attacks, also in places which had long been occupied by the German troops. The extent of this armed popular resistance can be seen from the attached general plan (Appendix 1) on which were marked the lines of the German advance, and the Belgian places in which the popular struggle chiefly raged. We have an overwhelming amount of material resting on official sources, especially on evidence given under oath and official reports, that on these routes and in these places the Belgian civil population of every rank, age, and sex took part in the struggle against the German troops with the greatest bitterness and fury. In the Appendices is given a selection from this material which, however, embraces only the more important events and can at any time be increased by further documents.

According to the attached material the Belgian civil population fought against the German troops in numerous places in the provinces of Liège (Appendices 2-10), Luxembourg (Appendices 11-30), Namur (Appendices 12, 17, 31-42), Henegau (Appendices 3, 7, 10, 40, 43-46, 49), Brabant (Appendices 47-49), East and West Flanders (Appendices 49, 50). The conflicts in Aerschot, Andenne, Dinant, Louvain assumed a particularly frightful character, and special reports have been provided on them by the Bureau which has been appointed in the Ministry of War for investigation of offences against the laws of war (Appendices A, B, C, D). Men of the most different positions, workmen, manufacturers, doctors, teachers, even

clergy, and even women and children were seized with weapons in their hands (Appendices 18, 20, 25, 27, 43, 47; A 5; C 18, 26, 29, 31, 41, 42-44, 56, 62; D 1, 19, 34, 37, 38, 41, 45, 48). In districts from which the Belgian regular troops had long retired, the German troops were fired on from houses and gardens, from roofs and cellars, from fields and woods. Methods were used in the struggle which certainly would not have been employed by regular troops, and large numbers of sporting weapons and sporting ammunition and some old-fashioned revolvers and pistols were discovered (Appendices 6, 11, 13, 26, 36, 37, 44, 48, 49; A 2, C 52, 81; D 1, 2, 6, 20, 37). Corresponding with this were numerous cases of wounds by shot and also by burns from hot tar and boiling water (Appendices 3, 10; B 2; C 5, 11, 28, 57; D 25, 29). According to all this evidence there can be no doubt that in Belgium the People's War (*Volkskrieg*) was carried on not only by individual civilians, but by great masses of the population.

The conduct of the war by the Belgian civil population was completely irreconcilable with the generally recognised rules of international law as they have found expression in Articles 1 and 2 of The Hague Convention: The Laws and Customs of War on Land, which had been accepted by Belgium. These regulations distinguished between organised and unorganised People's War. In an organised People's War (Article 1), in order that they may be recognised as belligerents, the militia and volunteer corps must satisfy each of the following conditions: They must have responsible leaders at their head; they must bear a definite badge which is recognisable at a distance; they must bear their weapons openly; and they must obey the laws and usages of war. The unorganised People's War (Article 2) can dispense with the first two conditions, that is, responsible leaders and military badges. It is, however, bound instead by two other conditions; it can only be carried on in that part of the territory which has not yet been occupied by the enemy, and there must have been no time for the organisation of the People's War.

The two special conditions required for the organised People's War were certainly not present in the case of the Belgian *francs-tireurs*. For, according to the reports of the German military commands, which agree with one another, the civil persons who were found taking part in the struggle had no responsible leaders at their head, and also wore no kind of military badge (Appendices 6, 49; C 4-7, 14, 15, 22, 24, 25, 31; D). The Belgian *francs-tireurs* can therefore not be regarded as organised militia or volunteers according to the laws of war. It makes no difference in this, that apparently Belgian military and members of the Belgian "Garde Civique" also took part in their enterprises; for as these individuals also did not wear any military badge but mingled among the fighting citizens in civilian dress (Appendices 6; A 3; C 25; D 1, 30, 45, 46), the rights of belligerents can just as little be conceded to them.

The whole of the Belgian People's War must therefore be judged from the point of view of an unorganised armed resistance of the civil population. As such resistance is only allowed in unoccupied territory, it was for this reason alone, without any doubt, contrary to international law in all those places which were already in occupation of German troops, and particularly at Aerschot, Andenne, and Louvain. But the unorganised People's War was also impermissible in those places which had not yet been occupied by German troops, and particularly in Dinant and the neighbourhood, as the Belgian Government had sufficient time for an organisation of the People's War as required by international law. For years the Belgian Government has had under consideration that at the outbreak of a Franco-German war it would be involved in the operations; the preparation of mobilisation began, as can be proved, at least a week before the invasion of the German army. The Government was therefore completely in a position to provide the civil population with military badges and appoint responsible leaders, so far as they wished to use their services in any fighting which might take place. If the Belgian Government in a communication which has been communicated to the German Government through a neutral Power, maintain that they took suitable measures, this only proves that they could have satisfied the conditions which had been laid down; in any case, however, such steps were not taken in those districts through which the German troops passed.

The requirements of international law for an unorganised People's War were then not complied with in Belgium; moreover, this war was carried on in a manner which alone would have been sufficient to have put those who took part in it outside the laws of war. For the Belgian *francs-tireurs* regularly carried their weapons not openly, and throughout failed to observe the laws and usages of war.

It has been shown by unanswerable evidence that in a whole series of cases the German troops were on their arrival received by the Belgian civil population in an apparently friendly manner, and then, when darkness came on or some other opportunity presented itself, were attacked with arms; such cases occurred especially in Blegny, Esneux, Grand Rosère, Bièvre, Gouvvy, Villers devant Orval, Sainte Marie, Les Bulles, Yschippe, Acoz, Aerschot, Andenne, and Louvain (Appendices 3, 8, 11-13, 18, 22, 28, 31, 43; A, B, D). All these attacks obviously offended against the precept of international law that arms should be borne openly.

What, however, is the chief accusation against the Belgian population is the unheard-of violation of the usages of war. In different places, for instance, at Liège, Herve, Brussels, at Aerschot, Dinant, and Louvain, German soldiers were treacherously murdered (Appendices 18, 55, 61, 65, 66; A 1; C 56, 59, 61, 67, 73-78), which is contrary to the prohibition "to kill or treacherously wound individuals belonging to the hostile nation or army." (Article 23, Section 1 (b) of The Hague Convention: The Laws and Customs of War on Land.) Further, the Belgian population did not respect the sign of the Red Cross, and thereby violated Article 9 of the Convention of Geneva of July 6th, 1906. In particular, they did not scruple to fire on German troops under the cover of this sign, and also to attack hospitals in which there were wounded, as well as members of the Ambulance Corps, while they were occupied in carrying out their duties (Appendices 3, 4, 12, 19, 23, 28, 29, 41, 49; C 9, 16-18, 32, 56, 66-70; D 9, 21, 25-29, 38, 47). Finally, it is proved beyond all doubt that German wounded were robbed and killed by the Belgian population, and indeed were subjected to horrible mutilation, and that even women and young girls took part in these shameful actions. In this way the eyes of German wounded were torn out,

their ears, nose, fingers, and sexual organs were cut off, or their body cut open (Appendices 54-66; C 73, 78; D 35, 37). In other cases German soldiers were poisoned, hung on trees, deluged with burning liquid, or burnt in other ways, so that they suffered a specially painful death (Appendices 50, 55, 63; C 56, 59, 61, 67, 74-78). This bestial behaviour of the population is not only in open contravention of the express obligation for “respecting and taking care of” the sick and wounded of the hostile army (Article 1, Section 1, of the Convention of Geneva), but also of the first principles of the laws of war and humanity.

Under these circumstances, the Belgian civil population who took part in the struggle could of course make no claim to the treatment to which belligerents have a right. On the contrary, it was absolutely necessary, in the interests of the self-preservation of the German Army, to have recourse to the sharpest measures against these *francs-tireurs*. Individuals who opposed the German troops by fighting had, therefore, to be cut down; prisoners could not be treated as prisoners of war according to the laws of war, but according to the usage of war as murderers. All the same, the forms of judicial procedure were maintained so far as the necessities of war did not stand in the way; the prisoners were, so far as the circumstances permitted, not shot till after a hearing in accordance with regulations, or after sentence by a military court. (Appendices 48, D 19, 20, 37, 40, 41, 43, 44, 48.) Old men, women and children were spared to the widest extent, even when there were urgent grounds of suspicion (Appendices 49; C 5, 6, 25, 26, 28, 31, 35, 41, 47, 79); indeed, the German soldiers often looked after such persons so far as was in any way possible in the most self-sacrificing manner by taking helpless people who were in danger under their protection, sharing their bread with them and taking charge of the weak and sick, although their patience had been subjected to an extraordinary difficult test by the treacherous attacks (Appendices C 45, 47, 51-53, 55, 58, 80-86).

There can be no doubt that the Belgian Government was essentially to blame for the illegal attitude of their population towards the German Army. For apart from the fact that a Government has, under all circumstances, to bear the responsibility for deeds of this kind which give a general expression of the popular will, the serious charge must at least be made against them that they did not stop this guerilla war, although they could have done so (Appendices 33, 51-53; D 42, 43, 48). It would certainly have been easy for them to provide their officials, such as the Burgomasters, the soldiers, members of the "Guarde Civique," with the necessary instructions to check the violent excitement of the people which had been artificially aroused. Full responsibility, therefore, for the terrible blood-guiltiness which rests upon Belgian attachés to the Belgian Government.

The Belgian Government has made an attempt to free itself from this responsibility by attributing the blame for the events to the rage of destruction of the German troops, who are said to have taken to deeds of violence without any reason. They have appointed a Commission for investigating the outrages attributed to the German troops, and have made the findings of this Commission the subject of Diplomatic complaint. This attempt to pervert the facts into their opposite has completely failed. The German Army is accustomed to make war only against hostile armies, and not against peaceful inhabitants. The incontrovertible fact that from the beginning a defensive struggle in the interests of self-protection was forced upon the German troops in Belgium by the population of the country cannot be done away with by the inquiry of any commission.

The narratives of fugitives which have been put together by the Belgian Commission, and which are characterised as the result of careful and impartial investigation, bear the stamp of untrustworthiness, if not of malicious invention. In consequence of the conditions of things, the Commission was not in a position to test the reports which were conveyed to it as to their correctness or to grasp the connection of events. Their accusations against the German Army are, therefore, nothing but low calumniations, which are simply deprived of all their weight by the documentary evidence which is before us.

The struggle of the German troops with the Belgian civil population at Aerschot did not, as is suggested on the Belgian side, arise through the German officers violating the honour of the Burgomaster's family, but because the population ventured on a well-considered attack on the Commanding Officer, and murdered him treacherously (Appendix A). At Dinant it was not harmless, peaceful citizens who fell as a sacrifice to the German arms, but murderers who treacherously attacked German soldiers, and thereby involved the troops in a struggle which destroyed the city (Appendix C). In Louvain the struggle of the civil population did not arise through fleeing German troops being by mistake involved in a hand-to-hand contest with their comrades who were entering the town, but because the population, blinded as they were and unable to understand what was going on, thought they could destroy the returning German troops without danger (Appendix D). Moreover, in Louvain, as in other towns, the conflagration was only started by the German troops when bitter necessity required it. The plan of the destruction of Louvain (Appendix D 50) shows clearly how the troops confined themselves to destroying only those parts of the city in which the inhabitants opposed them in a treacherous and murderous manner. It was indeed German troops who, so far as was possible, tried to save the artistic treasures, not only of Louvain, but also of other towns. On the German side, a Special Commission has shown to what a high degree works of art in Belgium were protected by the German troops.

The Imperial German Government believes that by the publication of the material contained in this work, they have shown that the action of the German troops against the Belgian civil population was provoked by the illegal guerilla war, and was required by the necessity of war. For their part, they expressly and solemnly protest against a population which has, with the most despicable means, waged a dishonourable war against the German soldiers, and still more against the Government which, in complete perversion of their duties, has given rein to the senseless passions of the population, and even now does not scruple to free itself from its own heavy guilt by mendacious libels against the German Army.

Berlin, *May 10th, 1915.*

VIII

MASSACRE OF BRITISH PRISONERS BY GERMAN SOLDIERS AT HAINES ON SEPTEMBER 25TH, 1915

I, Captain J. E. A——, 8th Batt. —— Highlanders, make oath and say as follows:—

(1) I command C Co. of the 8th Batt. —— Highlanders. My company took part in the attack on September 25th, 1915. Between 5 and 6 p.m. on that day we were attacked and compelled to retire from an advanced position about Haines. We moved into Pekin Trench, and later to Fosse Alley. The battalion commenced to reorganise there.

(2) Just before 8 p.m. 2nd Lieut. G. T. G——, of my battalion, reported to me that Sergeant D. M——, who had been attached to my company for the day, had just returned in an exhausted condition, and that he reported that the Germans had collected our wounded and prisoners and bombed them.

Instructed Lieut. G—— to bring Sergeant M—— to me at once. This was done. 2nd Lieut. G. T. G—— has since died of wounds.

(3) Sergeant M—— reported to me that he and a party of men had been collected in a traverse by the Germans and bombed from both sides, that he and a Highlander had jumped out of the traverse, and that he had escaped into a shell hole, whilst the Highlander had been shot.

The Sergeant, D. M——, was very exhausted and covered with mud and water up to the neck. He was not in an excited condition.

He carried on with his duties reorganising the company.

(4) The story as told to me by Sergeant M—— at that time has been adhered to by him ever since without any material alteration.

This Sergeant is a most reliable man in every way.

(Signature of Deponent) J. E. A——,
Captain.

Sworn at Poperinghe in Belgium on active service this first day of October,
1915.

Before me,
A. M. H. S——, Captain,
D.A.A.G., 1st Army,
Commissioner for Oaths.

I, No. 6546, Sergeant D. M——, of D Co., 8th ---- Highlanders, make oath
and say as follows:

(1) On September 25th, 1915, I was attached to C Co., 8th ——
Highlanders. I took part in the attack on Haisnes on that day.

About 5 p.m. the part of this company commanded by Lieut. A—— with
which I was in trenches just west of Haisnes, and was going to retire.

Lieut. A—— ordered me to collect stragglers from Pekin Trench.

(2) I went 400-500 yards along Pekin Trench and found about twenty
wounded men of various regiments, all Scottish, whose names I did not
know.

I left these men sitting down and went about 100 yards further on and found
about twenty men of the —— Highlanders, about ten of whom were
wounded.

(3) It was now 5.15 p.m., and I could see that the Germans had cut me and
all these men off from our own troops. I took the men of the ——
Highlanders back to where the others were. I now had about forty men with
me. For the sake of the wounded men we decided to surrender.

(4) We all took off our rifles and equipment and put them on top of the
parapet.

I stood on top of the parapet and held up my hands.

A large party of Germans then advanced both in the open and by the trenches towards us.

When they drew near I said, "We surrender." One German, speaking English, said, "All right. Come along this way, every one." We all followed him up Pekin Trench towards the north, helping the wounded along, and leaving our rifles and equipment behind. It now began to pour in torrents of rain.

(5) The German who spoke English was dressed in dark khaki and wearing a cape down to his thighs. He had khaki trousers with a thin red stripe and long black boots. He wore a helmet with a dark khaki cover on it. He had no badges showing. His cape blew open and I saw a figure 6 in red on his shoulder and, I think but am not sure, a figure 2 in part of it, making 26.

All these Germans were big men and were dressed alike, quite clean and fresh as though they had only just come into the trenches. I did not notice anyone in command of them.

Their manner was not threatening.

(6) About thirty of these Germans led us into a circular traverse in Pekin Trench, and the English-speaking German said, "Pack in there and stay." All the Germans then went out of sight. The wounded men sat on the fire-step and the unwounded remained standing. It was now about 5.30 p.m.

(7) After we had been there about two minutes a bomb was thrown into the traverse where we were, one bomb from one side and one from the other.

I shouted to the men to clear out if possible. Only one man and myself jumped over the parapet. I seized an English rifle lying on the parapet and fired down the trench. I then jumped into a shell hole about 15 yards from the traverse. It was almost full of water, in which I stood up to my neck. The other man was shot.

I heard the Germans bombing this circular traverse continuously for about fifteen minutes. At first the men I left were crying out, but after about ten minutes this ceased.

(8) I was over an hour in the shell hole, and left it after dark.

2nd Lieut. G. T. G——, of D Co., 8th —— Highlanders, was the first person to whom I told my experiences. This was at about 7.45 p.m.

(9) The second person to whom I told them was Capt. J. E. A——, also of the 8th ——, whom I saw at about 8 p.m. the same evening.

(Signature of deponent) D. M——, Sergeant.

Sworn at Poperinghe in Belgium on active service this first day of October, 1915.

Before me,
G. M. H. S——, Captain,
D.A.A.G., 1st Army,
Commissioner for Oaths.

IX

REPORTS RELATIVE TO THE USE OF INCENDIARY BULLETS BY GERMAN TROOPS⁹⁶

To:
The Commanding Officer,
2nd Batt. The —— Regiment.

From:
2nd Lieut. L. E. S——,
B Co., 2nd —— Regiment.

18/6/1915.

USE OF INCENDIARY BULLETS BY THE ENEMY

SIR,—I have the honour to report as follows:

During the action on 15th to 16th instant my platoon occupied the right of the old German trench running from —— to —— between 7.30 p.m. and 10.30 p.m., 15th instant. Seventy-five yards to my front I saw six or seven men lying down in the grass. One of them attracted my attention immediately as he appeared to be smoking or to have lit a small fire. I observed him carefully and saw that his clothes were smouldering. Later on they were entirely charred black: he did not move and was apparently dead. The enemy were sniping at these men, unquestionably using incendiary bullets, as I saw three or four of these strike the ground and set the grass around on fire. The flames could be seen distinctly.

About 9 p.m. one of these bullets struck the bottom of the parapet of the trench, and burned with a brilliant white flare for about fifteen seconds, at the same time giving off heavy phosphorus fumes and burning the sand-bags which it had struck.

I have the honour to be,
Sir,
Your obedient servant,
(Signed) L. E. S——,
2nd Lieut.

The following statements were made by N.C.O.'s of the 2nd Batt. —— Regiment and 2nd Batt. —— Regiment (7th Division), relative to the alleged use by the enemy on June 15th, 1915, of incendiary bullets:

C.S.M. G. M——, C Co., 2nd Batt. —— Regiment, states:

On the night of the 15th and 16th I saw German rifle bullets cause a flash as they struck the ground. The flash seemed to rise about 2 feet from the ground. My attention was called to this by an Officer of the 3rd Co. (?) Grenadier Guards. The Guards were on my left and I was near —— . It was some time between 11 p.m. and 12 midnight.

(Signed) G. M——,
C.S.M.,

C Co., 2nd —.

Sergeant N—, B Co., 2nd — Regiment, states:

Just before dusk on the evening of the 15th I was in the disused German trench —, and saw a man fall in front of the trench hit by a bullet. As he lay on the ground he seemed to be on fire in the right shoulder and breast, and was clawing the ground in agony. (The grass, which was green, was set on fire round him.) He was not more than 100 yards from me—hardly that. I could not do anything for him as the Germans had been following me and were almost on top of me, and I was nearly alone at the time.

Very shortly afterwards I saw another man (a Lance-Corpl. in the — I think), run out apparently to fetch in the first man. He slewed off, and must have seen the Germans, who were then crawling through the grass. He fell, seemingly hit in the stomach, and whilst rolling about on his back, his right knee and his puttees down to his boot caught fire. I think he must have been hit in the knee. He too seemed to be in agony, and the grass caught fire round him also. I could not swear that his second wound was not caused by a bomb, though I did not see any bomb burst there.

(Signed) E. H. M. N—,
Sergeant.

Corporal D—, B Co., 2nd Batt. — Regiment, states:

Shortly after the bombardment on the evening of the 15th instant, I was just on the left of the crater (near —) —about 30 yards from the crater—and saw a man on fire in the grass in front of and below me. Another man ran out of a disused trench towards the first man, when he appeared to be hit in the chest. He fell forward on his chest, and as he did so flames spurted out of his chest. As he lay on the ground he was burning all over, and the cartridges in his bandolier went off. He burned for about an hour and the grass was set on fire. Both men were rather less than 100 yards from me. I called the attention of my Officer Mr. L. J— (subsequently wounded) to the second man. I am quite sure the second man was hit by a bullet, not a bomb.

(Signed) J. W. D——,
Corporal.

X

DEPOSITIONS RELATIVE TO THE EMPLOYMENT BY THE
GERMAN TROOPS OF RUSSIAN PRISONERS ON THE
WESTERN FRONT⁹⁷

(a) Statement of a German Prisoner (Translation) Captured in
Northern France.

I, the undersigned Stephan Grzegoroski, a recruit in the 6th Co. (5th Section) 2nd Batt. No. 143 Infantry Regiment, XV. German Army Corps, hereby declare on oath that in the course of the month of October, I have frequently seen Russian prisoners of war in Russian uniform employed upon the construction of the third line trenches of my regiment.

There were some 150 to 200 Russians altogether so employed. During the course of their work they occasionally came under fire. Two were killed and four wounded. Seven Russians tried to escape—two succeeded: one was shot dead, and four were retaken.

The men were guarded by soldiers of my regiment.

I spoke personally with some of the Russian prisoners, and they complained that they had much work to do, but only very little to eat.

(b) Statement of Two Russian Soldiers (Translation) taken down in
November, 1915, at British Headquarters in France.

Michael Klokoff, Russian soldier, private in the Novo Skolsky Regiment; taken prisoner by the Germans on the Bzura on December 26th, 1914 / January 8th, 1915; and Andrei Slizkin, Russian soldier, private in the 41st Siberian Regiment, taken prisoner by the Germans near Prasnysz on

January 29th/February 11th, 1915, *declare that*: we were interned as prisoners of war at Strzalkowo until October 7th/20th, 1915. We then came with 2,000 other Russian prisoners to Belgium. Some of the prisoners were taken to build railways; others, among them ourselves, were employed to dig trenches. During our work we came under shell fire and sustained casualties.

We escaped on October 31st, and reached the British lines on November 2nd. We were promised pay, but did not receive any.

(c) Statement of Two Russian Soldiers (Translation) taken down in December 1915, at British Headquarters in Northern France.

Anastasius Nietzvetznie, 231 Dragoon (Infantry) Regiment, and Nicholas Nevaskov, 210 Infantry Regiment, *declare*: When we were prisoners with the Germans we worked at digging trenches. Each day we were under English artillery fire. We received 30 pfennigs per day, and we worked against our will. When we refused to work, we got twenty-five strokes with an iron rod, and were tied up with our hands behind our backs in a cold room with windows open and nothing to eat.

(Signed) ANASTASIUS NIETZVETZNIE,⁹⁸
231 Dragoon Regiment.

(Signed) NICHOLAS MIKHAILOVITCH NEVASKOV,⁹⁸
210 Infantry Regiment.

**A REVIEW OF
GERMAN ATROCITIES
BY
THE RT. HON. VISCOUNT BRYCE**

Published in *The Westminster Gazette*, London,

March 20, 1916

A FRESH EXAMINATION OF GERMAN WAR METHODS⁹⁹

Professor Morgan, whose bright little book, called “Sketches From the Front,” has given to us some of the most fresh and vivid pictures of the actualities of warfare in France, presents in the present volume the evidence he has been busy in collecting regarding the behaviour of the German troops in the western theatre of war. Some of this has already been made known to the public by what he published in the *Nineteenth Century and After* in June, 1915, and also by the depositions which he obtained under the instructions of the Home Office and submitted to the British Committee on Alleged German Outrages. (Many of these were published in the Appendix to their Report last May.) Since that time he has spent four or five months in collecting further important data and still more months in collating the results of the facts he has collected, having been granted by the British Headquarters Staff in France those facilities for moving to and fro along the front and getting into touch with eye-witnesses which were essential for arriving directly at the facts. The evidence thus obtained is supplemented by several diaries of German soldiers never before published in England, and by some extracts from documents issued by the Russian Government describing cruelties committed by the Germans in the fighting on the Eastern front. As respects the data he has himself collected, Professor Morgan explains, in his introduction, the methods he has followed in taking evidence and testing its value, showing himself sensible, as a lawyer ought to be, of the need for care and caution in such a matter. The large experience which his months of work at the front have given him adds weight to his assurance that what he submits is worthy of all credence as well as to the conclusions at which he has arrived. But before adverting to these conclusions a preliminary question deserves to be considered.

It has been asked—and it is natural that it should be asked—“What is the use of multiplying tales of horror?” “Why do anything that can aggravate

the bitterness of feeling, already lamentably acute, between the belligerent nations? All war is horrible; why add fresh items to the list of offences which are making us think worse of human nature than we supposed two years ago we ever could think?"

These questions need an answer. Such a painful record as the present book contains, such a record as can be found in the reports already officially published by the Belgian, French, and British Governments, might, perhaps, have been better left unpublished if it did not serve some definite tangible aim, looking to some permanent good for mankind.

Now such a definite, tangible, practical aim does exist, and seems to justify, and, indeed, to require, the publication of the facts contained in this book and also in the reports which have been published by the Belgian, French, and British Governments. It is an aim which can be stated quite shortly; and the need for pursuing it is shown by what has happened during the last twenty months.

In most parts of the ancient world, and among the semi-civilised peoples of Asia till very recent times, wars were waged against combatants and non-combatants alike. Even in the European Middle Ages indiscriminate slaughter of combatants and non-combatants alike sometimes occurred, especially where, as in the case of the Albigenses, religious passion intensified hatred. As late as the sixteenth and seventeenth centuries there were campaigns in which frightful license was allowed to soldiery, private property was pillaged or ruthlessly destroyed, and women were habitually outraged.

A reaction of sentiment caused by the horror of the Thirty Years' War, coupled with a general softening of manners, brought about a change. During the last two centuries, though every war was marked by shocking incidents, there was a growing feeling that non-combatants should be protected, and a serious purpose to restrain the excesses of troops invading a hostile country. The wars of the eighteenth century were less cruel and destructive than those of the seventeenth, and the wars of the nineteenth showed some improvement on those of the eighteenth. The war of 1870-71, if those of us in Britain who remember it can trust our recollection, seemed better in both the above-named respects than had been the Revolutionary

and Napoleonic wars between 1793 and 1814. Till the outbreak of the present conflict men who sought for signs of the progress of mankind were cheered by the hope that war would hereafter be waged only between regular disciplined forces on each side; that these forces would abstain from needless cruelty, that women would be protected from lust, and that the lives of non-combatants would not be endangered. There was even a prospect that private property would not be destroyed except in so far as a definite military aim made its destruction unavoidable, as when a hostile force had to be shelled out of its shelter in a village. The Hague Convention had passed rules which ameliorated the practices of war as regards the combatant forces and had solemnly proclaimed the duty of respecting the lives and property of non-combatant civilians.

The present war has, however, brought a rude awakening. The proofs are now overwhelming that in Belgium and Northern France—as to other regions the evidence is not fully before us—non-combatants have been slaughtered without mercy by the orders of the German military authorities, while the mitigations of war usages as regards combatants have been openly and constantly disregarded. Private property has been constantly destroyed where no specific military reason existed, but only for the sake of terrorising the civil population, or perhaps out of sheer malice. A license has been practised by, and in many cases obviously permitted to, the soldiers which has led to acts of wanton cruelty. Outrages upon women have been far more numerous than in any war between civilised nations during the last hundred years. One crime deserves special condemnation, because it is done deliberately and is justified by its perpetrators. This is the practice of seizing innocent non-combatants, usually the leading inhabitants of a town or village, calling them hostages and executing them in cold blood if the population of the town or village whom “the hostages” cannot control, fail to obey the commands of the invaders. Civilians who fire upon invading troops without observing the requirements which the Hague Convention prescribes may, no doubt, be shot according to the customs of war; but there must be some proof that these particular civilians have done so. To put to death a quarter or more of the adult male inhabitants of a village because some shots have been fired, or are supposed by an excited soldiery to have been fired, out of its houses, is mere murder. All the paragraphs in the Manual of War issued by the German Staff cannot make it anything else.

Though we may hope, and indeed must hope, that the horror caused by this war may lead to measures which will diminish the risks of war in the future, he must be indeed a sanguine man who can think that war, the oldest of the curses that have afflicted mankind, is likely to be eradicated within this century. It is therefore an urgent duty to do all that can be done for a regulation of the methods of war and a mitigation of the sufferings that it causes.

Now the cruelties that have been perpetrated on land, no less than the ruthless murder of innocent passengers on unarmed vessels at sea, are an aggravation of those sufferings. They are a reversion to the ancient methods of savagery, a challenge to civilised mankind, to neutral nations as well as to the now belligerent States. Neutral nations ought to be fully informed of the facts of these methods, for they are themselves concerned. The same methods may be used against them if they are attacked by Germany or by some other nation which sees that Germany has used them with impunity. If the public opinion of the world does not condemn these methods, war will become an even greater curse than it has been heretofore. Unless an effort is made as soon as ever the present conflict ends to regulate the conduct of hostilities between combatant forces, and, which is of even greater importance, to provide more effective safeguards for non-combatants, there may be a terrible relapse towards barbarism everywhere.

The Allied belligerent nations who are now fighting in the cause of humanity are called upon to take up this matter and deal with it effectively. So are neutral nations. It is a pity that they did not protest long ago. But a word may be said regarding the German people also. Professor Morgan thinks that they share in all the guilt of their Government, but the reasons he gives for this belief do not warrant so melancholy a conclusion. The behaviour of the mobs that were wont to insult and ill-treat the prisoners of war led through the streets of German towns, and the ferocious language of creatures like Von Reventlow and some other writers in the German Press, shocking as they are, cannot be taken as evidence of the sentiments of a whole people. Neither can we suppose that the declarations of professors, victims of a doctrine and a practice which compels them to approve every act of the State are more to be accepted as expressing what may be felt by the less vocal Germans. We must remember how severe is the German

censorship, how accustomed the Germans are to believe what their Government tells them, how habitually mendacious the military authorities have been in the accounts they supply of the conduct of the Allied Powers and their troops. The German mind has had little but falsehood to feed upon ever since the outbreak of the war, and it now believes, absurd as the belief is, that it is the innocent victim of an unprovoked aggression. When any voice is raised in Germany to proclaim even a part of the truth and to plead for humanity and good feeling, that voice is instantly silenced. Silence will doubtless be enforced as long as the war lasts. But we may well venture to hope that when, after the war, the facts hitherto concealed from the people have become known and can be reflected on with calmness, there will be a condemnation of the practices I have described, and that in Germany and Austria, as well as in all neutral countries, there will be a wish to join in the efforts which both the Allies and the leading neutral Powers are sure to make to regulate and mitigate the conduct of war. In order to call forth these efforts by showing how great is the need for strengthening the existing rules of war, and providing more effective means of securing their observance, it is essential that the facts should be made known and studied, and that the world should see how the present rules, imperfect as they are, have been trampled under foot by the German authorities. This is what makes it right and necessary to publish the data contained in the Reports already referred to, and those data also which have been gathered by Professor Morgan with such earnest labour.

So much for the justification—an ample justification—which exists for publishing the horrible record which this book contains. I need not here analyse it or quote from it or comment upon it. The facts speak for themselves. Professor Morgan's general conclusions as to the behaviour of the German troops in France seem to be borne out by the facts which he adduces. They are further supported by the facts set forth in the Belgian, French, and British Reports. This accumulation of testimony is convincing, and it becomes even abundantly more convincing when one remembers that the German Government has scarcely attempted to deny the contents of those reports. To the French report, strengthened as it is by numerous extracts from the diaries of German soldiers (translated by M. Joseph Bédier), in which they describe, sometimes with shame, sometimes with satisfaction, the conduct of their comrades, no answer seems to have been

made, although a few trivial objections were raised to the translations. Neither has the German Government ventured to meet the British report, except by a vaguely worded general contradiction in a semi-official newspaper. As regards the Belgian reports, no more to them than to the others has any examination and specific contradiction been vouchsafed. But a White Book has been published which tries to turn the tables by accusing Belgian civilians generally of firing on German troops and committing outrages upon them. Professor Morgan, in one of the most illuminative parts of his book, subjects this White Book to a critical analysis, exposes its hollowness, and shows conclusively that while it does not prove the German case against the civilian population and the Government of Belgium, it virtually admits, in its attempts to justify, the shocking cruelties perpetrated by the German Army upon that population. As the lawyers say, *habemus confitentem reum*.

Let me add that he who wishes to understand German military ideas and military methods, ought to read along with this book (and the reports already referred to) another book, the German "Manual of the Usages of War on Land," of which Professor Morgan has published a translation, under the title of "The German War Book." Each of these is a complement to the other. The "War Book" sets forth the principles: this book and the Reports display the practices. The practice shocks us more, because concrete cases of cruelty rouse a livelier indignation; but the principles are a more melancholy proof of the extent to which minds of able men may be so perverted by false ideals and national vanity as to lose the common human sense of right and wrong.

FOOTNOTES:

- [1](#) The writer's chief contributions to the Bryce Report will be found on pages 190, etc., of the Committee's Appendix [*cd.* 7895.]
- [2](#) Published by the German Foreign Office under the title of "Die völkerrechtswidrige Führung des belgischen Volkskriegs." The abbreviation "G. W. B." will be used in the notes to this chapter.
- [3](#) The Reports have been translated, but not the evidence. I am indebted to M. Mollard for providing me with copies of the latter, to which reference is made below.
- [4](#) Speech in the Reichstag, August 4th, 1914. But, so far as I know, no one in this country has noticed that the absolute inviolability of Belgium, under all circumstances and without exception, has been laid down in the leading German text-book on International Law, which declares that such treaties are the great "landmarks of progress" in the formation of a European polity, and that the guarantors must step in, whether invited or uninvited, to vindicate them. "Nothing," it is added, "could make the situation of Europe more insecure than an egotistical repudiation by the great States of these duties of international fellowship."—Holtzendorff *Handbuch des Völkerrechts* III. (Part 16), pp. 93, 108, 109.
- [5](#) Regulations, Arts. 1 and 2.

[6](#) *cf.* Von Bieberstein at the Hague Conference of 1907, “The international law which we wish to create should contain only those clauses the execution of which is possible from a military point of view.” (*Actes et Documents I.*, page 282.)

[7](#) Holtzendorff, IV., 385.

[8](#) *Ibid.*, IV., 374. This is an important admission in view of what the Germans allege to have happened in Belgium.

[9](#) German White Book: Introductory Memorandum.

[10](#) German White Book: Introductory Memorandum.

[11](#) Belgian Grey Book (Correspondance Diplomatique relative à la Guerre de 1914), No. 8 (dated July 29th, 1914).

[12](#) *Ibid.*, No. 2 (July 24th, 1914).

[13](#) British Blue Book (Great Britain and the European Crisis), Nos. 85 and 122.

[14](#) G. W. B. (Appendix C), General Report on Dinant.

[15](#) *Ibid.*, Introductory Memorandum.

[16](#) G. W. B., Appendix 51.

[17](#) *Ibid.*, Appendix 53.

[18](#) G. W. B., Memorandum.

[19](#) *Ibid.*, Appendix 59.

[20](#) G. W. B., Appendix 56.

[21](#) *Ibid.*, Appendix 63.

[22](#) *Ibid.*, Appendix 56.

[23](#) G. W. B., Appendix B.

[24](#) This is the normal figure of such German units according to the basis of calculation arrived at, after careful inquiry, by our own Headquarters Staff.

[25](#) G. W. B., Appendix B 1.

[26](#) G. W. B., Appendix 29.

[27](#) *Ibid.*, No. 22.

[28](#) See the Appendix to the Bryce Report, pages 25-29. Any one who reads the depositions of the Belgian witnesses there set out, and compares them with the depositions of the German soldiers in the White Book cannot fail to be struck by certain notable differences in quality. The Belgian witnesses never generalise, they betray no malice, and they mention instances of German forbearance. The exact converse is true of the German evidence. Lord Bryce's Committee came to the conclusion that they "have no reason to believe that the civilian population of Dinant gave any provocation." (Report, page 20.) See also the Eleventh Belgian Report (*Rapports officiels*, page 137).

[29](#) G. W. B., Appendix C. Summary and also C 5, 7, 10, 31, 35, 40, 44 for references in the text.

[30](#) G. W. B., Appendix C.

[31](#) C 44.

[32](#) C (Summary Report).

[33](#) C 51.

[34](#) The story of Aerschot is peculiarly horrible. It was here that the priest was placed against the wall with his arms raised above his head; when he let them fall through weariness, the German soldiers brought the butt-ends of their rifles down upon his feet.

He was kept there for hours, and as German soldiers passed they used him as a lavatory and a latrine until he was covered with filth. Eventually they shot him. This is but one of many such horrors (see the Bryce Report, Appendix, pages 29, 46. See also the fourth and fifth Belgian Reports). The German White Book admits (Appendix A 2) that “every third man was shot.”

[35](#) Appendix A 5.

[36](#) Appendix A 3.

[37](#) The 1st Company of the 2nd Infantry Battalion of the Neuss Mobile Landsturm.

[38](#) Belgian Collected Reports, Tenth Report, page 127.

[39](#) Bryce Report (popular edition), pages 29-36. And see the diary, No. 14 of Appendix to Bryce Report recording the shooting of German troops by other German troops; to the same effect another diary quoted on page 41 of Bryce Report.

[40](#) “No other troops were stationed at Louvain on that day.”—(D 8.)

[41](#) See the Sixth Belgian Report and, in particular, the Proclamations issued at Hasselt, Namur, Wavre, Grivegnée, and Brussels.

[42](#) See, in particular, *Les Violations des lois de la Guerre par l'Allemagne*, issued by the French Ministry of Foreign Affairs, pages 77, 92, 99, 100, 101, 119.

[43](#) Press Bureau (Belgian communiqué), March 18th. The German authorities substituted the word “convention” for “conversation,” in order to convict Belgium of a secret treaty with England.

- [44](#) Foreign Office communiqués of May 20th and July 5th.
- [45](#) The case of the *Ophelia*.
- [46](#) P. P. Cd. 7595.
- [47](#) The case of the *Iberia* (*Times Law Report*, November 11th, 1915). It is not the only one.
- [48](#) *The International Review*, published in Zurich, and controlled by a Committee consisting almost entirely of German Professors. Its title is obviously fraudulent. The June issue (page 14) contains an article of ingratiating impudence by a German psychologist discrediting all reports of atrocities, and, in order to prove their unreliability and justify the policy of the *Review* in excluding them when they emanate from British, French, or Belgian sources, it attempts to disprove them all. On page 32 the writer refutes circumstantially the stories that German soldiers had had their eyes gouged out.
- [49](#) Note transmitted on July 8th to the American Minister by Herr von Jagow.
- [50](#) Proclamations issued at Namur and Wavre.—(Sixth Belgian Report.)
- [51](#) *Ibid* Proclamation issued at Grivegnée. *See also Les Avis, Proclamations, et Nouvelles de la Guerre allemandes affichés a Bruxelles*, for a copy of which I am indebted to my friend Colonel E. D. Swinton, D.S.O. (“Eye-witness.”)
- [52](#) The reader should also study the diaries given in the Bryce Appendix, in the French official volume *Les Violations*, and in Professor Bedier’s *Les Crimes Allemands*: expressions of pity are as rare as exultations that “We live like God” are frequent.
- [53](#) The full story will never be known, but the Russian Report, the Second French Report, the Belgian Reports (especially the

Tenth), and the narrative of Major Vandeleur, published by the Foreign Office as a White Paper, together with the Report of the American Minister published on November 20th, 1915, may be referred to.

[54](#) The instances which follow are taken from official reports. I may add another illustration here published for the first time. A German soldier, recording the story of how the *maire* of a French town was torn from his home and carried off by the troops, writes: “In spite of his protests we put him into our company and made him march with us. He called us names and shouted and protested, *and kept us all in good spirits.*”

[55](#) The *Munchner Neueste Nachrichten*, October 7th, 1914.

[56](#) Press Bureau (Belgian communiqués), August 5th.

[57](#) French official communiqués, October 12th, August 1st.

[58](#) *Velut e conspectu libertas tolleretur* (Tacitus, *Agricola*, Chapter 24).

[59](#) What I have here written is, without exaggeration, the substance of the Manifesto issued by the German Professors in August last. For the text, *see the Morning Post*, August 13th and 14th. And to the same effect is the speech of the Imperial Chancellor in the Reichstag a few days later (for report, *see The Times*, August 21st).

[60](#) Long ago—in 1870—Fustel de Coulanges pointed out that the crime which, to use the words of our law, “is not to be named among Christians,” flourished in Berlin as it flourished nowhere else, and the immorality of latter-day Germany was the subject of a mournful lamentation by Treitschke in his old age. An acute student of modern Germany, Dr. Arthur Shadwell, also remarks on the low commercial morality of German merchants (*see the Nineteenth Century and After* for August, 1915).

[61](#) It is a curious fact, attested by the evidence of a large number of British and French soldiers who have been in action, that the German soldier often exhibits the most abject fear when confronted individually with the bayonet, going down on his knees, and whining “Kamerad,” “Mercy,” and such like lachrymose appeals.

[62](#) Bryce Appendix, “Depositions taken by Professor Morgan,” page 195.

[63](#) Belgian Reports (Tenth Report), page 119. To the same effect the British and French Reports, *passim*.

[64](#) Admiralty Memorandum, August 21st. Commander’s report on the stranding of *E13*.

[65](#) See Belgian Reports and Bryce Report.

[66](#) The writer has brought together a number of such passages in his preface to the *German War Book*. For others see *Les Usages de la Guerre et la doctrine de l’Etat-Major Allemand*, by Professor Charles Andler (Paris, 1915). Also Chapter I. of “*Les Cruautés Allemandes, Requisitoire d’un neutre*,” by Léon Maccas (Paris, 1915). And more especially the extremely valuable book published, at the moment of going to press, by an eminent French scholar, the Marquis de Dampierre, *L’Allemagne et le Droit des Gens*, a copy of which has just reached me.

[67](#) Sorel, *Essais d’histoire et de critique*, p. 271.

[68](#) German Proclamation of August 27th, 1914, at Wavre (Belgian Reports, No. 6, page 82). In the Proclamation at Namur of August 25th, 1914, the German commandant, von Bulow, warns the inhabitants against “the horrible crime” of compromising by their conduct the existence of the town and its inhabitants!

[69](#) *Ibid.*, page 81.

[70](#) See p. 123.

[71](#) Holtzendorff, IV., 378.

[72](#) French Reports, *Rapports et Proces-verbaux*, p. 40.

[73](#) cf. the reply of the Roman Senate to the offer of a German chief to poison Arminius, “Responsum esse non fraude neque occultis, sed palam et armatum populum Romanum hostes suos ulcisci.” Tacit., *Ann.*, II., p. 88.

[74](#) See the British White Paper of September 21st, 1915; “Austrian and German papers found in possession of James F. J. Archibald, Falmouth, August 30th, 1915.”

[75](#) Professor Salmond in the *Law Quarterly Review*.

[76](#) Mr. Justice Bailhache in the *King v. the Superintendent of Vine Street Police Station*. “The courts are entitled to take judicial notice of certain notorious facts. Spying has become the hall-mark of German Kultur.” September 7th, 1915.

[77](#) It is, however, impossible to include within the limits of this book the whole of the unpublished material at my disposal.

[78](#) The term “soldier” is used throughout this article in the sense adopted in the Army Annual Act, *i.e.*, as meaning N.C.O.s and privates.

[79](#) The outrages committed in the districts now in the occupation of the British armies have not been reported upon by the French Commission, and the ground so traversed in this article is therefore new.

[80](#) Von der Goltz.

[81](#) One might go further and say that the Geneva Convention, which has hitherto been universally regarded as a law of perfect obligation and which even the German Staff in the German War Book affects to treat as sacred, is perverted to an instrument of treachery. The emblem of the Red Cross was used to protect waggons in which machine-guns were concealed. And since this article was written a German hospital ship, the *Ophelia*, has been condemned, on irrefutable evidence, by our Prize Court as having been used for belligerent purposes. Such things throw a very lurid light on the German conception of honour.

[82](#) Similar evidence has been supplied to me by a French officer attached to the Fifth Division of the British Expeditionary Force. See Chap. III., Part I., No. 56.

[83](#) See Chapter III., Part I., and, in particular, Nos. 39 to 43.

[84](#) The German officers spoke Hindustani. Doubtless they knew, as I have found they often know, the identity of the British regiments opposite their positions and were attached there for the express purpose of dealing with Indians. But in no case, so far as I know, were their attempts to seduce our Indian troops successful.

[85](#) This diary is now in the possession of my friend the Marquis de Dampierre, who is about to publish it and numerous others, together with fac-similes of the originals.

[86](#) The passage suggests that our wounded were killed, but it is not conclusive. "Noch lebenden," *i.e.*, "still living," would appear to mean the wounded found in our trenches and unable to escape with the others. The fact of some prisoners being taken does not dispose of the suspiciousness of the passage.

[87](#) Brenneisen is now a prisoner in England. The diary was a most carefully kept one. Since I first published it, it has been republished by the French authorities.

[88](#) What follows refers principally to the portion of Northern France now occupied by the British troops. The case of Belgium has been sufficiently dealt with by the Committee.

[89](#) See Chap. III., Section 2.

[90](#) *Ibid.*, Section 3.

[91](#) After the outrage they dragged the girl outside and asked if she knew of any other young girls (“jeunes filles”) in the neighbourhood, adding that they wanted to do to them what they had done to her. See Chap. III. (2) No. 4.

[92](#) Presumably La Couture.—J. H. M.

[93](#) I have suppressed the names of the witnesses for fear of their relatives, if any, in German hands being subjected to vindictive measures. Also in the case (selected from some twenty similar cases equally authenticated) of rape I have omitted certain details which seem to me too disgusting for publication.—J. H. M.

[94](#) NOTE.—This diary is a laconic example of a hundred such village tragedies. According to the Eleventh Belgian Report (page 133), twenty-six priests and monks were shot in Namur alone. And see the pastoral letter of Cardinal Mercier (*ibid.*, page 165) on what he calls “this sinister necrology.” In his own diocese alone (that of Malines) he records thirteen priests as having been killed. According to a German soldier the guilt of priests was established by the fact that church-bells often rang! —(Bryce Appendix, page 163).

[95](#) This savage credulity found its sequel in the murder of many unoffending priests not only in Belgium but in France. I quote one case from the depositions in my possession:

“Marie B——, sœur du curé de Pradelles, a déclaré ‘Les Allemands rodant dans le village ont enlevé la personne de mon

frère M. l'Abbé Héléodore Bogaert, curé de cette paroisse, et l'ont fusillé au cimetière de Strazeele sans aucun motif le 9 octobre vers 1 heure et demie du matin.'”

[96](#) These documents have been placed in my hands by the General Headquarters Staff. In accordance with the procedure adopted in the Bryce Report, and for military reasons, I have suppressed the names of the British regiments referred to and of their officers and men.—J. H. M.

[97](#) This and the two following depositions are selected from a number of statements, mostly by Russian prisoners in German hands, who succeeded in escaping to the British lines. The statements (b) and (c) by these Russian soldiers are confirmed by the statement (a) which was volunteered by a German soldier, Stephan Grzegoroski, taken prisoner by the British troops. It is hardly necessary to point out that the employment of prisoners of war upon military works and their exposure to fire constitute a flagrant breach, not only of the Hague Regulations, but of the unwritten laws and usages of war.—J. H. M.

[98](#) These two men escaped on December 8th, 1915, and reached the British Lines.—J. H. M.

[99](#) “German Atrocities: An Official Investigation.” By J. H. Morgan, M.A., late Home Office Commissioner, with the British Expeditionary Force, Barrister-at-Law of the Inner Temple, and Professor of Constitutional Law in the University of London. (T. Fisher Unwin.)

Transcriber's Note:

Corrected the first two entries in the TOC to reflect the actual page numbers.

Inconsistent spelling and hyphenation are as in the original.

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